UNITED STATES
DEPARTMENT OF TRANSPORTATION

TIFIA LOAN AGREEMENT

For Up to $180,500,000

With

Lakeshore Expressway Authority[1]

For the

Harbor Bridge Replacement Project
(TIFIA – 20____)

Dated as of June 28, 2024

THIS FORM OF A TIFIA CREDIT AGREEMENT FOR A DIRECT LOAN SETS FORTH KEY TERMS AND CONDITIONS THAT ARE TYPICALLY REQUIRED FOR EXECUTION OF A TIFIA CREDIT AGREEMENT. THIS DOCUMENT CANNOT ANTICIPATE, HOWEVER, ALL TERMS THAT MUST BE NEGOTIATED BETWEEN THE PARTIES. IF A PROJECT IS APPROVED FOR TIFIA CREDIT ASSISTANCE, THE STRUCTURE OF THE TIFIA CREDIT ASSISTANCE AND THE LOAN AGREEMENT WILL BE BASED ON THE FINAL FINANCIAL PLAN AND NEGOTIATED TERMS AND CONDITIONS WITH THE BORROWER, AND IS SUBJECT TO FINAL APPROVAL BY USDOT.

[1] This template is designed for use by borrowers that are public entities and for transactions that are secured by project revenue. This agreement will serve as the basis for other public entity transaction structures, including system and non-project revenue financings, such as tax increment financings, with appropriate modifications and additions.

TABLE OF CONTENTS

		Page
Section 1.	Definitions	2
Section 2.	Interpretation	30
Section 3.	TIFIA Loan Amount	31
Section 4.	Disbursement Conditions	31
Section 5.	Term	33
Section 6.	Interest Rate	34
Section 7.	Outstanding TIFIA Loan Balance; Revisions to Exhibit G and Loan Amortization Schedule	34
Section 8.	Security and Priority; Flow of Funds	35
Section 9.	Payment of Principal and Interest	37
Section 10.	Prepayment	39
Section 11.	Compliance with Laws	41
Section 12.	Conditions Precedent	41
Section 13.	Representations and Warranties of Borrower	49
Section 14.	Representations and Warranties of TIFIA Lender	57
Section 15.	Affirmative Covenants	57
Section 16.	Negative Covenants	69
Section 17.	Indemnification	73
Section 18.	Sale of TIFIA Loan	74
Section 19.	Events of Default and Remedies	74
Section 20.	Accounting and Audit Procedures; Inspections; Reports and Records	80
Section 21.	Financial Plan; Semi-Annual Coverage Certificates; Financial Statements	81
Section 22.	Project Oversight and Monitoring	85
Section 23.	No Personal Recourse	88
Section 24.	No Third Party Rights	88
Section 25.	Borrower's Authorized Representative	88
Section 26.	TIFIA Lender's Authorized Representative	88
Section 27.	Servicer	89
Section 28.	Fees and Expenses	89
Section 29.	Amendments and Waivers	90
Section 30.	Governing Law	90
Section 31.	Severability	90
Section 32.	Successors and Assigns	91
Section 33.	Remedies Not Exclusive	91
Section 34.	Delay or Omission Not Waiver	91
Section 35.	Counterparts; Electronic Signatures	91
Section 36.	Notices; Payment Instructions	91
Section 37.	Effectiveness	92
Section 38.	Termination	92
Section 39.	Integration	93

SCHEDULE I – Project Budget

SCHEDULE II – Construction Schedule

[**SCHEDULE III** – Existing Indebtedness]

SCHEDULE 13(f) – Litigation

EXHIBIT A – Form of TIFIA Bond

EXHIBIT B – Anticipated TIFIA Loan Disbursement Schedule

EXHIBIT C – Non-Debarment Certification

EXHIBIT D – Requisition Procedures

EXHIBIT E – Compliance With Laws

EXHIBIT F – FHWA Oversight Agreement

EXHIBIT G – TIFIA Debt Service

EXHIBIT H-1 – Opinions Required from Counsel to Borrower [and each other Borrower Related Party]

EXHIBIT H-2 – Opinions Required from Bond Counsel

EXHIBIT I – Forecast of Net Cash Flow

EXHIBIT J – Form of Certificate of Trustee

EXHIBIT K – Form of Borrower's Officer's Certificate

EXHIBIT L – Form of Certificate of Substantial Completion

[EXHIBIT M – FTA Programmatic Requirements Certificate]

[EXHIBIT N – TIFIA Loan Reamortization Methodology]

EXHIBIT O – Certification Regarding Lobbying

EXHIBIT P – Form of Semi-Annual Coverage Certificate

EXHIBIT Q – Reporting Subawards and Executive Compensation

TIFIA LOAN AGREEMENT

THIS TIFIA LOAN AGREEMENT (this "**Agreement**"), dated as of the **Effective Date** is by and between **Lakeshore Expressway Authority**, [_____] incorporated under the laws of [_____] (the "**State**"), with an address of [_____] (the "**Borrower**"), and the **UNITED STATES DEPARTMENT OF TRANSPORTATION**, an agency of the United States of America, acting by and through the Executive Director of the Build America Bureau (the "**Executive Director**"), with an address of 1200 New Jersey Avenue, S.E., Washington, D.C. 20590 (the "**TIFIA Lender**").

RECITALS:

WHEREAS, the Congress of the United States of America (the "**Congress**") has found that a well-developed system of transportation infrastructure is critical to the economic well-being, health and welfare of the people of the United States of America and, in furtherance thereof, has enacted the Transportation Infrastructure Finance and Innovation Act of 1998 ("**TIFIA**"), as codified at 23 U.S.C. §§ 601-609 (as amended from time to time, the "**Act**"); and

WHEREAS, Section 603 of the Act authorizes the TIFIA Lender to enter into agreements with one or more obligors to make secured loans; and

WHEREAS, the Borrower has requested that the TIFIA Lender make the TIFIA Loan (as defined herein) in a principal amount not to exceed $[*Insert maximum principal amount of TIFIA loan*][2] (excluding interest that is capitalized in accordance with the terms hereof) to be used to pay a portion of the Eligible Project Costs (as defined herein) related to the Project (as defined herein) pursuant to the application for TIFIA credit assistance dated [_____] (the "**Application**"); and

WHEREAS, on [_____], the Secretary (as defined herein) approved TIFIA credit assistance for the Project in the form of the TIFIA Loan; and

WHEREAS, the TIFIA Lender is prepared to extend credit upon the terms and conditions hereof; and

WHEREAS, the Borrower agrees to repay any amount due pursuant to this Agreement and the TIFIA Bond (as defined herein) in accordance with the terms and provisions hereof and thereof; and

[WHEREAS, the TIFIA Lender has entered into this Agreement in reliance upon, among other things, [the Traffic and Revenue Study (as defined herein)][*Insert name of any other report, such as a consultant's report that includes projections of Pledged Revenues, a feasibility*

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[2] This amount to be updated at closing to reflect the actual loan amount as per the final financial model and apportionment.

study or a consulting engineer's report, on which the TIFIA Lender is relying]][3] and the projections in the Base Case Financial Model (as defined herein) delivered by the Borrower.

NOW, THEREFORE, the premises being as stated above, and for good and valuable consideration, the receipt and sufficiency of which are acknowledged to be adequate, and intending to be legally bound hereby, it is hereby mutually agreed by and between the Borrower and the TIFIA Lender as follows:

Section 1. Definitions.[4] Unless the context otherwise requires, capitalized terms used in this Agreement shall have the meanings set forth below in this Section 1 (*Definitions*) or as otherwise defined in this Agreement. Any term used in this Agreement that is defined by reference to any other agreement shall continue to have the meaning specified in such agreement, whether or not such agreement remains in effect.

"**Acceptable Credit Rating**" means, with respect to any Person, the rating of its unsecured, senior long-term indebtedness (or, if such Person has no such rating, then its issuer rating or corporate credit rating) is no lower than (a) at the time such Person executes, delivers or issues a Qualified Hedge, Liquidity Facility, or a repurchase obligation to fund any Reserve Account, 'A+', 'A1' or the equivalent rating from [each][at least one (1)][5] Rating Agency that provides a rating on such Person's unsecured, senior long-term indebtedness or that provides an issuer rating or corporate credit rating for such Person, as applicable; and (b) at any time thereafter, 'A', 'A2' or the equivalent rating from [each][at least one (1)] Rating Agency that provides a rating on such Person's unsecured, senior long-term indebtedness or that provides an issuer rating or corporate credit rating for such Person, as applicable.[6]

"**Acceptable Letter of Credit**" means a letter of credit, in form and substance satisfactory to the TIFIA Lender, issued by a Qualified Issuer.

["**Accreted Value**" means, with respect to any Capital Appreciation Bonds, as of any Valuation Date or for any period, the amount set forth for such date or period as determined in accordance with the Supplemental Indenture authorizing such Capital Appreciation Bonds.][7]

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3 Reference to specific reports and studies to be included as applicable.

4 Defined terms should (as appropriate) be changed based on the financing structure/documentation, project contracts and relevant parties for the transaction. Additionally, for definitions in this template that are defined by reference to another document, such defined terms should (where appropriate) be revised to reflect the definition for such term given in such other document.

5 If using "each", replacement timeline is 30 calendar days (meaning all agencies that provide a rating give it at least that rating and if any one rating drops, replacement requirement is triggered). If using "at least one", replacement timeline is 10 calendar days (meaning that all other ratings have dropped below the threshold and when the last rating above the threshold drops below, the replacement requirement is triggered).

6 The TIFIA Lender may, on a case by case basis, require other providers and issuers of Liquidity Facilities and other forms of credit support to satisfy the Acceptable Credit Rating criteria.

7 To be used in transactions in which the Senior Obligations includes Capital Appreciation Bonds.

"**Act**" means the Act as defined in the recitals hereto.

"**Additional Project Contracts**" means any contract, agreement, letter of intent, understanding or instrument (other than a Principal Project Contract) entered into by (or on behalf of) the Borrower after the Effective Date, providing for the design, construction, testing, start-up, safety, financial services, operation or maintenance of the Project, or otherwise relating to the Project, including any master contract providing goods or services for multiple projects or assets including the Project.

"**Additional Obligations**"[8] means Senior Obligations or Pari Passu Obligations that are permitted under Section 16(a) (*Indebtedness*) and under the Indenture and that are issued or incurred after the Effective Date (but excluding Initial Obligations) and shall also satisfy the following requirements, as applicable:

(a) if the proceeds thereof will be used to complete the construction of the Project or to comply with obligations under the Principal Project Contracts, the Borrower's Authorized Representative shall have certified to the Trustee and the TIFIA Lender in writing, and the Consulting Engineer shall have confirmed, that such Additional Obligations are necessary for such completion or compliance, as applicable, and that the proceeds from such Additional Obligations, together with other funds available to complete the Project, are expected to be sufficient to achieve Substantial Completion; provided that the aggregate amount of Additional Obligations incurred pursuant to this paragraph (a) may not, without the prior written consent of the TIFIA Lender, exceed [$[__] or [_____] percent ([_____]%)] of the maximum principal amount of the Initial Obligations;

(b) if the proceeds thereof will be used to refinance other Senior Obligations or Pari Passu Obligations, (i) such Additional Obligations must receive an Investment Grade Rating at the time of issuance, (ii) the net proceeds thereof (after deducting any amounts required to be deposited to satisfy the applicable Debt Service Reserve Required Balance) must not exceed the principal amount of the Obligations being refinanced, and (iii) Debt Service in respect of all Senior Obligations and Pari Passu Obligations, after the incurrence of such Additional Obligations, in each year of the remaining term of the TIFIA Loan, must be projected to be less than the Debt Service in respect of all Senior Obligations and Pari Passu Obligations projected for each such year in the Base Case Financial Model or if applicable, the Revised Financial Model; and

(c) if the proceeds thereof will be used for any reason not described in clause (a) or (b) above, such Additional Obligations must receive an Investment Grade Rating and the Borrower's Authorized Representative shall have certified to the TIFIA Lender, and the Consulting Engineer shall have confirmed, that (i) there will be no fundamental change in the use of the Project, and the activity or project to which such Additional

[8] Note: The additional bonds test will be revised to include additional obligations that are pari passu with the TIFIA Loan where such obligations are contemplated. The term "Additional Obligations" will be revised accordingly in such case.

Obligations will be applied could not reasonably be expected to result in a Material Adverse Effect, (ii) the Total Debt Service Coverage Ratio for each Calculation Period from the date of issuance of such Additional Obligations through the Final Maturity Date is not less than [____] (based on a certified revenue forecast prepared by the [Traffic Consultant] [Borrower] and satisfactory to the TIFIA Lender), and (iii) the Loan Life Coverage Ratio for each Calculation Date from the date of issuance of such Additional Obligations through the Final Maturity Date is not less than [____] (based on a certified revenue forecast prepared by the [Traffic Consultant] [Borrower] and satisfactory to the TIFIA Lender);[9]

provided that for each of clauses (a) through (c) above, (x) no Event of Default under any Indenture Document or this Agreement has occurred and is continuing, (y) the Rating Agency that provided the most recent public ratings of the Senior Obligations and the TIFIA Loan in accordance with Section 15(j) (*Annual Rating*) shall have provided a confirmation or affirmation (or the equivalent) that the incurrence of such Additional Obligations shall not result in a downgrade of the lower of (A) the then-existing credit ratings of the Senior Obligations, the Pari Passu Obligations, and the TIFIA Loan, respectively, and (B) the credit ratings of the Senior Obligations, the Pari Passu Obligations, and the TIFIA Loan, respectively, as of the Effective Date or the closing date of the Initial Obligations (to the extent the Initial Obligations are issued on a day other than the Effective Date), and (z) repayment of the principal amount of such Additional Obligations does not commence before the Debt Service Payment Commencement Date.

"**Agreement**" has the meaning provided in the preamble hereto.

"**Anticipated TIFIA Loan Disbursement Schedule**" means the schedule set forth in **Exhibit B**, reflecting the anticipated disbursement of proceeds of the TIFIA Loan, as such schedule may be amended from time to time pursuant to Section 4(c) (*Disbursement Conditions*).

"**Anti-Corruption Laws**" means all U.S. and other applicable laws, rules and regulations, as amended from time to time, concerning or related to bribery or corruption.

"**Anti-Money Laundering Laws**" means all U.S. and other applicable laws, rules and regulations, as amended from time to time, concerning or related to anti-money laundering, including but not limited to those contained in the Bank Secrecy Act and the Patriot Act.

"**Application**" has the meaning provided in the recitals hereto.

["**Appreciated Value**" means, with respect to any Deferred Interest Bond as of any Valuation Date or for any period, the amount set forth for such date or period as determined in accordance with the Supplemental Indenture authorizing such Deferred Interest Bond.][10]

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[9] The repayment profile of Additional Obligations issued pursuant to this clause (c) will be substantially similar to that of the Initial Obligations.

[10] To be used in transactions in which the Senior Obligations include Deferred Interest Bonds.

"**Authorizing Legislation**" means [*insert description of the statute, regulation, ordinance, resolution or other non-contractual authority that establishes the Pledged Revenues*].

"**Bank Lending Margin**" means in respect of any Variable Interest Rate Obligations, the "**Applicable Margin**" or comparable interest rate margin as defined in the financing documents related to such Variable Interest Rate Obligations.

"**Bank Secrecy Act**" means the Bank Secrecy Act of 1970 (Titles I and II of Pub. L. No. 91-508, codified at 12 U.S.C. §§ 1829b and 1951-1960 and 31 U.S.C. §§ 312, 5311-5313, and 5316-5322), as amended from time to time, and any successor statute of similar import, and the regulations promulgated thereunder.

"**Bankruptcy Related Event**" means, with respect to any Person,

(a) an involuntary proceeding shall be commenced or an involuntary petition shall be filed seeking (i) liquidation, reorganization or other relief in respect of such Person or any of its debts, or of a substantial part of the assets thereof, under any Insolvency Laws, or (ii) the appointment of a receiver, trustee, liquidator, custodian, sequestrator, conservator or similar official for such Person or for a substantial part of the assets thereof and, in any case referred to in the foregoing subclauses (i) and (ii), such proceeding or petition shall continue undismissed for sixty (60) days or an order or decree approving or ordering any of the foregoing shall be entered;

(b) such Person shall (i) apply for or consent to the appointment of a receiver, trustee, liquidator, custodian, sequestrator, conservator or similar official therefor or for a substantial part of the assets thereof, (ii) generally not be paying its debts as they become due unless such debts are the subject of a bona fide dispute, or become unable to pay its debts generally as they become due, (iii) solely with respect to the Borrower, fail to make two (2) consecutive payments of TIFIA Debt Service in accordance with the provisions of Section 9 (*Payment of Principal and Interest*), (iv) make a general assignment for the benefit of creditors, (v) consent to the institution of, or fail to contest in a timely and appropriate manner, any proceeding or petition with respect to it described in clause (a) of this definition, (vi) commence a voluntary proceeding under any Insolvency Law, or file a voluntary petition seeking liquidation, reorganization, an arrangement with creditors or an order for relief under any Insolvency Law, (vii) file an answer admitting the material allegations of a petition filed against it in any proceeding referred to in the foregoing subclauses (i) through (vi), inclusive, of this clause (b), or (viii) take any action for the purpose of effecting any of the foregoing[, including seeking approval or legislative enactment by any Governmental Authority to authorize commencement of a voluntary proceeding under any Insolvency Law];[11]

(c) solely with respect to the Borrower, (i) the Trustee shall commence a process pursuant to which all or a substantial part of the Trust Estate may be sold or

[11] To be inserted when the Project is located in a state where current state law does not expressly permit the Borrower to seek protection under Insolvency Laws.

otherwise disposed of in a public or private sale or disposition pursuant to a foreclosure of the Liens thereon securing any Obligations, or (ii) the Trustee shall commence a process pursuant to which all or a substantial part of the Trust Estate may be sold or otherwise disposed of pursuant to a sale or disposition of such Trust Estate in lieu of foreclosure; or

(d) solely with respect to the Borrower, the Trustee shall transfer, pursuant to directions issued by the Bondholders, funds on deposit in any of the Project Accounts upon the occurrence and during the continuation of an Event of Default under the Indenture Documents for application to the prepayment or repayment of any principal amount of any Obligations other than in accordance with the provisions of the Indenture.

"**Base Case Financial Model**" means a financial model prepared by the Borrower that includes (a) for each six (6) month period corresponding to a Payment Period through the Final Maturity Date, a forecast of Pledged Revenues, expenditures, and funding obligations reflected in Section [__] of the Indenture, (b) for each six (6) month period corresponding to a Payment Period through the Final Maturity Date, a forecast of Debt Service on all Obligations, and (c) the Project Budget, which model, in each case in clauses (a), (b), and (c) above, shall be based upon assumptions and methodology provided by the Borrower and acceptable to the TIFIA Lender as of the Effective Date, and which model shall be provided to the TIFIA Lender as a fully functional Microsoft Excel-based financial model or such other format requested by the TIFIA Lender.

"**Bond**" means any bonds (including the TIFIA Bond) or any other evidences of indebtedness for borrowed money issued by the Borrower from time to time pursuant to [*insert applicable cross-reference*] of the Indenture and the terms of the applicable Supplemental Indenture.[12]

"**Bondholder**" means, when used with respect to the TIFIA Bond, the TIFIA Lender and, when used with respect to any other Bond, the [registered] owner of such Bond.[13]

"**Borrower**" has the meaning provided in the preamble hereto.

"**Borrower Fiscal Year**" means (a) as of the Effective Date, a fiscal year of the Borrower commencing on [_____] of any calendar year and ending on [_____] of [such year][the immediately succeeding calendar year] or (b) such other fiscal year as the Borrower may hereafter adopt after giving thirty (30) days' prior written notice to the TIFIA Lender, as provided in Section 16(g) (*Organizational Documents; Fiscal Year*).

["**Borrower Related Party**" means, individually or collectively, the Borrower and [_____].][14]

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[12] Defined term should (as appropriate) be changed based on the financing structure/documentation and nomenclature for the transaction (e.g., promissory note).

[13] References to "**Bondholder**" may be changed throughout the agreement to be consistent with the type of instrument used by the Borrower for other related indebtedness (e.g., Noteholder).

"**Borrower's Authorized Representative**" means any Person who shall be designated as such pursuant to Section 25 (*Borrower's Authorized Representative*).

"**Business Day**" means any day other than a Saturday, a Sunday or a day on which offices of the Federal Government or the State are authorized to be closed or on which commercial banks are authorized or required by law, regulation or executive order to be closed in New York, New York, [*the city and state in which the Project is located*] or [*the city and state in which the Trustee is located*].

"**Calculation Date**" means each [_____] and [_____] occurring after the Effective Date.[15]

"**Calculation Period**" means a twelve (12) month period ending on a Calculation Date.

"**Capital Appreciation Bonds**" means any Obligations as to which interest is payable only at the maturity or prior redemption of such Permitted Debt.

"**Capital Expenditures**" means expenditures made or liabilities incurred for the acquisition of any assets, improvements or replacements thereof that have a useful life of more than one (1) year and that are capitalized in accordance with GAAP.[16]

"**Capitalized Interest Period**" means the period from (and including) the Effective Date to (but excluding) the first day of the initial Payment Period.

"**Congress**" has the meaning provided in the recitals hereto.

"**Construction Account**" has the meaning provided in the Indenture.

"**Construction Agreements**" means [_____].

"**Construction Contractors**" means [_____].

"**Construction Period**" means the period from the Effective Date through the Substantial Completion Date.

"**Construction Schedule**" means (a) the initial schedule or schedules on which the construction timetables for the Project are set forth, attached as **Schedule II**, and (b) any updates thereto included in the Financial Plan most recently submitted to the TIFIA Lender pursuant to Section 21(a)(iii)(B) (*Financial Plan*).

(cont'd from previous page)

14 To be included in situations where a Governmental Authority other than the Borrower has significant project related obligations.

15 To be the same calendar dates used in the definition of "Semi-Annual Payment Date".

16 Subject to modification if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

"**Consulting Engineer**" means [[_____], or any replacement][an] engineering firm selected by the Borrower, subject to Section 22(c).[17]

"**Control**" means, when used with respect to any particular Person, the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of such Person, whether through the ownership of voting securities or partnership or other ownership interests, by contract or otherwise, and the terms "**Controlling**" and "**Controlled by**" have meanings correlative to the foregoing.

"**CPI**" means the Consumer Price Index for All Urban Consumers (CPI-U) for the U.S. City Average for All Items, 1982-84=100 (not seasonally adjusted), or its successor, published by the Bureau of Labor Statistics, with, unless otherwise specified herein, January 20[__] as the base period.

"**Cross Covenant Default**" has the meaning provided in Section 19(a)(vi) (*Cross Default to Financing Documents*).

"**Cross Misrepresentation Default**" has the meaning provided in Section 19(a)(vi) (*Cross Default to Financing Documents*).

"**Debt Service**" means, with respect to Senior Obligations [or][,] Pari Passu Obligations [or Subordinated Obligations], for any period, as of any date of calculation, an amount equal to the sum of all interest and principal of such Senior Obligations [or][,] Pari Passu Obligations [or Subordinated Obligations] accruing and payable in respect of such period. In determining the principal and interest amounts of Senior Obligations [or][,] Pari Passu Obligations [or Subordinated Obligations] due in such period (unless a subsection below of this definition applies for purposes of determining such amounts), payment shall be assumed to be made in accordance with any debt service schedule established for such Senior Obligations [or][,] Pari Passu Obligations[or Subordinated Obligations], including any balloon or bullet maturities (which shall be treated as being paid in full on their respective due dates) and including any scheduled redemption on the basis of Accreted Value or Appreciated Value, as applicable, and for such purpose the redemption payment shall be deemed a principal payment.

In calculating Debt Service for any future period (except as otherwise specifically provided herein):

(a) any Permitted Debt bearing interest at a Variable Interest Rate shall be deemed to bear interest at the Bank Lending Margin plus the fixed rate on the applicable Qualified Hedge (which shall reflect any premium or margin payable thereon);

(b) any Put Bonds outstanding during such period that by their terms are required to be paid by the [Issuer or the] Borrower upon tender by the holder thereof shall be assumed to mature on the earliest to occur of (i) the stated maturity date thereof, (ii) the earliest date as of which the holder of such Put Bonds may tender such Put Bonds to the Borrower, as provided in

[17] Modify as appropriate based on whether a Consulting Engineer has been retained as of the Effective Date.

the Indenture or the applicable Supplemental Indenture, and (iii) if the Liquidity Facility securing such Put Bonds expires within six (6) months or less of the date of calculation and has not been renewed or replaced, the expiration date of such Liquidity Facility;

(c) the principal amount of any Put Bonds outstanding during such period that have been tendered by the holders thereof for payment by the [Issuer or the] Borrower and that are required to be paid by the [Issuer or the] Borrower but that have not yet been purchased in lieu of such payment by the [Issuer or the] Borrower shall be deemed to mature on the date such payment is required to be made pursuant to such tender;

(d) the principal amount of any Extendible Maturity Bonds outstanding during such period shall be deemed to mature on the original stated maturity date of such Extendible Maturity Bonds, unless the option to extend the maturity date of such Extendible Maturity Bonds has been irrevocably exercised, in which case the maturity date of such Extendible Maturity Bonds shall be the extended maturity date provided for in such elected option;

(e) [the principal and/or interest portion (whether by redemption or otherwise) of Capital Appreciation Bonds and Deferred Interest Bonds shall be the Accreted Value and Appreciated Value thereof, respectively, due and payable in respect of such period;] and

(f) (i) amounts paid in respect of reimbursement obligations incurred under any Liquidity Facility that are payable from Pledged Revenues or otherwise from the Trust Estate shall be included in the calculation of Debt Service with respect to the Obligations that are supported by such Liquidity Facility (but without duplication of the Debt Service otherwise payable in respect of such Obligations) for the Calculation Period during which such reimbursement obligations were incurred and (ii) the amount of any anticipated draws on a Liquidity Facility that are payable from Pledged Revenues or otherwise from the Trust Estate shall be included in the calculation of projected Debt Service with respect to the Obligations that are supported by such Liquidity Facility (but without duplication of the Debt Service otherwise payable in respect of such Obligations) for each Calculation Period during which such reimbursement obligations are anticipated to be incurred.[18]

"**Debt Service Coverage Ratio**" means, for any Calculation Period, the ratio of Pledged Revenues (net of any expenses, payments, reimbursement obligations, or Reserve Account deposits that have payment priority over Debt Service in respect of Senior Obligations pursuant to the Indenture) for such Calculation Period to Debt Service in respect of all Senior Obligations for such Calculation Period.

[18] Treatment of Liquidity Facility reimbursement obligations potentially subject to revision if such obligations are handled differently in the Indenture. For example, if an Indenture provides that Liquidity Facility reimbursement obligations are paid at a lower level of priority in the cash flow waterfall than the obligations supported by such Liquidity Facility, it may be appropriate to reflect that structure in the calculation of Debt Service.

"**Debt Service Payment Commencement Date**" means the earlier of (a) [*insert specified date*] and (b) the first Semi-Annual Payment Date to occur following the Substantial Completion Date.[19]

"**Debt Service Reserve Account**" has the meaning provided in the Indenture.

"**Debt Service Reserve Required Balance**" means [_____].

"**Default**" means any event or condition that, with the giving of notice, the passage of time, or both, would constitute an Event of Default.

"**Default Rate**" means an interest rate equal to the sum of (a) the TIFIA Interest Rate plus (b) two percent (2.00%).

"**Deferred Interest Bond**" means any Permitted Debt (a) as to which interest accruing thereon prior to the applicable Interest Commencement Date of such Permitted Debt is (i) compounded on each Valuation Date for such Deferred Interest Bond and (ii) payable only at the maturity or prior redemption of such Permitted Debt and (b) as to which interest accruing after the applicable Interest Commencement Date is payable on the first interest payment date immediately succeeding the Interest Commencement Date and thereafter on the dates specified in or determined pursuant to the Supplemental Indenture authorizing the Permitted Debt. For the purposes of receiving payment of the redemption price if a Deferred Interest Bond is redeemed prior to maturity, the principal amount of a Deferred Interest Bond shall be deemed to be its Appreciated Value.

"**Development Default**" means (a) the Borrower fails to diligently prosecute the work related to the Project [and, if a Recovery Plan has been provided in accordance with Section 22(b)(viii) (*Recovery Plan*), in accordance with such Recovery Plan,][20] or (b) the Borrower fails to complete the Project by the Projected Substantial Completion Date.[21]

"**Effective Date**" means [the date of this Agreement].

"**Electronic Signature**" means any electronic symbol or process attached to or logically associated with a contract or other record and executed or adopted by a person with the intent to sign such contract or record pursuant to [insert applicable state statute or, if in NY or Illinois, the

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[19] In appropriate circumstances (i.e., to the extent the Borrower has cash flow constraints or Capital Expenditures are expected within five (5) years after Substantial Completion), the TIFIA Lender may consider a Capitalized Interest Period that extends past the Substantial Completion Date and the Debt Service Payment Commencement Date may be set at a later date, but in no event can such date occur later than the fifth (5th) anniversary of the Substantial Completion Date, consistent with § 603(c)(ii) of the Act.

[20] To be inserted when the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[21] Definition to be modified on a transaction by transaction basis and may provide for a fixed deadline for completion of the Project.

U.S. Electronic Signatures in Global and National Commerce Act (15 U.S.C. § 7001 et seq.)], as amended from time to time.

"**Eligible Project Costs**" means amounts in the Project Budget, substantially all of which are paid by or for the account of the Borrower in connection with the Project, [including prior Project expenditures for the [_____]-year period preceding the date of the Application,][22] all of which shall arise from the following:

(a) development phase activities, including planning, feasibility analysis, revenue forecasting, environmental review, permitting, preliminary engineering and design work and other preconstruction activities;

(b) construction, reconstruction, rehabilitation, replacement and acquisition of real property (including land related to the Project and improvements to land), environmental mitigation, construction contingencies and acquisition of equipment; or

(c) capitalized interest necessary to meet market requirements, reasonably required reserve funds, capital issuance expenses and other carrying costs during construction;

[provided, however, that Eligible Project Costs must be consistent with 23 U.S.C. § 601 *et seq.*, [49 U.S.C. § 5302(3),] the SCCs described in **Schedule I**, and all other applicable federal law.][23]

"**Environmental Laws**" has the meaning provided in Section 13(s) (*Environmental Matters*).

"**ERISA**" means the Employee Retirement Income Security Act of 1974, Pub. L. 93-406 (29 U.S.C. § 1001 et seq.), as amended from time to time, and any successor statute of similar import, and the regulations thereunder.

"**ERISA Affiliate**" means any trade or business (whether or not incorporated) that, together with the Borrower, is treated as a single employer under Section 414(b) or (c) of the Tax Code or, solely for purposes of Section 302 of ERISA and Section 412 of the Tax Code, is treated as a single employer under Section 414 of the Tax Code.

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[22] Inclusion of pre-application costs will be determined on a case by case basis. In no event will costs that are not federally eligible be included. Applicable eligibility rules include, but are not limited to, the requirement that only costs incurred after (i) the appropriate NEPA finding has been issued in respect of the Project, or applicable portion of the Project, to which the costs relate and (ii) the Project, or the applicable portion of the Project, has been included in the State transportation plan and in the approved State transportation improvement program, in each case to the extent required by 23 U.S.C. § 602(a)(3), are eligible.

[23] Applicable to projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project. A modified version of this may be used for FHWA or other modal-overseen projects.

"**Event of Default**" has the meaning provided in Section 19(a) (*Events of Default and Remedies*).

"**Event of Loss**" means any event or series of events that causes any portion of the Project to be damaged, destroyed or rendered unfit for normal use for any reason whatsoever, including through a failure of title, or any loss of such property, or a condemnation.

"**Executive Director**" has the meaning provided in the preamble hereto.

"**Existing Indebtedness**" means indebtedness of the Borrower that has been issued or incurred prior to the Effective Date, as listed and described in **Schedule III**.

"**Extendible Maturity Bonds**" means bonds the maturity of which may be extended in accordance with the applicable Indenture Documents.

"**Federal Fiscal Year**" or "**FFY**" means the fiscal year of the Federal Government, which is the twelve (12) month period that ends on September 30 of the specified calendar year and begins on October 1 of the preceding calendar year.

"**Federal Government**" means the Federal Government of the United States of America and its departments and agencies.

["**FHWA**" means the Federal Highway Administration, an agency of the USDOT.][24]

["**FHWA Division Office**" means [_____].][25]

["**FHWA Oversight Agreement**" means that certain [d*escribe agreement*], dated as of [_____], by and between the Borrower and the FHWA Division Office attached hereto as **Exhibit F**.][26]

"**Final Maturity Date**" means the earlier of (a) the Semi-Annual Payment Date occurring on or immediately prior to the [__] anniversary of the Substantial Completion Date and (b) [Insert specified date].[27]

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[24] As appropriate, insert name of FTA or other applicable modal division of the Department of Transportation.

[25] As appropriate, insert name of applicable FTA regional office or division office of other applicable modal division of the Department of Transportation.

[26] Modify as appropriate if there is an oversight agreement related to the Project to which a different modal division of the Department of Transportation (or a division office thereof) is a party. If there is no project-specific oversight agreement, modify the loan agreement as appropriate to reflect the oversight regime.

[27] In transactions where the Debt Service Payment Commencement Date is a fixed date, the Final Maturity Date will typically be a fixed date (in other words, clause (a) will be left out of the definition). When clause (a) is included, the TIFIA Lender will determine the appropriate anniversary of the Substantial Completion Date, but in no event can it be later than the earlier to occur of (i) the 35th anniversary of the projected Substantial Completion Date and (ii) the estimated expiration of the useful life of the Project, consistent with the requirements of § 603(b)(5) of the Act.

"**Financial Plan**" means (a) the financial plan to be delivered within sixty (60) days after the Effective Date in accordance with Section 21(a) (*Financial Plan*) and (b) any updates thereto required pursuant to Section 21(a) (*Financial Plan*).

"**Financial Statements**" has the meaning provided in Section 13(z) (*Financial Statements*).

["**Fixed Level Payment**" has the meaning provided in Section 9(d) (*Fixed Level Payments*) Section 9(d).][28]

["**FTA**" means the Federal Transit Administration, a modal agency of the USDOT.][29]

["**FTA Master Grant Agreement**" means the Fiscal Year 20[__] FTA Master Grant Agreement, FTA MA-[__], dated [_____], between the FTA and the Borrower, as the same may be supplemented or amended from time to time.][30]

["**FTA Regional Office**" means Regional Office [__] of the FTA, located at [_____].][31]

"**GAAP**" means generally accepted accounting principles as defined by the Governmental Accounting Standards Board, or such other nationally recognized professional body, in effect from time to time in the United States of America.

"**Governmental Approvals**" means all authorizations, consents, approvals, waivers, exceptions, variances, filings, permits, orders, licenses, exemptions and declarations of or with any Governmental Authority.

"**Governmental Authority**" means any federal, state, provincial, county, city, town, village, municipal or other government or governmental department, commission, council, court, board, bureau, agency, authority or instrumentality (whether executive, legislative, judicial, administrative or regulatory), of or within the United States of America or its territories or possessions, including the State and its counties and municipalities, and their respective courts, agencies, instrumentalities and regulatory bodies, or any entity that acts "on behalf of" any of the foregoing, whether as an agency or authority of such body.

"**Government Obligations**" means (a) direct obligations of, or obligations on which the timely payment of principal and interest are fully and unconditionally guaranteed by, the Federal Government, (b) bonds, debentures or notes issued by any of the following federal agencies: Banks for Cooperatives, Federal Intermediate Credit Banks, Federal Home Loan Banks, Export-Import Bank of the United States, Government National Mortgage Association or Federal Land

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[28] To be included when applicable.

[29] To be included when applicable

[30] Applicable if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project. When used, check to ensure the most up-to-date version is being referenced.

[31] To be used when applicable.

Banks, (c) obligations issued or guaranteed by a Person Controlled or supervised by and acting as an instrumentality of the Federal Government pursuant to authority granted by the Congress, and (d) evidences of ownership of proportionate interests in future interest or principal payments on obligations specified in clauses (a), (b) and (c) of this definition held by a bank or trust company as custodian and which underlying obligations are not available to satisfy any claim of the custodian or any Person claiming through the custodian or to whom the custodian may be obligated, in each case.

"**Hedging Agreement**" means (a) the ISDA Master Agreement(s) and any related credit support annex, schedules and confirmations, to be entered into by the Borrower and a Hedging Bank, (b) any other agreement entered into, or to be entered into, by the Borrower and a Hedging Bank for a Hedging Transaction, and (c) any other documentation directly relating to the foregoing.

"**Hedging Banks**" means any Qualified Hedge Provider that becomes a party to a Hedging Agreement and its permitted successors (to the extent such successors are also Qualified Hedge Providers).

"**Hedging Obligations**" means, collectively, the payment of (a) all scheduled amounts payable to the Hedging Banks by the Borrower under the Hedging Agreements (including interest accruing after the date of any filing by the Borrower of any petition in bankruptcy or the commencement of any bankruptcy, insolvency or similar proceeding with respect to the Borrower), net of all scheduled amounts payable to the Borrower by such Hedging Banks, and (b) all other indebtedness, fees, indemnities and other amounts payable by the Borrower to the Hedging Banks under such Hedging Agreements, net of all other indebtedness, fees, indemnities and other amounts payable by the Hedging Banks to the Borrower under such Hedging Agreements; provided that Hedging Obligations shall not include Hedging Termination Obligations. For the avoidance of doubt, all calculations of such amounts payable under the Hedging Agreements shall be made in accordance with the terms of the applicable Hedging Agreements.

"**Hedging Termination Obligations**" means the aggregate amount payable to the Hedging Banks by the Borrower upon the early termination of all or a portion of the Hedging Agreements, net of all amounts payable to the Borrower by such Hedging Banks upon the early unwind of all or a portion of such Hedging Agreements. For the avoidance of doubt, all calculations of such amounts payable under the Hedging Agreements shall be made in accordance with the terms of the applicable Hedging Agreements.

"**Hedging Transaction**" means any interest rate protection agreement, interest rate swap transaction, interest rate "cap" transaction, interest rate future, interest rate option or other similar interest rate hedging arrangement commonly used in loan transactions to hedge against interest rate increases and not for any speculative purpose.

"**Indemnitee**" has the meaning provided in Section 17 (*Indemnification*).

"**Indenture**" means that certain [_____], dated [as of] [_____], between the Borrower and the Trustee.[32]

"**Indenture Documents**" means the Indenture, each Supplemental Indenture, each Hedging Agreement, each Liquidity Facility, and each other agreement, instrument and document executed and delivered pursuant to or in connection with any of the foregoing.[33]

"**Initial Obligations**" means [(a)] the [*describe the specific Bonds, etc.*] of the Borrower issued in connection with the Project under the Indenture, to the extent issued or incurred on [or within [_____] days after] the Effective Date [and (b) the Project BANs].

"**Initial Qualified Hedge**" means the initial Qualified Hedge entered into on or prior to the Effective Date.

"**Insolvency Laws**" means the United States Bankruptcy Code, 11 U.S.C. § 101 *et seq*., as from time to time amended and in effect, and any state bankruptcy, insolvency, receivership, conservatorship or similar law now or hereafter in effect.

["**Interest Commencement Date**" means, with respect to any particular Deferred Interest Bond, the date determined by the Supplemental Indenture for such Deferred Interest Bond after which interest accruing on such Deferred Interest Bond shall be payable on the first interest payment date succeeding such Interest Commencement Date and periodically thereafter on the dates determined pursuant to such Supplemental Indenture.][34]

"**Interim Payment Date**" means any day occurring during a Payment Period that (a) is a date on which interest on or principal of Senior Obligations, Pari Passu Obligations, or Subordinated Obligations is scheduled to be paid and (b) is not a Semi-Annual Payment Date.

"**Interim Payment Period**" means, at any time that interest on or principal of any Senior Obligations, Pari Passu Obligations, or Subordinated Obligations is scheduled to be paid on an Interim Payment Date, any period from (and including) the immediately preceding Payment Date to (but excluding) such Interim Payment Date.

"**Investment Grade Rating**" means a public rating no lower than 'BBB-', 'Baa3' or the equivalent public rating from a Rating Agency.

"**ISDA Master Agreement**" means a master agreement, entered into by the Borrower and a Hedging Bank, in the form published by the International Swaps and Derivatives Association, Inc.

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[32] References to "**Indenture**" may be changed throughout the agreement to be consistent with the type of instrument used by the Borrower for other related indebtedness (e.g., Bond Resolution, Trust Agreement, etc.).

[33] Defined term should (as appropriate) be changed based on the financing structure/documentation and nomenclature for the transaction.

[34] To be used in transactions in which the Senior Obligations include Deferred Interest Bonds.

[“**Issuer**” means the Governmental Authority that issues, or provides for the issuance of, Permitted Debt pursuant to the Indenture Documents.][35]

[“**Level Payment Commencement Date**” means [___]].[36]

[“**Level Payment Period**” means the period commencing on the Level Payment Commencement Date and ending on the Final Maturity Date (or on such earlier date as all amounts due or to become due to the TIFIA Lender hereunder have been irrevocably paid in full in cash).][37]

“**Lien**” means any mortgage, pledge, hypothecation, assignment, mandatory deposit arrangement, encumbrance, attachment, lien (statutory or other), charge or other security interest, or preference, priority or other security agreement or preferential arrangement of any kind or nature whatsoever, including any sale-leaseback arrangement, any conditional sale or other title retention agreement, any financing lease having substantially the same effect as any of the foregoing, and the filing of any financing statement or similar instrument under the UCC or any other applicable law.

“**Liquidity Facility**” means any letter of credit, standby bond purchase agreement, line of credit, surety instrument or similar instrument, any bond insurance policy, or any agreement relating to the reimbursement of any payment thereunder (or any combination of the foregoing), that is obtained by the Borrower and is issued by a Qualified Issuer.

“**Loan Amortization Schedule**” means the Loan Amortization Schedule reflected in the applicable column of **Exhibit G**, as amended from time to time in accordance with Section 7 (*Outstanding TIFIA Loan Balance; Revisions to Exhibit G and Loan Amortization Schedule*).

[“**Loan Life Coverage Ratio**” means, as of each applicable Calculation Date, the ratio of (a) the present value of all projected Pledged Revenues (net of any expenses, payments, Debt Service, reimbursement obligations, or deposits to Reserve Accounts that are payable ahead of TIFIA Debt Service pursuant to the Indenture) for each Calculation Date from and including such Calculation Date to the Final Maturity Date, in each case discounted at the Weighted Average Interest Cost, using the most recent Revised Financial Model (or the Base Case Financial Model if no Revised Financial Model has been submitted to the TIFIA Lender), adjusted to take into account (i) actual results and updated Pledged Revenue projections and (ii) additional projected Pledged Revenues and Debt Service in connection with Additional

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[35] To be included when the Borrower is not the direct issuer of the applicable Permitted Debt but receives the proceeds of such Permitted Debt.

[36] To be included when applicable.

[37] To be included when applicable.

Obligations; to (b) the aggregate outstanding principal amount of all Senior Obligations and all Pari Passu Obligations and the Outstanding TIFIA Loan Balance on such Calculation Date.][38]

"**Loss Proceeds**" means any proceeds of insurance resulting from any Event of Loss.

["**Major Maintenance**" means all reasonably necessary periodic major overhaul and repair (excluding any maintenance or repair of a routine or ordinary course nature) of the Project, including the equipment and systems of the Project.][39]

["**Major Maintenance Costs**" means all expenses incurred or to be incurred by the Borrower relating to Major Maintenance.]

["**Major Maintenance Reserve Account**" has the meaning provided in the Indenture.]

"**Material Adverse Effect**" means a material adverse effect on (a) the Project or the Pledged Revenues, (b) the business, operations, properties, condition (financial or otherwise) or prospects of the Borrower [or any other Borrower Related Party,] (c) the legality, validity or enforceability of any material provision of any Indenture Document, TIFIA Loan Document or Principal Project Contract, (d) the ability of the Borrower[, any other Borrower Related Party] or any other Principal Project Party to enter into, perform or comply with any of its material obligations under any Indenture Document, TIFIA Loan Document or Principal Project Contract to which it is a party, (e) the validity, enforceability or priority of the Liens provided pursuant to the Authorizing Legislation or under the Indenture Documents on the Trust Estate in favor of the Secured Parties or (f) the TIFIA Lender's rights or remedies available under any TIFIA Loan Document.

"**NEPA**" means the National Environmental Policy Act of 1969, Pub. L. 91-190 (42 U.S.C. § 4321 et seq.), and any successor statute of similar import, and regulations thereunder, in each case as in effect from time to time.

"**NEPA Determination**" means the [Finding of No Significant Impact][Categorical Exclusion][Record of Decision] for the Project issued by [*insert name of appropriate USDOT modal agency field office*] on [___], 20[__] in accordance with NEPA.

"**Net Cash Flow**" means, with respect to any period, an amount equal to (a) all Project Revenues received by the Borrower during such period (excluding liquidated damages (other than delay liquidated damages), Loss Proceeds, and other extraordinary non-recurring items)

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[38] The Loan Life Coverage Ratio may be modified or deleted as appropriate to reflect the specific transaction and financing structure.

[39] To the extent applicable, include reference to any Principal Project Contract under which the Borrower has major maintenance obligations.

minus (b) all Operations and Maintenance Expenses paid during such period, minus (c) [other applicable items].[40]

"**Net Loss Proceeds**" means remaining Loss Proceeds after excluding any proceeds of business interruption insurance, delay-in-start-up insurance, proceeds covering liability of the Borrower to third parties and Loss Proceeds used or to be used by the Borrower to repair or restore the Project in accordance with Section [_____] of the Indenture.

"**Obligations**" means, as of any date, the TIFIA Loan and any issued and outstanding Senior Obligations [and][,] Pari Passu Obligations[and Subordinated Obligations].

"**OFAC**" means the Office of Foreign Assets Control of the United States Department of the Treasury.

"**Operations and Maintenance Expenses**" means all actual maintenance and operation costs (excluding costs of Capital Expenditures) incurred and paid (or, if applicable, forecasted to be incurred and paid) in connection with the operation and maintenance of the Project in any particular time period to which said term is applicable, including payments for taxes (excluding income taxes), insurance, consumables, advertising, marketing, [payments under real property agreements pursuant to which the Borrower has rights in the Project,][41] payments pursuant to any agreements for the management, operation or maintenance of the Project, reasonable legal fees and expenses paid by the Borrower in connection with the management, maintenance or operation of the Project, fees paid in connection with obtaining, transferring, maintaining or amending any Governmental Approvals, costs incurred in connection with the performance of environmental mitigation work to be carried out by the Borrower (but only to the extent such work has a useful life of less than twelve (12) months),[42] amounts required for the acquisition of any Qualified Hedge or for deposits into any account maintained in accordance with the Indenture Documents for such purposes and reasonable general and administrative expenses, but exclusive in all cases of noncash charges, including depreciation or obsolescence charges or reserves therefor, amortization of intangibles or other bookkeeping entries of a similar nature.[43]

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[40] This definition is subject to revision on a transaction by transaction basis. Deductions from Project Revenues under clause (b) of this definition will reflect items that are paid ahead of TIFIA Debt Service in the Indenture waterfall provision and items the non-payment of which could result in an Event of Default or an event of default under the Indenture Documents. Also subject to revision for projects which are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project and for transactions involving a gross pledge.

[41] Subject to revision depending on the nature of the real property arrangement and payments, in particular where the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project. Payments under capital leases and joint development projects may require treatment as Capital Expenditures.

[42] To the extent these costs relate to the Project and are Eligible Project Costs, these costs must be treated as Capital Expenditures.

[43] Can be modified to be consistent with similar defined term used in the Indenture or another Indenture Document subject to TIFIA Lender approval, including ensuring conformity with federal aid rules regarding maintenance expenses.

"**Organizational Documents**" means: (a) with respect to any Person that is a Governmental Authority, (i) the constitutional and statutory provisions that are the basis for the existence and authority of such Governmental Authority, including any enabling statutes, ordinances or public charters and any other organic laws establishing such Governmental Authority and (ii) the bylaws, code of regulations, operating procedures or other organizational documents of or adopted by such Governmental Authority by which such Governmental Authority, its powers, operations or procedures or its securities, bonds, notes or other obligations are governed or from which such powers are derived; and (b) with respect to a Person that is not a Governmental Authority, (i) to the extent such Person is a corporation, the certificate or articles of incorporation and the by-laws of such Person, (ii) to the extent such Person is a limited liability company, the certificate of formation or articles of formation or organization and operating or limited liability company agreement of such Person and (iii) to the extent such Person is a partnership, joint venture, trust or other form of business, the partnership, joint venture or other applicable agreement of formation or organization and any agreement, instrument, filing or notice with respect thereto filed in connection with its formation or organization with the applicable Governmental Authority in the jurisdiction of its formation or organization and, if applicable, any certificate or articles of formation or organization or formation of such Person.

["**Other Loan Documents**" has the meaning provided in Section 19(a)(vi) (*Cross Default to Financing Documents*).]

["**Other Material Indebtedness**" has the meaning provided in Section 19(a)(vi) (*Cross Default to Financing Documents*).]

"**Outstanding TIFIA Loan Balance**" means the aggregate principal amount drawn by the Borrower and then outstanding (including capitalized interest) with respect to the TIFIA Loan, as determined in accordance with Section 7 (*Outstanding TIFIA Loan Balance; Revisions to Exhibit G and Loan Amortization Schedule*).

"**Pari Passu Obligations**" means Existing Indebtedness, Initial Obligations, and Additional Obligations that are *pari passu* with the TIFIA Bond.

"**Patriot Act**" means the USA PATRIOT Act, also known as the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, Pub. L. 107-56, as amended from time to time, and any successor statute of similar import, and the regulations promulgated thereunder.

"**Payment Date**" means each Semi-Annual Payment Date or Interim Payment Date.

"**Payment Default**" has the meaning provided in Section 19(a)(i) (*Payment Default*).

"**Payment Period**" means any period of six (6) months from (and including) a Semi-Annual Payment Date to (but excluding) the immediately succeeding Semi-Annual Payment Date, commencing with the six (6) month period ending on the date immediately prior to the Debt Service Payment Commencement Date.

"**Permitted Debt**" means:[44]

(a) Existing Indebtedness;

(b) the TIFIA Loan;

(c) the Initial Obligations;

(d) Additional Obligations permitted under Section 16(a) (*Indebtedness*) and under the Indenture;

(e) [any bond, note, certificate, warrant, lease, contract or other financial obligation or security of the Borrower that is not, in whole or in part, secured by a Lien on, or payable from, the [Pledged Revenues]/[Trust Estate]];[45]

(f) reimbursement obligations in respect of letters of credit, and other financial obligations, arising under the Principal Project Contracts or any other agreement executed by the Borrower in connection with the Project that are payable as Total Project Costs, Eligible Project Costs or Operations and Maintenance Expenses and that do not in the aggregate have face amounts exceeding $[5,000,000];

(g) purchase money obligations or capitalized leases incurred to finance discrete items of equipment not comprising an integral part of the Project that qualify as Operations and Maintenance Expenses, which obligations and leases do not require payments by the Borrower in any Borrower Fiscal Year in excess of $[500,000] in the aggregate;

(h) [trade accounts payable (other than for borrowed money) so long as such trade accounts payable are payable not later than ninety (90) days after the respective goods are delivered or the respective services are rendered;]

(i) [Pari Passu Obligations;][Subordinated Obligations;][46]

(j) [working capital loans that are payable as Operations and Maintenance Expenses; provided that the principal amount of such loans shall not exceed $[5,000,000] in the aggregate at any time and shall be repaid within three (3) years of the incurrence thereof; and]

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[44] Certain clauses of this definition (e.g., clauses (g), (i) and (j)) may be inapplicable to projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[45] Applicable where the Borrower has multiple independent indenture structures (e.g., a state department of transportation with multiple toll roads, each governed by a separate indenture).

[46] To be included where applicable, subject to the additional requirements for Pari Passu Obligations and Subordinated Obligations. See Footnote to definitions of "Additional Obligations" and "Subordinated Obligations." See also Section 16(a) (*Indebtedness*) and the Footnotes thereto.

(k) indebtedness incurred in respect of Qualified Hedges.

(l) Liquidity Facilities in an aggregate face amount that does not exceed $[_____] at any time; provided, that the undrawn face amount of Liquidity Facilities maintained in respect of Put Bonds shall be disregarded for purposes of determining the aggregate face amount of outstanding Liquidity Facilities.[47]

"**Permitted Hedging Termination**" means the early termination, in whole or in part, of any Qualified Hedge (a) at the request of the Borrower as a result of a determination by the Borrower that such (or any part of such) Qualified Hedge is no longer necessary or required under the terms of this Agreement, (b) pursuant to the terms of any Hedging Agreement evidencing such Qualified Hedge that provides for the notional amount of such Qualified Hedge to amortize or otherwise be reduced from time to time or (c) as may be required pursuant to Section 15(o)(vii) (*Hedging*).

"**Permitted Investments**" means (with respect to the investment of the proceeds of the TIFIA Loan or any construction or reserve account established and maintained pursuant to the Indenture):

(a) Government Obligations;

(b) certificates of deposit where the certificates are collaterally secured by securities of the type described in clause (a) of this definition and held by a third party as escrow agent or custodian, of a market value not less than the amount of the certificates of deposit so secured, including interest, but this collateral is not required to the extent the certificates of deposit are insured by the Federal Government;

(c) repurchase agreements with counterparties that have an Acceptable Credit Rating, when collateralized by securities of the type described in clause (a) of this definition and held by a third party as escrow agent or custodian, of a market value not less than the amount of the repurchase agreement so collateralized, including interest;

(d) investment agreements or guaranteed investment contracts rated, or with any financial institution whose senior long-term debt obligations are rated, or guaranteed by a financial institution whose senior long-term debt obligations are rated in one of the two (2) highest Rating Categories for comparable types of obligations by any Rating Agency; and

(e) money market funds that invest solely in obligations of the United States of America, its agencies and instrumentalities, and having a rating by a Rating Agency equal to the then applicable rating of the United States of America by such Rating Agency.

"**Permitted Liens**" means:

[47] Dollar limits on Liquidity Facilities to be determined on a case-by-case basis.

(a) Liens imposed pursuant to the TIFIA Loan Documents;

(b) Liens imposed by law for taxes that are not yet due or are being contested in compliance with Section 15(n) (*Material Obligations; Liens*);

(c) carriers', warehousemen's, mechanics', materialmen's, repairmen's and other like Liens imposed by law, arising in the ordinary course of business and securing obligations that are not overdue by more than thirty (30) days or are being contested in compliance with Section 15(n) (*Material Obligations; Liens*);

(d) pledges and deposits made in the ordinary course of business in compliance with workers' compensation, unemployment insurance, and other social security laws or regulations;

(e) deposits to secure the performance of bids, trade contracts, leases, statutory obligations, surety and appeal bonds, performance bonds and other obligations of a like nature, in each case in the ordinary course of business;

(f) judgment Liens in respect of judgments that do not constitute an Event of Default under Section 19(a)(viii) (*Judgments*);

(g) easements, zoning restrictions, rights-of-way and similar encumbrances on real property imposed by law or arising in the ordinary course of business that, in any case, do not secure any monetary obligations and do not materially detract from the value of the affected property or interfere with the ordinary conduct of business of the Borrower;

[(h) any Lien on any property or asset of the Borrower existing on the Effective Date; provided that (i) such Lien shall not apply to any other property or asset of the Borrower and (ii) such Lien shall secure only those obligations which it secures on the Effective Date and extensions, renewals and replacements thereof that do not increase the outstanding principal amount thereof;]

(i) any Lien existing on any property or asset prior to the acquisition thereof by the Borrower; provided that (i) such Lien is not created in contemplation of or in connection with such acquisition, (ii) such Lien shall apply solely to the acquired asset and not to any other property or assets of the Borrower, and (iii) such Lien shall secure only those obligations which it secures on the date of such acquisition, and extensions, renewals and replacements thereof that do not increase the outstanding principal amount thereof; and

(j) purchase money security interests in equipment hereafter acquired by the Borrower; provided that (i) such security interests secure indebtedness for borrowed money permitted by Section 16(a) (*Indebtedness*), (ii) such security interests are incurred, and the indebtedness secured thereby is created, within ninety (90) days after such acquisition, (iii) the indebtedness secured thereby does not exceed the fair market value of such equipment at the time of such acquisition, and (iv) such security interests do not

apply to any other property or assets (other than accessions to such equipment) of the Borrower.

"**Person**" means and includes an individual, a general or limited partnership, a joint venture, a corporation, a limited liability company, a trust, an unincorporated organization and any Governmental Authority.

["**Pledged Revenues**" means (a) all income, tolls, revenues, rates, fees, charges, rentals, fares, availability payments, milestone payments, delay liquidated damages, proceeds from business interruption and delay in start-up insurance policies, Net Loss Proceeds, or other receipts, in each case derived by or related to the operation or ownership of the Project, including all amounts from joint development or leasing of air space lease rights, (b) any revenues assigned to the Borrower and proceeds of the sale or other disposition of all or any part of the Project, and (c) all income derived from Permitted Investments in any Project Account.][48]

"**Principal Project Contracts**" means [i*nsert all relevant project contracts on a project-by-project basis*].

"**Principal Project Party**" means any Person (other than the Borrower) party to a Principal Project Contract.

"**Project**" means [*insert description of the project*].

"**Project Accounts**" means the [Construction Account, Major Maintenance Reserve Account, Revenue Account, TIFIA Debt Service Account, TIFIA Debt Service Reserve Account, Debt Service Reserve Account, and [_____].]

["**Project BANs**" means the [*describe the specific Bonds, etc.*] to be issued on or about [●], in the not to exceed par amount of $[●], the proceeds of which are anticipated to be applied to the payment of Eligible Project Costs.][49]

"**Project Budget**" means the budget for the Project in the aggregate amount of $[*insert Project budget amount*] attached to this Agreement as **Schedule I** showing a summary of Total Project Costs with a breakdown of all Eligible Project Costs [by SCC][50] and the estimated sources and uses of funds for the Project, as amended from time to time subject to the reporting requirements in Section 22(b) (*Quarterly Construction Progress Report*).

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[48] To be revised to reflect the specific transaction, particularly where the Pledged Revenues are not connected to operation of the Project.

[49] To be used when financing structure anticipates TIFIA Loan being used to redeem bond anticipation notes and subject to modification to fit the financing structure. Note that Project BANs must have a scheduled maturity date that is not later than one year after the Projected Substantial Completion Date.

[50] Use if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

["**Project Revenues**" means all income, tolls, revenues, rates, fees, charges, rentals, fares, availability payments, [milestone payments], delay liquidated damages, proceeds from business interruption and delay in start-up insurance policies, or other receipts derived by or related to the operation or ownership of the Project, including all amounts from joint development or leasing of air space lease rights.][51]

"**Projected Substantial Completion Date**" means [*insert date*].

"**Put Bonds**" means any bond that by its terms may be tendered by and at the option of the holder thereof for payment prior to the stated maturity or redemption date thereof either (a) by [the Issuer or] the Borrower and by the Person and/or from the source specified in a Supplemental Indenture or (b) without recourse to [the Issuer or] the Borrower, by the Person and/or from the source specified in a Supplemental Indenture.

"**Qualified Hedge**" means, to the extent from time to time permitted by law, with respect to Permitted Debt any Hedging Transaction entered into with a Qualified Hedge Provider and meeting the requirements of Section 15(o) (*Hedging*).

"**Qualified Hedge Provider**" means any bank or trust company authorized to engage in the banking business that is organized under or licensed as a branch or agency under the laws of the United States of America or any state thereof that has an Acceptable Credit Rating.[52]

"**Qualified Issuer**" means (i) with respect to any Liquidity Facility issued by a bank or trust company, any bank or trust company authorized to engage in the banking business that is organized under or licensed as a branch or agency under the laws of the United States of America or any state thereof that has an Acceptable Credit Rating. and (ii) with respect to any Liquidity Facility issued by an insurance company or other financial institution, any insurance company or other financial institution that is authorized and qualified to do business by the state insurance commissioner of its jurisdiction of organization and of the State and that has an Acceptable Credit Rating.

"**Quarterly Traffic and Operating Report**" means a traffic and operating report showing (a) the operating data for the Project for the financial quarter preceding the applicable date of delivery of such report, including total Project Revenues received and total Operations and Maintenance Expenses and Capital Expenditures incurred, (b) the variances for such preceding financial quarter between the Project Revenues actually received and the budgeted Project Revenues as shown in the Financial Plan most recently submitted to the TIFIA Lender, together with a brief narrative explanation of the reasons for any such variance of [ten percent (10%)] or more, and (c) the variances for such preceding financial quarter between the actual Operations and Maintenance Expenses incurred and the budgeted Operations and Maintenance

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[51] To be revised to reflect the specific transaction.

[52] If Senior Obligations consist of commercial bank loans, the TIFIA Lender's consent will be required for any Qualified Hedge Provider that is not also making loans to the Borrower.

Expenses as shown in the Financial Plan, together with a brief narrative explanation of the reasons for any such variance of [ten percent (10%)] or more.] [53]

"**Rate Coverage Test**" has the meaning provided in Section 15(l) (*Rate Coverage*).

"**Rating Agency**" means a rating agency registered with the Securities and Exchange Commission as a nationally recognized statistical rating organization (as defined in 15 U.S.C. §78c(a)(62)).

"**Rating Category**" means one of the generic rating categories of a Rating Agency without regard to any refinement or gradation of such rating by a numerical modifier or otherwise.

["**Recovery Plan**" means a recovery plan with respect to the construction of the Project that has been prepared by the Borrower and delivered to the TIFIA Lender and the FTA Regional Office, which plan includes a certificate from the Borrower's Authorized Representative concluding that Substantial Completion is likely to occur by the date specified in the recovery plan.][54]

"**Related Documents**" means the Indenture Documents, the TIFIA Loan Documents, the Hedging Agreements (if any) and the Principal Project Contracts.

"**Requisition**" has the meaning provided in Section 4(a) (*Disbursement Conditions*).

"**Reserve Accounts**" means the Debt Service Reserve Account, the TIFIA Debt Service Reserve Account, [the Major Maintenance Reserve Account,] and [_____].

"**Revenue Account**" has the meaning provided in the Indenture.

"**Revised Financial Model**" means an updated version of the Base Case Financial Model, in form and substance satisfactory to the TIFIA Lender, taking into account changes in projected revenues, expenditures or other modeling assumptions since the delivery of the Base Case Financial Model (or, as applicable, the most recently submitted Revised Financial Model) and including a change log describing such changes.[55]

"**Sanctioned Country**" means, at any time, a country or territory which is itself the subject or target of any Sanctions.

"**Sanctioned Person**" means, at any time, (a) any Person listed in any Sanctions-related list of designated Persons maintained by OFAC or the U.S. Department of State, (b) any Person

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[53] To be modified on a case by case basis, depending upon the nature of the Pledged Revenues.

[54] Applicable if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[55] The form and content of the Revised Financial Model will be determined on transaction by transaction basis.

operating, organized or resident in a Sanctioned Country, or (c) any Person owned or Controlled by any such Person or Persons.

"**Sanctions**" means economic or financial sanctions or trade embargoes imposed, administered or enforced from time to time by the Federal Government, including those administered by OFAC or the U.S. Department of State.

["**SCC**" means Standard Cost Categories implemented by the FTA.][56]

"**Secretary**" means the United States Secretary of Transportation.

"**Secured Obligations**" means the Senior Obligations, the obligations of the Borrower under this Agreement and the TIFIA Bond, [the Pari Passu Obligations,] [the Subordinated Obligations,] the Hedging Obligations and the Hedging Termination Obligations.

"**Secured Parties**" means the Trustee, the TIFIA Lender, any other Bondholders, and the Hedging Banks.

"**Semi-Annual Coverage Certificate**" has the meaning provided in Section 21(b) (*Semi-Annual Coverage Certificates*).

"**Semi-Annual Payment Date**" means each [*January 1*] and [*July 1*].[57]

"**Senior Obligations**" means (a) Existing Indebtedness that is senior to the TIFIA Bond, (b) Initial Obligations that are senior to the TIFIA Bond, and (c) any Additional Obligations that are senior to the TIFIA Bond.

"**Servicer**" means such entity or entities as the TIFIA Lender shall designate from time to time to perform, or assist the TIFIA Lender in performing, certain duties hereunder.

"**State**" has the meaning provided in the preamble hereto.

"**Subordinated Hedging Termination Obligations**" means Hedging Termination Obligations under any Hedging Agreement other than those arising as a result of a Permitted Hedging Termination or as a result of a tax or illegality event or upon failure of the Borrower to pay any Hedging Obligations when due.

["**Subordinated Obligations**" means indebtedness of the Borrower that is subordinate to the TIFIA Loan and the Pari Passu Obligations in right of payment and in lien priority and that is issued pursuant to Section [___] of the Indenture, payable solely from monies released from the

[56] Applicable if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[57] September 30 cannot be used as a Semi-Annual Payment Date.

[insert applicable Project Account][, and issued on terms and conditions acceptable to the TIFIA Lender][58].]

"**Subsequent Qualified Hedge**" has the meaning provided in Section 15(o)(iii) (*Hedging*).

"**Substantial Completion**" means [the opening of the Project to [vehicular/passenger] traffic] [*insert description of comparable event*].[59]

"**Substantial Completion Date**" means the date on which Substantial Completion occurs.

"**Supplemental Indenture**" means an indenture supplementing or modifying the provisions of the Indenture entered into by the Borrower and the Trustee in accordance with Article [____] of the Indenture.[60]

"**Tax Code**" means the Internal Revenue Code of 1986, as amended from time to time, and any successor statute of similar import, and the regulations promulgated thereunder.

"**TIFIA**" has the meaning provided in the recitals hereto.

"**TIFIA Bond**" means the Bond delivered by the Borrower in substantially the form of **Exhibit A**.[61]

"**TIFIA Debt Service**" means with respect to any Semi-Annual Payment Date occurring on or after the Debt Service Payment Commencement Date, the principal portion of the Outstanding TIFIA Loan Balance and any interest payable thereon (including interest accruing after the date of any filing by the Borrower of any petition in bankruptcy or the commencement of any bankruptcy, insolvency or similar proceeding with respect to the Borrower) at the TIFIA Interest Rate (or, as applicable, the Default Rate), in each case (a) as set forth on **Exhibit G**, and (b) due and payable on such Semi-Annual Payment Date in accordance with the provisions of Section 9(c) (*Payment of TIFIA Debt Service*) [and Section 9(d) (*Fixed Level Payments*)][62].

"**TIFIA Debt Service Account**" has the meaning provided in the [Indenture][the TIFIA Supplemental Indenture].

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58 Inclusion of Subordinated Obligations to be determined by the TIFIA Lender on a case by case basis, Terms and conditions of subordination for any Subordinated Obligations must be satisfactory to the TIFIA Lender.

59 If applicable, this definition may be revised to describe any such "comparable event."

60 References to "**Supplemental Indenture**" may be changed throughout the agreement to be consistent with the type of instrument used by the Borrower for other related indebtedness (e.g., Supplemental Bond Resolution, Supplemental Trust Agreement, Series Trust Indenture, etc.).

61 References to "**Bond**" may be changed as appropriate (e.g., "Note") based on the financing structure/documentation and nomenclature for the transaction.

62 To be included where the amortization schedule includes a Level Payment Period.

"**TIFIA Debt Service Reserve Account**" has the meaning provided in the [Indenture][the TIFIA Supplemental Indenture].

"**TIFIA Debt Service Reserve Required Balance**" means [_____].

"**TIFIA Interest Rate**" has the meaning provided in Section 6 (*Interest Rate*).

"**TIFIA Lender**" has the meaning provided in the preamble hereto.

"**TIFIA Lender's Authorized Representative**" means the Executive Director and any other Person who shall be designated as such pursuant to Section 26 (*TIFIA Lender's Authorized Representative*).

"**TIFIA Loan**" means the secured loan made by the TIFIA Lender to the Borrower on the terms and conditions set forth herein, pursuant to the Act, in a principal amount not to exceed [_____] (excluding capitalized interest), to be used in respect of Eligible Project Costs paid or incurred by or on behalf of the Borrower.

"**TIFIA Loan Documents**" means this Agreement, the TIFIA Bond, the TIFIA Supplemental Indenture, and the other Indenture Documents.

"**TIFIA Supplemental Indenture**" means that certain [__] Supplemental Indenture, dated as of the date hereof, between the Borrower and the Trustee in connection with the issuance of the TIFIA Bond.

"**Total Debt Service Coverage Ratio**" means, for any Calculation Period, the ratio of Pledged Revenues (net of any expenses, payments, reimbursement obligations, or Reserve Account deposits that have payment priority over, respectively, Debt Service in respect of any Senior Obligations, TIFIA Debt Service or Debt Service in respect of any Pari Passu Obligations) for such Calculation Period to the sum of (a) Debt Service in respect of all Senior Obligations for such Calculation Period, (b) Debt Service in respect of all Pari Passu Obligations for such Calculation Period, [and] (c) TIFIA Debt Service for such Calculation Period, [and (d) Debt Service in respect of all Subordinated Obligations for such Calculation Period][63].

"**Total Project Costs**" means (a) the costs paid or incurred or to be paid or incurred by [the Borrower] [a Borrower Related Party] in connection with or incidental to the acquisition, design, construction and equipping of the Project, including legal, administrative, engineering, planning, design, insurance, and costs of issuance; (b) amounts, if any, required by the Indenture Documents or the TIFIA Loan Documents to be paid into any fund or account upon the incurrence of the TIFIA Loan or any Senior Obligations; (c) payments when due (whether at the maturity of principal, the due date of interest, or upon optional or mandatory prepayment) during the Construction Period in respect of any indebtedness of the Borrower, including any Liquidity Facility maintained by the Borrower, in each case in connection with the Project (other than the

[63] The Total Debt Service Coverage Ratio may be further modified to reflect the specific transaction and financing structure.

TIFIA Loan); and (d) costs of equipment and supplies and initial working capital and reserves required by the Borrower for the commencement of operation of the Project, including general administrative expenses and overhead of the Borrower.[64]

["**Traffic and Revenue Study**" means the Final Traffic and Revenue Study for the Project, dated [_____], prepared by the Traffic Consultant, and any amendments, supplements or updates thereto.]

["**Traffic Consultant**" means initially [_____], and any replacement traffic consultant firm selected by the Borrower and not objected to by the TIFIA Lender within fifteen (15) Business Days after receiving notice from the Borrower of the name of the proposed traffic consultant, together with supporting information regarding the qualifications of the proposed traffic consultant.]

"**True Interest Cost**" means the rate necessary to discount the cumulative amounts payable on the respective Payment Dates in respect of Debt Service to the original purchase price of the Senior Obligations or Pari Passu Obligations (taking into account discounts, premiums and transaction costs) on the basis of semi-annual compounding of interest.

"**Trust Estate**" has the meaning provided in the Indenture.[65]

"**Trustee**" means [_____].

"**Uncontrollable Force**" means any cause beyond the control of the Borrower, including: (a) a hurricane, tornado, flood or similar occurrence, landslide, earthquake, fire or other casualty, strike or labor disturbance, freight embargo, act of a public enemy, explosion, war, blockade, terrorist act, insurrection, riot, general arrest or restraint of government and people, civil disturbance or similar occurrence, sabotage, or act of God (provided that the Borrower shall not be required to settle any strike or labor disturbance in which it may be involved) or (b) the order or judgment of any federal, state or local court, administrative agency or governmental officer or body, if it is not also the result of willful or negligent action or a lack of reasonable diligence of the Borrower and the Borrower does not control the administrative agency or governmental officer or body; provided that the diligent contest in good faith of any such order or judgment shall not constitute or be construed as a willful or negligent action or a lack of reasonable diligence of the Borrower.

"**Uniform Commercial Code**" or "**UCC**" means the Uniform Commercial Code, as in effect from time to time in the State.

"**USDOT**" means the United States Department of Transportation.

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[64] Subject to modification if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[65] If reasonably practicable, the full definition of Trust Estate (or the applicable term) from the Indenture will be reproduced here.

["**Valuation Date**" means (a) with respect to any Capital Appreciation Bonds, the date or dates set forth in the Supplemental Indenture authorizing such Capital Appreciation Bonds on which specific Accreted Values are assigned to the Capital Appreciation Bonds and (b) with respect to any Deferred Interest Bonds, the date or dates on or prior to the Interest Commencement Date set forth in the Supplemental Indenture authorizing such Deferred Interest Bonds on which specific Appreciated Values are assigned to the Deferred Interest Bonds.][66]

"**Variable Interest Rate**" means a variable interest rate to be borne by any Permitted Debt. The method of computing such variable interest rate shall be specified in the Supplemental Indenture pursuant to which such Permitted Debt is incurred. Such Supplemental Indenture shall also specify either (a) the particular period or periods of time for which each value of such variable interest rate shall remain in effect, or (b) the time or times upon which any change in such variable interest rate shall become effective.

"**Variable Interest Rate Bonds**" means Permitted Debt which bears a Variable Interest Rate but does not include any Permitted Debt for which the interest rate has been fixed during the remainder of the term thereof to maturity; provided, however, that Permitted Debt bearing a Variable Interest Rate shall not be deemed Variable Interest Rate Bonds if the [Issuer or the] Borrower has entered into a Qualified Hedge with respect to such Permitted Debt during the period for which such Qualified Hedge is in effect; provided, further, that Permitted Debt bearing a fixed rate of interest shall be deemed Variable Interest Rate Bonds to the extent that the [Issuer or the] Borrower has entered into a Qualified Hedge pursuant to which the Borrower [or Issuer] is obligated to pay a floating rate of interest and receives a fixed rate of interest and shall be deemed to bear interest at the lesser of the rate determined pursuant to clause (a) of the definition of the term Debt Service or the maximum interest rate, if any, payable pursuant to such Qualified Hedge.

"**Variable Interest Rate Obligations**" means any Senior Obligations [or][,] Pari Passu Obligations[, or Subordinated Obligations] under the Indenture that accrue interest at a Variable Interest Rate.

"**Weighted Average Interest Cost**" means, for each Semi-Annual Payment Date, a rate calculated as follows: the sum of (a) the applicable True Interest Cost(s) for the Senior Obligations multiplied by the ratio of (i) the current Senior Obligations principal amount then outstanding to (ii) the aggregate principal amount of each of the Senior Obligations, the Pari Passu Obligations, and the Outstanding TIFIA Loan Balance as of such Semi-Annual Payment Date; (b) the applicable True Interest Cost(s) for the Pari Passu Obligations multiplied by the ratio of (i) the Pari Passu Obligations principal amount then outstanding to (ii) the aggregate principal amount of each of the Senior Obligations, the Pari Passu Obligations, and the Outstanding TIFIA Loan Balance as of such Semi-Annual Payment Date and (c) the interest rate on the TIFIA Loan multiplied by the ratio of (i) the current Outstanding TIFIA Loan Balance to

[66] To be used in transactions in which the Obligations include Capital Appreciation Bonds or Deferred Interest Bonds.

(ii) the aggregate principal amount of each of the Senior Obligations, the Pari Passu Obligations, and the TIFIA Loan as of such Semi-Annual Payment Date.[67]

Section 2. Interpretation. Unless the context shall otherwise require, the words "hereto," "herein," "hereof," and other words of similar import refer to this Agreement as a whole. Words of the masculine gender shall be deemed and construed to include correlative words of the feminine and neuter genders and vice versa. Words importing the singular number shall include the plural number and vice versa unless the context shall otherwise require. The words "include," "includes" and "including" shall be deemed to be followed by the phrase "without limitation." Whenever the Borrower's knowledge is implicated in this Agreement or the phrase "to the Borrower's knowledge" or a similar phrase is used in this Agreement, the Borrower's knowledge or such phrase(s) shall be interpreted to mean to the best of the Borrower's knowledge after reasonable and diligent inquiry and investigation. Unless the context shall otherwise require, references to any Person shall be deemed to include such Person's successors and permitted assigns. Unless the context shall otherwise require, references to preambles, recitals, sections, subsections, clauses, schedules, exhibits, appendices and provisions are to the applicable preambles, recitals, sections, subsections, clauses, schedules, exhibits, appendices and provisions of this Agreement. The schedules and exhibits to this Agreement, and the appendices and schedules to such exhibits, are hereby incorporated by reference and made an integral part of this Agreement. The headings or titles of this Agreement and its sections, schedules or exhibits, as well as any table of contents, are for convenience of reference only and shall not define or limit its provisions. Unless the context shall otherwise require, all references to any resolution, contract, agreement, lease or other document shall be deemed to include any amendments or supplements to, or modifications or restatements or replacements of, such documents that are approved from time to time in accordance with the terms thereof and hereof. Every request, order, demand, application, appointment, notice, statement, certificate, consent or similar communication or action hereunder by any party shall, unless otherwise specifically provided, be delivered in writing in accordance with Section 36 (*Notices; Payment Instructions*) and signed by a duly authorized representative of such party.

Section 3. TIFIA Loan Amount. The principal amount of the TIFIA Loan shall not exceed $[*insert maximum principal amount of TIFIA loan*]. TIFIA Loan proceeds shall be disbursed from time to time in accordance with Section 4 (*Disbursement Conditions*) and Section 12(b) (*Conditions Precedent to All Disbursements*).[68]

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67 Definition to include Subordinated Obligations, where appropriate.

68 The maximum principal amount of the TIFIA Loan disbursed by the TIFIA Lender (excluding any interest that is capitalized in accordance with the terms hereof), together with the amount of any other credit assistance provided under the Act to the Borrower, shall not exceed thirty-three percent (33%) (or, for "rural infrastructure projects" (as defined in the Act), 49%) of the reasonably anticipated Eligible Project Costs (please consult the Notice of Funding Availability regarding amounts above thirty-three percent (33%) for projects other than rural infrastructure projects) . The total federal assistance provided to the Project shall not exceed eighty percent (80%) of Total Project Costs.

Section 4. Disbursement Conditions.

(a) TIFIA Loan proceeds shall be disbursed solely in respect of Eligible Project Costs paid or incurred by or on behalf of the Borrower in connection with the Project. The Borrower acknowledges and agrees that any costs incurred in connection with the Project prior to receipt of all necessary authorizations from the USDOT in respect of such costs (which may include approvals of prior-incurred costs) are incurred solely at the Borrower's risk and expense, will not constitute Eligible Project Costs, and no TIFIA Loan proceeds will be disbursed in respect thereof, unless and until such authorizations have been received. If the Borrower intends to utilize the TIFIA Loan proceeds to make progress payments for the Project construction work performed under the Construction Agreements, the Borrower shall demonstrate to the satisfaction of the TIFIA Lender that such progress payments are commensurate with the value of the work that has been completed. Each disbursement of the TIFIA Loan shall be made pursuant to a requisition and certification (a "**Requisition**") in the form set forth in **Appendix One** to **Exhibit D**, along with all documentation and other information required thereby, submitted by the Borrower to the TIFIA Lender, all in accordance with the procedures of **Exhibit D** and subject to the requirements of this Section 4 (*Disbursement Conditions*) and the conditions set forth in Section 12(b) (*Conditions Precedent to All Disbursements*); provided, however, that no disbursements of TIFIA Loan proceeds shall be made on or after the date that is one (1) year after the Substantial Completion Date.

(b) The Borrower shall deliver copies of each Requisition to the TIFIA Lender, the Servicer (if any) and the [appropriate USDOT modal agency field office] on or before the first (1st) Business Day of each month for which a disbursement is requested. Subject to Section 4(d), if the TIFIA Lender does not expressly deny a Requisition, disbursements of funds shall be made on the fifteenth (15th) day of the month for which a disbursement has been requested, or on the next succeeding Business Day if such fifteenth (15th) day is not a Business Day. Express denial of a Requisition by the TIFIA Lender shall be provided substantially in the form attached as Appendix Two to Exhibit D (Requisition Procedures). In no event shall disbursements be made more than once each month.

(c) The Borrower may amend the Anticipated TIFIA Loan Disbursement Schedule by submitting a revised version thereof to the TIFIA Lender no later than thirty (30) days prior to the proposed effective date of such amendment, together with a detailed explanation of the reasons for such revisions.

(d) [As a condition to each disbursement of the TIFIA Loan, the Borrower shall provide to the TIFIA Lender evidence satisfactory to the TIFIA Lender that, prior thereto or simultaneously therewith, a disbursement of [Senior Obligation proceeds][*other funding sources*] has occurred such that as of any such TIFIA Loan disbursement, the aggregate amount of all disbursements of the TIFIA Loan (including the requested disbursement but excluding any interest that is capitalized in accordance with the terms hereof) shall not exceed [____] percent ([__]%) of the total amount of reasonably anticipated Eligible Project Costs.][69][70]

[69] This clause (d) will be included on a case by case basis where the commercial agreement includes a proportional disbursement requirement.

(cont'd from previous page)

[70] If the financing structure for the Project includes bond anticipation notes, it may be necessary to replace Section 4(c) and (d) with the following alternative provisions:

(c) The Borrower anticipates that it will draw down all of the proceeds of the TIFIA Loan to reimburse the Borrower for Eligible Project Costs paid by or on behalf of the Borrower prior to such disbursement of TIFIA Loan proceeds, including for the purpose of paying or redeeming the Project BANs. The Borrower shall deliver concurrently to the TIFIA Lender, the [*appropriate USDOT modal agency field office*], and the Servicer (if any) invoices and records evidencing Eligible Project Costs (the "**Eligible Project Costs Documentation**"), irrespective of whether such costs were paid with the proceeds of the Project BANs; provided that the Borrower must deliver all Eligible Project Costs Documentation associated with any Eligible Project Costs included in a Requisition delivered to the TIFIA Lender, the [*appropriate USDOT modal agency field office*], and the Servicer (if any) by the applicable following date: (i) with respect to Eligible Project Costs incurred by or on behalf of the Borrower prior to, and up to one (1) month after, the Effective Date, by the last Business Day of the second (2nd) month immediately following the Effective Date and (ii) with respect to Eligible Project Costs incurred by or on behalf of the Borrower after the one-month period referred to in clause (i) above, by the last Business Day of each month immediately following such second (2nd) month referred to in clause (i) above.

(d) Each time the Borrower delivers Eligible Project Costs Documentation to the TIFIA Lender, the [*appropriate USDOT modal agency field office*], and the Servicer (if any), the Borrower shall also deliver to such entities a certificate, duly executed by the Borrower's Authorized Representative, certifying as to the following:

(i) the amount of Eligible Project Costs financed from the proceeds of Project BANs for the period of time for which such Eligible Project Costs Documentation is being provided;

(ii) that such proceeds of any Project BANs were expended solely in connection with the payment or reimbursement of Eligible Project Costs;

(iii) the amount of Eligible Project Costs paid by or on behalf of the Borrower from sources other than Project BANs and identifying such sources; and

(iv) that there does not currently exist any Event of Default or an event or condition that, with the lapse of time or giving of notice, would constitute an Event of Default (a "prospective Event of Default") or, if there does currently exist an Event of Default or prospective Event of Default, the certificate shall specify all the actions that the Borrower is taking to remedy such Event of Default or prospective Event of Default.

(e) The Eligible Project Costs Documentation submitted pursuant to Section 4(c) and the certificate delivered pursuant to Section 4(d) must be satisfactory to the TIFIA Lender. The Eligible Project Costs Documentation must provide sufficient detail to enable the TIFIA Lender to verify that such costs are Eligible Project Costs paid by or on behalf of the Borrower. The Eligible Project Costs Documentation and the certificate must provide sufficient detail to enable the TIFIA Lender to verify that proceeds of the Project BANs were expended for Eligible Project Costs for the Project and to audit such other Eligible Project Costs paid by or on behalf of the Borrower. The certificate and the Eligible Project Costs Documentation are intended to document Eligible Project Costs in connection with the reimbursement of such Eligible Project Costs or for the purpose of paying or redeeming, in whole or part, only those Project BANs in respect of which the proceeds were used to pay such documented Eligible Project Costs. The TIFIA Lender shall review each such certificate for compliance with TIFIA disbursement requirements. Within fourteen (14) Business Days following the receipt of the Eligible Project Costs Documentation and the accompanying certificate, the TIFIA Lender shall deliver a notice to the Borrower confirming the Eligible Project Costs set forth in the certificate that have been approved, or notifying the Borrower as to which Eligible Project Costs have not been approved, and confirming the cumulative amount of Eligible Project Costs approved as of the notice date. Such approved amounts of Eligible Project Costs will be disbursed at such time as the Borrower submits a Requisition in respect of such approved amounts in accordance with clauses (a) and (b) above. The Borrower shall not submit a Requisition that seeks reimbursement of any Eligible Project Costs for which the related Eligible

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Section 5. Term. The term of the TIFIA Loan shall extend from the Effective Date to the Final Maturity Date or to such earlier date as all amounts due or to become due to the TIFIA Lender hereunder have been irrevocably paid in full in cash.

Section 6. Interest Rate. The interest rate with respect to the Outstanding TIFIA Loan Balance (the "**TIFIA Interest Rate**") shall be 4.25 percent (4.25%) per annum. Interest will be computed on the Outstanding TIFIA Loan Balance (as well as on any past due interest) from time to time on the basis of a 365-day or 366-day year, as appropriate, for the actual number of days elapsed; provided, however, in the event of a Payment Default, the Borrower shall pay interest on the Outstanding TIFIA Loan Balance and on any interest accrued thereon but unpaid as of the applicable [Semi-Annual] Payment Date (including interest accruing after the date of any filing by the Borrower of any petition in bankruptcy or the commencement of any bankruptcy, insolvency or similar proceeding with respect to the Borrower) at the Default Rate from (and including) its due date to (but excluding) the date of actual payment. Upon the occurrence of any other Event of Default, the Borrower shall pay interest on the Outstanding TIFIA Loan Balance and on any interest accrued thereon but unpaid as of the applicable [Semi-Annual] Payment Date (including interest accruing after the date of any filing by the Borrower of any petition in bankruptcy or the commencement of any bankruptcy, insolvency or similar proceeding with respect to the Borrower) at the Default Rate from (and including) the date such Event of Default first occurred to (but excluding) the earlier to occur of (a) the date such Event of Default has been waived by the TIFIA Lender and (b) the date the Outstanding TIFIA Loan Balance and any interest accrued thereon (at the Default Rate) but unpaid has been irrevocably paid in full in cash.

Section 7. Outstanding TIFIA Loan Balance; Revisions to Exhibit G and Loan Amortization Schedule.

(a) The Outstanding TIFIA Loan Balance will be (i) increased on each occasion on which the TIFIA Lender disburses loan proceeds hereunder, by the amount of such disbursement of loan proceeds; (ii) increased on each occasion on which interest on the TIFIA Loan is capitalized pursuant to the provisions of Section 9(b) (*Capitalized Interest Period*), by the amount of interest so capitalized; and (iii) decreased upon each payment or prepayment of the Outstanding TIFIA Loan Balance, by the amount of principal so paid. The TIFIA Lender may in its discretion at any time and from time to time, or when so requested by the Borrower, advise

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(cont'd from previous page)

Project Costs Documentation was not delivered to the TIFIA Lender and the Servicer (if any) at least one (1) month prior to the date such Requisition is submitted.

the Borrower by written notice of the amount of the Outstanding TIFIA Loan Balance as of the date of such notice, and its determination of such amount in any such notice shall be deemed conclusive absent manifest error.

(b) The TIFIA Lender is hereby authorized to modify the Loan Amortization Schedule included in **Exhibit G** from time to time, in accordance with the principles set forth in Section 10(c) (*General Prepayment Instructions*) and in **Exhibit M**, to reflect (i) any change to the Outstanding TIFIA Loan Balance, (ii) any change to the date and amount of any principal or interest due and payable or to become due and payable by the Borrower under this Agreement, and (iii) such other information as the TIFIA Lender may determine is necessary for administering the TIFIA Loan and this Agreement. Any calculations described above shall be rounded up or down to the nearest whole cent. Absent manifest error, the TIFIA Lender's determination of such matters as set forth on **Exhibit G** shall be conclusive evidence thereof; provided, however, that neither the failure to make any such recordation nor any error in such recordation shall affect in any manner the Borrower's obligations hereunder or under any other TIFIA Loan Document. The TIFIA Lender shall provide the Borrower with a copy of **Exhibit G** as revised, but no failure to provide or delay in providing the Borrower with such copy shall affect any of the obligations of the Borrower under this Agreement or the other TIFIA Loan Documents.

Section 8. Security and Priority; Flow of Funds.

(a) As security for the TIFIA Loan, the Borrower shall pledge, assign and grant, or shall cause to be pledged, assigned and granted, to the Trustee for the benefit of the TIFIA Lender, Liens on the Trust Estate in accordance with the provisions of the Indenture Documents. The TIFIA Loan shall be secured by the Liens on the Trust Estate **[**and subordinate, during any period when a Bankruptcy Related Event with respect to the Borrower has not occurred, only (except as otherwise required by law) to the Senior Obligations, the Hedging Obligations, and the Hedging Termination Obligations (other than Subordinated Hedging Termination Obligations) in respect of such Obligations. Upon the occurrence of a Bankruptcy Related Event with respect to the Borrower, the TIFIA Loan shall be secured by a first priority security interest in the Trust Estate on a parity with the Senior Obligations, the Hedging Obligations and the Hedging Termination Obligations (other than Subordinated Hedging Termination Obligations) in respect of such Senior Obligations**]**.[71][72]

(b) Except (i) for Permitted Liens, or (ii) to the extent otherwise provided in clause (a) of this Section 8 (*Security and Priority; Flow of Funds*), the Trust Estate will be free and clear of any pledge, Lien, charge or encumbrance thereon or with respect thereto prior to, or of equal rank with, the pledge of the Borrower created under the Indenture Documents, and all

[71] Bracketed text not applicable if the TIFIA Loan is the senior debt or if the TIFIA Lender has waived the requirement that the TIFIA Loan become pari passu with all Senior Obligations following a Bankruptcy Related Event pursuant to § 603(b)(6)(B) of the Act.

[72] Mechanics of the treatment of the TIFIA Debt Service Reserve Account, the Debt Service Reserve Account, and the TIFIA Debt Service Account in the event of a Bankruptcy Related Event of the Borrower shall be addressed in the Indenture or other appropriate financing document.

organizational, regulatory or other necessary action on the part of the Borrower with respect to the foregoing has been duly and validly taken. [Except as provided in Section 8(a) with respect to the Senior Obligations,] [T]here shall be no indebtedness or other obligations or liabilities of the Borrower that have priority over the TIFIA Loan with respect to the Trust Estate.

(c) The Borrower shall not use Pledged Revenues to make any payments or satisfy any obligations other than in accordance with the provisions of this Section 8 (*Security and Priority; Flow of Funds*) and the Indenture Documents and shall not apply any portion of the Pledged Revenues in contravention of this Agreement or the Indenture Documents.

(d) The Indenture provides that all Project Revenues shall, subject to Section [_____] thereof, be deposited in the Revenue Account and applied in the following order of priority, as more fully described, and in accordance with the requirements specified in Section [_____] of the Indenture:

(i) [to any payments then due and payable by the Borrower to the [Rebate Account] established under the Indenture or any similar rebate fund established with respect to any future tax-exempt borrowings comprising Senior Obligation or Pari Passu Obligations;][73]

(ii) [to the payment of Operations and Maintenance Expenses;]

(iii) [to the payment of Major Maintenance Costs;]

(iv) to the payment of fees, administrative costs and other expenses of the Trustee, and the TIFIA Lender;

(v) to the payment of the interest portion of Debt Service and related Hedging Obligations then due (or the accrual of appropriate amounts in advance thereof);

(vi) to the payment of the principal portion due of Debt Service and Hedging Termination Obligations under Hedging Agreements incurred upon (A) termination of any Hedging Agreements in respect of tax or illegality events, (B) upon failure of the Borrower to pay any Hedging Obligations when due (or the accrual of appropriate amounts in advance thereof), and (C) any mandatory prepayment of Senior Obligations;

(vii) to fund the Debt Service Reserve Account (as necessary so that the balance thereof equals the Debt Service Reserve Required Balance);

(viii) to the payment of the interest portion of TIFIA Debt Service then due (or the accrual of appropriate amounts in advance thereof);

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[73] To be included where applicable. Location of Rebate Account in waterfall subject to adjustment on a case by case basis.

(ix) to the payment of the principal portion of TIFIA Debt Service then due (or the accrual of appropriate amounts in advance thereof);

(x) to fund the TIFIA Debt Service Reserve Account (as necessary so that the balance thereof equals the TIFIA Debt Service Reserve Required Balance);

(xi) [to fund the Major Maintenance Reserve Account (as necessary so that the balance thereof equals the requirement therefor);]

(xii) to the payment of Capital Expenditures;

(xiii) all prepayments required pursuant to Section 10(a) (*Mandatory Prepayments*);

(xiv) [to any payment of Subordinated Hedging Termination Obligations then due and payable by the Borrower;] and

(xv) for voluntary prepayments of the Senior Obligations and related Hedging Termination Obligations and for voluntary prepayments of the TIFIA Loan.[74][75]

Section 9. Payment of Principal and Interest.

(a) Payment Dates. The Borrower agrees to pay the principal of and interest on the TIFIA Loan by making payments in accordance with the provisions of this Agreement and the Indenture Documents on each Semi-Annual Payment Date, beginning on the Debt Service Payment Commencement Date, and on each other date on which payment thereof is required to be made hereunder (including the Final Maturity Date and any date on which payment is due by reason of the acceleration of the maturity of the TIFIA Loan or otherwise); provided that if any such date is not a Business Day, payment shall be made on the next Business Day following such date. [Any payment of the TIFIA Bond shall be treated as a payment of the TIFIA Loan and any prepayment of principal of the TIFIA Loan shall be treated as redemption of the TIFIA Bond.][76]

(b) Capitalized Interest Period. No payment of the principal of or interest on the TIFIA Loan is required to be made during the Capitalized Interest Period. On each **[**June 30 and December 31**]** occurring during the Capitalized Interest Period (and on the Semi-Annual Payment Date immediately following the end of the Capitalized Interest Period), interest accrued on the TIFIA Loan in the six (6) month period ending immediately prior to such date shall be capitalized and added to the Outstanding TIFIA Loan Balance. Within thirty (30) days after the

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[74] The priority of deposits and name of accounts in the flow of funds will be negotiated/modified based on the specifics of each transaction, including the lien priority of the TIFIA Loan. The priorities set out in this Section 8 reflect TIFIA's standard provisions where the TIFIA Loan is subordinated.

[75] The waterfall will include provisions for payment of debt service in respect of Subordinated Obligations, to the extent Subordinated Obligations are included in the debt structure for the Project.

[76] To be included where a bond is issued in lieu of a promissory note.

end of the Capitalized Interest Period, the TIFIA Lender shall give written notice to the Borrower stating the Outstanding TIFIA Loan Balance as of the close of business on the last day of the Capitalized Interest Period, which statement thereof shall be deemed conclusive absent manifest error; provided, however, that no failure to give or delay in giving such notice shall affect any of the obligations of the Borrower hereunder or under any of the other TIFIA Loan Documents.

(c) Payment of TIFIA Debt Service.

(i) On each Semi-Annual Payment Date occurring on or after the Debt Service Payment Commencement Date [and prior to the Level Payment Commencement Date][77], the Borrower shall pay TIFIA Debt Service in the amounts set forth in respect of such Semi-Annual Payment Date on **Exhibit G**, as the same may be revised as provided in Section 7 (*Outstanding TIFIA Loan Balance; Revisions to Exhibit G and Loan Amortization Schedule*), which payments shall be made in accordance with Section 9(f) (*Manner of Payment*).

(ii) [On each Semi-Annual Payment Date occurring on or after the Level Payment Commencement Date, the Borrower shall pay TIFIA Debt Service in the amount of one hundred percent (100%) of the Fixed Level Payment, which payments shall be made in accordance with Section 9(d) (*Fixed Level Payments*) and Section 9(f) (*Manner of Payment*).][78]

(d) [Fixed Level Payments. On each Semi-Annual Payment Date occurring during the Level Payment Period, the Borrower shall make level payments of principal and interest (each a "**Fixed Level Payment**"), each of which payments shall be approximately equal in amount. The amount of the Fixed Level Payment shall be calculated in such manner that the Outstanding TIFIA Loan Balance as of the Level Payment Commencement Date shall be reduced to $0 on the Final Maturity Date (assuming that interest accrues during such period on the Outstanding TIFIA Loan Balance at the rate per annum set forth in Section 6 (*Interest Rate*) in the absence of an Event of Default, that all Fixed Level Payments are made in a timely manner during such period, and that no additional payments of principal of or interest on the TIFIA Loan are made during such period). Within thirty (30) days prior to the beginning of the Level Payment Period, the TIFIA Lender may (or, at the written request of the Borrower, shall) give written notice to the Borrower of the amount of the related Fixed Level Payment, which amount shall be deemed conclusive absent manifest error, but no failure to provide or delay in providing the Borrower with such notice shall affect any of the obligations of the Borrower under this Agreement or the other TIFIA Loan Documents. To the extent that any prepayments of the TIFIA Loan shall be made during the Level Payment Period in addition to the Fixed Level Payments, such prepayments shall be applied to the remaining Outstanding TIFIA Loan Balance

[77] To be included when applicable.

[78] To be included when applicable.

and the resulting Fixed Level Payments shall be recalculated as provided in Section 10(c) (*General Prepayment Instructions*) and reflected in a revised **Exhibit G**.][79]

(e) Accrual of Amounts on Interim Payment Dates.

(i) If any Senior Obligations, Pari Passu Obligations, or Subordinated Obligations require the payment of principal or interest on any Interim Payment Date after the Debt Service Payment Commencement Date, the Borrower shall promptly notify the Servicer (if any) and the TIFIA Lender thereof in writing, identifying the period covered by such Interim Payment Period and the Interim Payment Date.

(ii) On any such Interim Payment Date during the period on and after the Debt Service Payment Commencement Date, the Borrower shall transfer or otherwise deposit, or cause to be transferred or otherwise deposited, into the TIFIA Debt Service Account an amount equal to the amount of TIFIA Debt Service due and payable on the next succeeding Semi-Annual Payment Date (as shown on **Exhibit G**, as the same may be revised as provided in Section 7 (*Outstanding TIFIA Loan Balance; Revisions to Exhibit G and Loan Amortization Schedule*)) multiplied by a fraction, the numerator of which is equal to the number of months contained in the Interim Payment Period ending on such Interim Payment Date and the denominator of which is equal to six (6).

(iii) If an Interim Payment Date is other than the first Business Day of a calendar month, the method for calculating any amount required to be transferred or deposited into the TIFIA Debt Service Account pursuant to this Section 9(e) (*Accrual of Amounts on Interim Payment Dates*) shall be determined at such time by the parties hereto.

(f) Manner of Payment. Payments under this Agreement and the TIFIA Bond shall be made by wire transfer on or before each Semi-Annual Payment Date in immediately available funds in accordance with payment instructions provided by the TIFIA Lender pursuant to Section 36 (*Notices; Payment Instructions*), as modified in writing from time to time by the TIFIA Lender. The Borrower may make any such payment or portion thereof (or direct the Trustee to make such payment) with funds then on deposit in the TIFIA Debt Service Account.

(g) Final Maturity Date. Notwithstanding anything herein to the contrary, the Outstanding TIFIA Loan Balance and any accrued interest thereon shall be due and payable in full on the Final Maturity Date (or on any earlier date on which the maturity of the TIFIA Loan shall be accelerated pursuant to the provisions of Section 19 (*Events of Default and Remedies*)).

(h) TIFIA Bond. As evidence of the Borrower's obligation to repay the TIFIA Loan, the Borrower shall issue and deliver to the TIFIA Lender, on or prior to the Effective Date, the TIFIA Bond substantially in the form of **Exhibit A**, having a maximum principal amount (excluding capitalized interest) of $[*insert maximum principal amount of TIFIA loan*] and bearing interest at the rate set forth in Section 6 (*Interest Rate*).

[79] To be included when applicable.

Section 10. Prepayment.

(a) Mandatory Prepayments. The Borrower shall prepay the TIFIA Loan in whole or in part, without penalty or premium:

(i) [on each Semi-Annual Payment Date occurring on or after the Debt Service Payment Commencement Date, in an amount equal to the lesser of (A) the amount remaining in the Revenue Account (as defined in the Indenture) after giving effect to the payments in clauses FIRST through [_____] of Section [_____] of the Indenture on such date, and (B) an amount equal to [fifty percent (50%)] of the amount by which the aggregate Net Cash Flow that is deposited in the Revenue Account during the immediately preceding calendar year exceeds the projected Net Cash Flow for such period as reflected in **Exhibit I**;][80]

(ii) following the determination thereof in accordance with the Indenture, in the amount of any Net Loss Proceeds;

(iii) upon any voluntary prepayment of Pari Passu Obligations or Subordinated Obligations, pro rata with such voluntary prepayment; and

(iv) [*other applicable mandatory prepayment requirements*].[81]

The Borrower shall provide written notice to the TIFIA Lender at least two (2) Business Days prior to the date on which it makes any mandatory prepayment; provided that the Borrower's failure to deliver such notice shall not diminish, impair or otherwise affect the Borrower's obligation to make any such mandatory prepayment as and when the circumstances requiring such mandatory prepayment have occurred. Each prepayment pursuant to this Section 10(a) (*Mandatory Prepayments*) shall be effected pursuant to Section [_____] of the Indenture (as applicable) and accompanied by a certificate signed by the Borrower's Authorized Representative identifying the provision of this Agreement pursuant to which such prepayment is being made and containing a calculation in reasonable detail of the amount of such prepayment.

(b) Optional Prepayments. The Borrower may prepay the TIFIA Loan at any time without penalty or premium, in whole or in part; provided, that each partial prepayment shall be in a minimum principal amount of $1,000,000.[82] Each prepayment of the TIFIA Loan shall be made on such date and in such principal amount as shall be specified by the Borrower in a written notice delivered to the TIFIA Lender, which notice shall also specify the amount of unpaid interest accrued to the date of such prepayment on the amount of principal to be prepaid that the Borrower intends to pay concurrently with such prepayment, if any. In the case of any

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80 To be included as determined by the TIFIA Lender on a case-by-case basis.

81 Additional prepayment events to be determined by the TIFIA Lender on a transaction-specific basis (e.g., prepayment with excess construction proceeds available upon completion of the Project).

82 For exceptionally small TIFIA loans, such as Rural Project Initiative loans, the minimum prepayment amount may be reduced.

optional prepayment, such written notice shall be delivered to the TIFIA Lender not less than ten (10) days or more than thirty (30) days prior to the date set for prepayment, unless otherwise agreed by the TIFIA Lender. At any time between delivery of such written notice and the applicable optional prepayment, the Borrower may, without penalty or premium, rescind its announced optional prepayment by further written notice to the TIFIA Lender. Anything in this Section 10(a) to the contrary notwithstanding, the failure by the Borrower to make any optional prepayment shall not constitute a breach or default under this Agreement.

(c) General Prepayment Instructions. Upon the TIFIA Lender's receipt of confirmation that payment in full of the entire Outstanding TIFIA Loan Balance and any unpaid interest and fees with respect thereto has occurred as a result of a mandatory or optional prepayment, the TIFIA Lender shall surrender the TIFIA Bond to the Borrower or its representative at the principal office of the TIFIA Lender [or certify to the Borrower that the TIFIA Bond has been destroyed in accordance with the TIFIA Lender's procedures]. If the Borrower prepays only part of the unpaid balance of principal of such TIFIA Bond, the TIFIA Lender may make a notation on **Exhibit G** indicating the amount of principal of and interest on such TIFIA Bond then being prepaid. Absent manifest error, the TIFIA Lender's determination of such matters as set forth on **Exhibit G** shall be conclusive evidence thereof; provided, however, that neither the failure to make any such recordation nor any error in such recordation shall affect in any manner the Borrower's obligations hereunder or under any other TIFIA Loan Document. All such partial prepayments of principal shall be applied to reduce future payments due on the TIFIA Bond in inverse order of maturity [or, to the extent any such prepayment occurs on or after the Level Payment Commencement Date, to reduce each Fixed Level Payment ratably by an equal amount].[83] If said monies shall not have been so paid on the prepayment date, such principal amount of such TIFIA Bond shall continue to bear interest until payment thereof at the rate provided for in Section 6 (*Interest Rate*).

Section 11. Compliance with Laws. The Borrower shall, and shall require its contractors and subcontractors at all tiers for the Project to, comply in all material respects with all applicable laws, rules, regulations, executive and administrative decrees and orders, and orders and judgments of any court or arbitral panel, including all applicable federal and State laws, rules, regulations and executive orders. The list of federal laws attached as **Exhibit E** is illustrative of the type of requirements generally applicable to transportation projects and is not intended to be exhaustive. The [FHWA Division Office][*insert other USDOT modal agency field office, if applicable*] has oversight responsibility for the Project, including ensuring compliance in all material respects with all applicable provisions of federal law [and with the terms of the FTA Master Grant Agreement, to the extent applicable. The Borrower and TIFIA Lender mutually acknowledge that not every provision of the FTA Master Grant Agreement will apply to the Project. The FTA Regional Office and the TIFIA Lender (a) will enforce only those federal laws, regulations, and guidance that apply to the Project, and (b) will not enforce federal laws, regulations, and guidance that do not apply to the Project. Application of any reference within the FTA Master Grant Agreement to the common grant rule (2 CFR Part 200) are limited to Subparts A, B, D, and F of the rule and 2 CFR Parts 1200 and 1201, which modify the rule as

[83] To be used where this Agreement provides for a Level Payment Period.

applied by the USDOT. FTA Master Grant Agreement terms included in the "Generally Applicable Provisions" found at Section 1 through Section 48 of the FTA Master Grant Agreement may be applicable to the Project. "Special Provisions for the TIFIA Program" found at Section 88 of the FTA Master Grant Agreement are applicable to Project. The Borrower acknowledges and agrees that it has reviewed the FTA Master Grant Agreement and shall comply as required thereby].[84] [Pursuant to the [FHWA Oversight Agreement], [the Borrower]/[*insert appropriate State or local agency*] may be responsible for certain Project oversight activities. The Borrower acknowledges receipt of the [FHWA Oversight Agreement] and hereby agrees to cooperate with [*insert appropriate State or local agency* and the [FHWA Division Office][*insert other USDOT modal agency office, if applicable*] in carrying out [its/their] duties under the [FHWA Oversight Agreement]].[85]

Section 12. Conditions Precedent.

(a) Conditions Precedent to Effectiveness. Notwithstanding anything in this Agreement to the contrary, this Agreement shall not become effective until each of the following conditions precedent shall have been satisfied or waived in writing by the TIFIA Lender:

(i) The Borrower shall have duly executed and delivered to the TIFIA Lender this Agreement and the TIFIA Bond, each in form and substance satisfactory to the TIFIA Lender.

(ii) The Borrower shall have delivered to the TIFIA Lender certified, complete, and fully executed copies of each Indenture Document[, together with any amendments, waivers or modifications thereto, in each case that has been entered into on or prior to the Effective Date,] [86] and each such agreement shall be in full force and effect and in form and substance satisfactory to the TIFIA Lender, and all conditions contained in such documents to the closing of the transactions contemplated thereby shall have been fulfilled or effectively waived (provided that for purposes of this Section 12(a)(ii) (*Conditions Precedent to Effectiveness*), any such waiver shall be subject to the TIFIA Lender's consent in its sole discretion).

(iii) Counsel to the Borrower [and each other Borrower Related Party] shall have rendered to the TIFIA Lender legal opinions satisfactory to the TIFIA Lender in its sole discretion (including those opinions set forth on **Exhibit H-1**) and bond counsel to the Borrower [and the other Borrower Related Parties] shall have rendered to the TIFIA Lender legal opinions satisfactory to the TIFIA Lender in its sole discretion (including those opinions set forth on **Exhibit H-2**).

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[84] Applicable if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[85] Not applicable if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[86] Remove bracketed text if the Indenture Documents will be executed and delivered on or about the Effective Date.

(iv) The Borrower shall have provided a certificate from the Borrower's Authorized Representative as to the absence of debarment, suspension or voluntary exclusion from participation in Federal Government contracts, procurement and non-procurement matters substantially in the form attached hereto as **Exhibit C** with respect to the Borrower and its principals (as defined in 2 CFR § 180.995).[87]

(v) The Borrower shall have provided to the TIFIA Lender satisfactory evidence that the Project has been included in (A) the metropolitan transportation improvement program adopted by the [*insert name of federally designated metropolitan planning organization for the region*], (B) the State transportation plan, and (C) the State transportation improvement program approved by the USDOT or its designated agency, in each case to the extent required by 23 U.S.C. §§ 134 and 135, and 23 U.S.C. § 602(a)(3), as applicable; and the financial plan for each such program or plan shall reflect the costs of, and the sources of funding for, the Project.[88]

(vi) The Borrower shall have provided evidence to the TIFIA Lender's satisfaction, no more than thirty (30), but no less than fourteen (14), days prior to the Effective Date, of the assignment by at least two (2) Rating Agencies of an Investment Grade Rating to each of the Initial Obligations and the TIFIA Loan, and no such rating has been reduced, withdrawn or suspended as of the Effective Date.[89]

(vii) The Borrower shall have delivered to the TIFIA Lender a certificate from the Borrower's Authorized Representative in the form attached hereto as **Exhibit K** (A) as to the satisfaction of certain conditions precedent set forth in this Section 12(a) (*Conditions Precedent to Effectiveness*) as required by the TIFIA Lender, (B) designating the Borrower's Authorized Representative, and (C) confirming such person's position and incumbency.

(viii) The Borrower shall have demonstrated to the TIFIA Lender's satisfaction that as of the Effective Date the aggregate of all committed sources of funds shown in the Base Case Financial Model and in the Project Budget to pay Total Project Costs have been fully and completely committed and allocated to the Borrower by the providers thereof and that such funds shall be sufficient to pay all Total Project Costs necessary to achieve Substantial Completion.

(ix) [The Borrower shall have delivered to the TIFIA Lender an original fully executed counterpart (or a certified copy) of the Traffic and Revenue Study

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87 To the extent the Borrower is a pass-through conduit entity, the recipient of the federal funds will also be required to provide this certificate and make the related representations in Section 13.

88 For purposes of satisfying this condition precedent, it is typically sufficient for the Borrower to provide the cover page of the applicable planning document and excerpt(s) from the document that evidence the inclusion of the Project in the applicable plan or program.

89 If the total aggregate principal amount of the Senior Obligations and the TIFIA Loan is less than $150,000,000, one rating agency opinion for each of the Senior Obligations and the TIFIA Loan shall be sufficient.

in form and substance acceptable to the TIFIA Lender [and the Traffic Consultant][, accompanied by a letter from the preparer of such study, dated as of [*Insert date that is not more than fifteen (15) Business Days prior to the Effective Date*], and certifying that the assumptions and projections contained in the Traffic and Revenue Study are reasonable and may be relied upon by the TIFIA Lender][90].][91]

(x) The Borrower shall have provided to the TIFIA Lender certified, complete, and fully executed copies of each Principal Project Contract, together with any amendments, waivers or modifications thereto, in each case that has been entered into on or prior to the Effective Date and each such agreement shall be in full force and effect and in form and substance satisfactory to the TIFIA Lender.

(xi) The Borrower shall have demonstrated to the TIFIA Lender's satisfaction that it has obtained all Governmental Approvals necessary to commence construction of the Project and that all such Governmental Approvals are final, non-appealable, and in full force and effect (and are not subject to any notice of violation, breach, or revocation).

(xii) The Borrower shall have delivered to the TIFIA Lender a certified Base Case Financial Model on or prior to the Effective Date, which Base Case Financial Model shall (A) demonstrate that projected Project Revenues are sufficient to meet the Loan Amortization Schedule, (B) demonstrate a Total Debt Service Coverage Ratio for each Calculation Period through the Final Maturity Date that is not less than [____], (C) demonstrate a TIFIA Loan Life Coverage Ratio for each Calculation Date through the Final Maturity Date that is not less than [____],[92] (D) not reflect (1) the commencement of amortization of the principal amount of any Senior Obligations before the Debt Service Payment Commencement Date, (2) the payment of any interest on any Pari Passu Obligations or Subordinated Obligations before the Debt Service Payment Commencement Date, or (3) the commencement of amortization of the principal amount of any Pari Passu Obligations or Subordinated Obligations before the commencement of the amortization of the principal amount of the TIFIA Loan, and (E) otherwise be in form and substance acceptable to the TIFIA Lender.

(xiii) The Borrower shall have (A) provided evidence satisfactory to the TIFIA Lender that the Borrower is authorized, pursuant to [the Authorizing Legislation], to pledge, assign, and grant the Liens on the Trust Estate purported to be pledged, assigned, and granted pursuant to the Indenture Documents, without the need for notice to any Person, physical delivery, recordation, filing or further act, (B) recorded or filed, or caused to be recorded or filed, for record in such manner and in such places as are required all documents and instruments, and taken or caused to be taken all other actions,

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90 Bracketed text to be included if the Traffic and Revenue Study is dated prior to the Effective Date.

91 This condition precedent may be expanded to require delivery of other material technical reports, to the extent other material technical reports are required or otherwise prepared for the Project.

92 Additional coverage ratios (e.g., TIFIA debt service coverage ratio) to be included as applicable.

as are necessary or desirable to establish and enforce the Trustee's Lien on the Trust Estate (for the benefit of the Secured Parties) to the extent contemplated by the Indenture Documents or the Authorizing Legislation, and (C) paid, or caused to be paid, all taxes and filing fees that are due and payable in connection with the execution, delivery or recordation of any Indenture Documents or any instruments, certificates or financing statements in connection with the foregoing.[93]

(xiv) The Borrower shall have paid in full all invoices delivered by the TIFIA Lender (or by advisors to the TIFIA Lender that have direct billing arrangements with the Borrower) to the Borrower as of the Effective Date for the reasonable fees and expenses of the TIFIA Lender's counsel and advisors and any auditors or other consultants employed by the TIFIA Lender for the purposes hereof (such reasonableness to be determined in accordance with Part 31 of the Federal Acquisition Regulation).

(xv) The Borrower shall have (A) provided evidence satisfactory to the TIFIA Lender of compliance with NEPA, and (B) complied with all applicable requirements of the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 (42 U.S.C. § 4601 *et seq.)* and Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d *et seq.*) and shall have provided evidence satisfactory to the TIFIA Lender of such compliance upon request by the TIFIA Lender.

(xvi) The TIFIA Lender shall have delivered its initial TIFIA Lender's Authorized Representative certificate.

(xvii) The Borrower shall have (A) obtained a Federal Employer Identification Number, (B) obtained a Unique Entity Identifier number, and (C) registered with, and obtained confirmation as of the Effective Date of active registration status with no active exclusions listed in such registration from, the federal System for Award Management (www.SAM.gov).[94]

(xviii) [The Borrower shall have delivered to the TIFIA Lender (A) certificates of insurance evidencing (1) that the Borrower and each applicable Principal Project Party has obtained insurance with respect to the Project and the Borrower, as applicable, that meets the requirements of Section 15(f) (*Insurance*) and (2) that each liability policy (other than workers' compensation insurance) reflects the TIFIA

[93] To the extent the Borrower's grant of a security interest is covered by the UCC, and not by state or local law, UCC filings will be required and the above language will be replaced with UCC-related conditions precedent.

[94] Acquisition of a DUNS/UEI number and registration with SAM can have significant lead times (often in excess of thirty (30) days) and are the requirements of the Borrower to pursue and obtain. The USDOT advises applicants to begin this process early to avoid any delays in closing due to failure to obtain active registration status.

Lender as an additional insured and (B) at the TIFIA Lender's request, copies of such insurance policies.][95]

(xix) The Borrower shall have provided to the TIFIA Lender evidence that the Borrower [and each other Borrower Related Party] is duly organized and validly existing under the laws of its jurisdiction of formation, with full power, authority and legal right to own its properties and carry on its business and governmental functions as now conducted, including the following documents, each certified by the Borrower's Authorized Representative [(or, with respect to a Borrower Related Party, such Borrower Related Party's authorized representative)]: (A) a copy of its Organizational Documents, and the Authorizing Legislation, each as in effect on the Effective Date (and[, with respect to the Organizational Documents,] certified by the Secretary of State of the State or the state of its formation, to the extent applicable), which Organizational Documents and Authorizing Legislation shall each be in full force and effect and shall not have been amended since the date of the last amendment thereto shown on the certificate, (B) a copy of all resolutions authorizing [the Borrower] [each Borrower Related Party] to execute and deliver, and to perform its respective obligations under, the TIFIA Loan Documents to which it is a party, and such resolutions have not been subsequently modified, rescinded or amended, are in full force and effect in the form adopted, and are the only resolutions adopted by the [Borrower] [Borrower Related Parties] relating to the matters described therein, and (C) a copy of such further instruments and documents as are necessary, appropriate or advisable to effectuate the foregoing resolutions and to consummate and implement the transactions contemplated by such resolutions and the TIFIA Loan Documents.

(xx) The Borrower shall have provided the TIFIA Lender records of the Eligible Project Costs incurred prior to the Effective Date, in form and substance satisfactory to the TIFIA Lender and in sufficient time prior to the Effective Date to permit the TIFIA Lender and the applicable USDOT modal agency field office to review such costs.

(xxi) The Borrower shall have provided to the TIFIA Lender certified, complete and fully executed copies of each performance security instrument delivered to or by the Borrower pursuant to any Principal Project Contract as of the Effective Date, each of which shall be (A) in compliance with the requirements for such performance

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[95] Insurance requirements should be modified, as appropriate, based on the transaction, including to account for cases where the Borrower self-insures. The following is indicative language for use when the Borrower self-insures: "The Borrower shall have provided a certificate, in form and substance satisfactory to the TIFIA Lender and signed by the Borrower's Authorized Representative, certifying that the insurance required pursuant to Section 15(f) (*Insurance*) is in full force and effect and that such insurance complies with the requirements thereof." The TIFIA Lender reserves the right to retain an insurance advisor at the Borrower's expense and obtain an insurance advisor's report. The following is a representative list of insurance policies that may be required, depending upon the circumstances of the applicable Project: workers' compensation and employers' liability; commercial general liability; automobile; excess/umbrella liability; property damage and business interruption; pollution liability; commercial crime; professional indemnity; contractor's pollution; and builders' risk.

security pursuant to the applicable Principal Project Contract, and (B) in full force and effect.

(xxii) The representations and warranties of the Borrower set forth in this Agreement (including Section 13 (*Representations and Warranties of Borrower*)) and in each other Related Document shall be true and correct, as of the Effective Date, except to the extent such representations and warranties expressly relate to an earlier date (in which case, such representations and warranties shall be true and correct as of such earlier date).

(xxiii) The Borrower shall have provided the TIFIA Lender with evidence satisfactory to the TIFIA Lender that, as of the Effective Date (A) the maximum principal amount of the TIFIA Loan (excluding any interest that is capitalized in accordance with the terms hereof), together with the amount of any other credit assistance provided under the Act to the Borrower, does not exceed [thirty-three percent (33%)][forty-nine percent (49%)][96] of reasonably anticipated Eligible Project Costs and (B) as required pursuant to § 603(b)(9) of the Act, the total federal assistance provided to the Project, including the maximum principal amount of the TIFIA Loan (excluding any interest that is capitalized in accordance with the terms hereof), does not exceed eighty percent (80%) of Total Project Costs.

(xxiv) [The Borrower shall have delivered to the TIFIA Lender a certificate in the form of **Exhibit M**, duly executed by the Borrower's Authorized Representative.][97]

(xxv) The Borrower shall have delivered to the TIFIA Lender a duly executed certificate from the Trustee in the form attached hereto as Exhibit J.

(xxvi) The Borrower shall have provided a certificate from the Borrower's Authorized Representative as to the prohibition on the use of appropriated funds for lobbying substantially in the form attached hereto as **Exhibit O** in accordance with 49 CFR §20.100(b).

(xxvii) The Borrower shall have delivered such other agreements, documents, instruments, opinions and other items required by the TIFIA Lender, all in form and substance satisfactory to the TIFIA Lender, including evidence that all other Project funding requirements have been met (including evidence of other funding sources or funding commitments and evidence of the closing of the Initial Obligations).

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[96] Applicable if the Project is a "rural infrastructure project" (as defined in the Act) and is accepted as part of the Bureau's Rural Projects Initiative. (Please consult the Notice of Funding Availability regarding amounts above thirty-three percent (33%) for projects other than rural infrastructure projects.)

[97] Use for Projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project, but that do not have an FTA Master Grant Agreement in place with respect to the Borrower.

(b) Conditions Precedent to All Disbursements. Notwithstanding anything in this Agreement to the contrary, the TIFIA Lender shall have no obligation to make any disbursement of loan proceeds to the Borrower (including the initial disbursement hereunder) until each of the following conditions precedent has been satisfied or waived in writing by the TIFIA Lender:

(i) [The Borrower shall have provided to the TIFIA Lender evidence satisfactory to the TIFIA Lender that prior thereto, or simultaneously therewith, a disbursement of Senior Obligation proceeds has occurred such that as of such TIFIA Loan disbursement, the aggregate amount of all disbursements of the TIFIA Loan (including the requested disbursement but excluding any interest that is capitalized in accordance with the terms hereof) shall not exceed [___] percent ([__]%) of the total amount of reasonably anticipated Eligible Project Costs.][98]

(ii) With respect to any disbursement occurring sixty (60) days or more after the Effective Date, the Borrower shall have provided the Financial Plan, or the most recent update thereto, in each case in accordance with Section 21(a) (*Financial Plan*), which Financial Plan (or update thereto) reflects that amortization of the principal amount of any Senior Obligations does not commence before the Debt Service Payment Commencement Date.

(iii) To the extent not previously delivered to the TIFIA Lender, the Borrower shall have delivered to the TIFIA Lender certified, complete and fully executed copies of any Indenture Documents entered into after the Effective Date.

(iv) To the extent not previously delivered to the TIFIA Lender, the Borrower shall have provided certified copies of all Principal Project Contracts and all Additional Project Contracts requested by the TIFIA Lender pursuant to Section 15(b) (*Copies of Documents*) or Section 16(e) (*Additional Project Contracts*) (including, in each case, any amendment, modification or supplement thereto) entered into after the Effective Date.

(v) The Borrower shall have demonstrated to the TIFIA Lender's satisfaction that all Governmental Approvals necessary as of the time of the applicable disbursement for the development, construction, operation and maintenance of the Project have been issued and are in full force and effect.[99]

(vi) Each of the insurance policies obtained by the Borrower and by any applicable Principal Project Party in satisfaction of the conditions in Section

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98 To be included as applicable, determined by the TIFIA Lender on a case by case basis where the commercial agreement includes a proportional disbursement requirement.

99 For projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project, this condition precedent will be satisfied in part through delivery of a permitting plan that is satisfactory to the TIFIA Lender.

12(a)(xviii) (*Conditions Precedent to Effectiveness*) is in full force and effect, and no notice of termination thereof has been issued by the applicable insurance provider.[100]

(vii) At the time of, and immediately after giving effect to, any disbursement of TIFIA Loan proceeds then currently requested, (A) no Default or Event of Default hereunder and no event of default (howsoever described or designated) under any other Related Document (other than an event of default of a Principal Project Party) shall have occurred and be continuing, (B) no material event of default (howsoever described or designated) of any Principal Project Party under any Principal Project Contract shall have occurred and be continuing, and (C) no event or condition that, with the giving of notice, the passage of time, or both, would constitute an event of default (howsoever described or designated) of the Borrower under any other Related Document, in each case, shall have occurred and be continuing.

(viii) The representations and warranties of the Borrower set forth in this Agreement (including Section 13 (*Representations and Warranties of Borrower*)) and in each other Related Document shall be true, correct, and complete as of each date on which any disbursement of the TIFIA Loan is made, except to the extent such representations and warranties expressly relate to an earlier date (in which case, such representations and warranties shall be true and correct as of such earlier date).

(ix) No Material Adverse Effect, or any event or condition that could reasonably be expected to result in a Material Adverse Effect, shall have occurred and be continuing since the date the Borrower submitted the Application to the TIFIA Lender.

(x) The Borrower shall have delivered to the TIFIA Lender a Requisition that complies with the provisions of Section 4 (*Disbursement Conditions*), and such Requisition has not been expressly denied by the TIFIA Lender .

(xi) The Borrower shall have paid in full all invoices received from the TIFIA Lender (or by advisors to the TIFIA Lender that have direct billing arrangements with the Borrower) as of the date of disbursement of the TIFIA Loan, for the reasonable fees and expenses of the TIFIA Lender's counsel and advisors and any auditors or other consultants employed by the TIFIA Lender for the purposes hereof (such reasonableness to be determined in accordance with Part 31 of the Federal Acquisition Regulation).

(xii) To the extent not previously delivered to the TIFIA Lender, the Borrower shall have provided to the TIFIA Lender certified, complete and fully executed copies of each performance security instrument delivered to or by the Borrower pursuant to any Principal Project Contract as of the date of disbursement of the TIFIA Loan, each of which performance security instruments shall be (A) in compliance with the

[100] Revise, as appropriate, to the extent the Borrower self-insures. The following is indicative language for use when the Borrower self-insures: "The Borrower shall have provided to the TIFIA Lender any letters of self-insurance maintained by the Borrower and a certificate, executed by the Borrower's Authorized Representative, certifying that Borrower's self-insurance program is actuarially sound."

requirements for such performance security pursuant to the applicable Principal Project Contract, and (B) in full force and effect.

(xiii) The Borrower shall have provided the TIFIA Lender with evidence satisfactory to the TIFIA Lender that, as of the date of disbursement of the TIFIA Loan, as required pursuant to § 603(b)(9) of the Act, the total federal assistance provided to the Project, including the maximum principal amount of the TIFIA Loan (excluding any interest that is capitalized in accordance with the terms hereof), does not exceed eighty percent (80%) of Total Project Costs.

Section 13. Representations and Warranties of Borrower. The Borrower hereby represents and warrants that, as of the Effective Date and, as to each of the representations and warranties below other than those contained in Section 13(b) (*Officer's Authorization*) and Section 13(l) (*Credit Ratings*), as of each date on which any disbursement of the TIFIA Loan is requested or made:

(a) Organization; Power and Authority. The Borrower is a [_____] duly organized, validly existing and in good standing under the laws of the State, has full legal right, power and authority to enter into the Related Documents then in existence, to execute and deliver the TIFIA Bond, and to carry out and consummate all transactions contemplated hereby and thereby and has duly authorized the execution, delivery and performance of the Related Documents.

(b) Officers' Authorization. As of the Effective Date, the officers of the Borrower executing (or that previously executed) the Related Documents, and any certifications or instruments related thereto, to which the Borrower is a party are (or were at the time of such execution) duly and properly in office and fully authorized to execute the same.

(c) Due Execution; Enforceability. Each of the Related Documents in effect as of any date on which this representation and warranty is made, and to which the Borrower is a party, has been duly authorized, executed and delivered by the Borrower and constitutes the legal, valid and binding agreement of the Borrower enforceable in accordance with its terms, except as such enforceability (i) may be limited by applicable bankruptcy, insolvency, reorganization, moratorium or similar laws affecting the rights of creditors generally, and (ii) is subject to general principles of equity (regardless of whether enforceability is considered in equity or at law).

(d) Non-Contravention. The execution and delivery of the Related Documents to which the Borrower is a party, the consummation of the transactions contemplated in the Related Documents and the fulfillment of or compliance with the terms and conditions of the Related Documents will not (i) conflict with the Borrower's Organizational Documents or the Authorizing Legislation, (ii) conflict in any material respect with, or constitute a violation, breach or default (whether immediately or after notice or the passage of time or both) by the Borrower of or under, any applicable law, administrative rule or regulation, any applicable court or administrative decree or order, or any indenture, mortgage, deed of trust, loan agreement, lease, contract or other agreement or instrument to which the Borrower is a party or by which it or its properties or assets are otherwise subject or bound, or (iii) result in the creation or

imposition of any Lien, charge or encumbrance of any nature whatsoever upon any of the property or assets of the Borrower other than the Liens granted pursuant to the Indenture Documents.

(e) Consents and Approvals. No consent or approval of any trustee, holder of any indebtedness of the Borrower or any other Person, and no consent, permission, authorization, order or license of, or filing or registration with, any Governmental Authority is necessary in connection with (i) the execution and delivery by the Borrower of the Related Documents, except as have been obtained or made and as are in full force and effect, or (ii) (A) the consummation of any transaction contemplated by the Related Documents or (B) the fulfillment of or compliance by the Borrower with the terms and conditions of the Related Documents, except as have been obtained or made and as are in full force and effect or as are ministerial in nature and can reasonably be expected to be obtained or made in the ordinary course on commercially reasonable terms and conditions when needed.

(f) Litigation. As of the Effective Date, [except as set forth in **Schedule 13(f)**][101], there is no action, suit, proceeding or, to the knowledge of the Borrower, any inquiry or investigation, in any case before or by any court or other Governmental Authority pending or, to the knowledge of the Borrower, threatened against or affecting the Project or the ability of the Borrower to execute, deliver and perform its obligations under the Related Documents. As of the Effective Date and as of each other date on which the representations and warranties herein are made or confirmed, there is no action, suit, proceeding or, to the knowledge of the Borrower, any inquiry or investigation before or by any court or other Governmental Authority pending, or to the knowledge of the Borrower, threatened against or affecting the Project, the Borrower or the assets, properties or operations of the Borrower, that in any case could reasonably be expected to result in a Material Adverse Effect. To the Borrower's knowledge, there are no actions of the type described above pending, threatened against, or affecting any of the Principal Project Parties except for matters arising after the Effective Date that could not reasonably be expected to (i) result in a Material Adverse Effect or (ii) adversely affect the Borrower's ability to receive Project Revenues in amounts sufficient to meet the financial projections contained in the Base Case Financial Model (or any Revised Financial Model, to the extent any Revised Financial Model has been submitted to the TIFIA Lender). The Borrower is not in default (and no event has occurred and is continuing that, with the giving of notice or the passage of time or both, could constitute a default) with respect to any Governmental Approval, which default could reasonably be expected to result in a Material Adverse Effect.

(g) Security Interests. The Indenture Documents, the Authorizing Legislation and [*insert any other state or municipal code reference authorizing statutory ability to create a lien*] establish, in favor of the Trustee for the benefit of the TIFIA Lender, the valid and binding Liens on the Trust Estate that they purport to create, irrespective of whether any Person has notice of the pledge and without the need for any physical delivery, recordation, filing, or further act. Such Liens are in full force and effect and are not subordinate or junior to any other Liens in

[101] The use of a disclosure schedule in connection with this representation and warranty will be considered on a case by case basis, subject to approval by the TIFIA Lender in its sole discretion.

respect of the Trust Estate except for the Liens associated with Senior Obligations, and not *pari passu* with any obligations other than the Pari Passu Obligations. The Borrower has duly and lawfully taken all actions required under this Agreement, the Indenture Documents, and applicable laws for the pledge of the Trust Estate pursuant to and in accordance with the Indenture Documents. The Borrower is not in breach of any covenants set forth in Section 15(a) (*Securing Liens*) or in the Indenture Documents with respect to the matters described in such section or documents. As of the Effective Date and as of each other date this representation and warranty is made, (i) all documents and instruments have been recorded or filed for record in such manner and in such places as are required and all other action as is necessary or desirable has been taken to establish a legal, valid, binding, and enforceable Lien on the Trust Estate in favor of the Trustee (for the benefit of the Secured Parties) to the extent contemplated by the Indenture Documents, and (ii) all taxes and filing fees that are due and payable in connection with the execution, delivery or recordation of any Indenture Documents or any instruments, certificates or financing statements in connection with the foregoing, have been paid. Neither the attachment, perfection, validity, enforceability or priority of the security interest in the Trust Estate granted pursuant to the Indenture Documents is governed by Article 9 of the UCC.[102]

(h) No Debarment. The Borrower has fully complied with its verification obligations under 2 CFR § 180.320 and confirms that, to its knowledge, neither the Borrower nor any of its principals (as defined in 2 CFR § 180.995) is debarred, suspended or voluntarily excluded from participation in Federal Government contracts, procurement or non-procurement matters or delinquent on a Federal Government debt as more fully set forth in the certificate delivered pursuant to Section 12(a)(iv) (*Conditions Precedent to Effectiveness*). Further, the Borrower has fully complied with 2 CFR Part 180, including Subpart C, in particular §§ 180.300 and 180.330, and with 2 CFR § 1200.332. The Borrower is not aware of any non-compliance by any of its contractors or subcontractors on the Project with the applicable requirements of 2 CFR Part 180.

(i) Accuracy of Representations and Warranties. The representations, warranties and certifications of the Borrower set forth in this Agreement and the other Related Documents are true, correct, and complete, except to the extent such representations and warranties expressly relate to an earlier date (in which case, such representations and warranties shall be true, correct, and complete as of such earlier date).

(j) Compliance with Federal Requirements. The Borrower has complied, with respect to the Project, with all applicable requirements of NEPA, the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 (42 U.S.C. § 4601 *et seq*.), and Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d *et seq*.).

(k) Transportation Improvement Program. The Project has been included in (i) the metropolitan transportation improvement program adopted by the [*insert name of federally designated metropolitan planning organization for the region*], (ii) the State

[102] To the extent the Borrower's grant of a security interest is covered by the UCC, and not by state or local law, UCC filings will be required and the above language will be replaced with UCC-related representations and warranties.

transportation plan, and (iii) the State transportation improvement program approved by the USDOT or its designated agency, in each case to the extent required by 23 U.S.C. §§ 134 and 135 and 23 U.S.C. § 602(a)(3), as applicable. The financial plan for each such program or plan reflects the costs of, and the sources of funding for, the Project.

(l) Credit Ratings. Each of the Senior Obligations and the TIFIA Loan has received an Investment Grade Rating from at least two (2) Rating Agencies, and written evidence of such ratings has been provided to the TIFIA Lender prior to the Effective Date, and no such rating has been reduced, withdrawn or suspended as of the Effective Date.[103]

(m) No Defaults. No Default or Event of Default, and no event of default (howsoever described or designated) of the Borrower under any Related Document has occurred and is continuing.

(n) Governmental Approvals. All Governmental Approvals required as of the Effective Date and any subsequent date on which this representation is made (or deemed made) for the undertaking and completion by the Borrower of the Project, and for the operation and management thereof, have been obtained or effected and are in full force and effect and there is no basis for, nor proceeding that is pending or threatened that could reasonably be expected to result in, the revocation of any such Governmental Approval.

(o) Principal Project Contracts. Each Principal Project Contract in effect as of any date on which this representation and warranty is made is in full force and effect and all conditions precedent to the obligations of the respective parties under each Principal Project Contract have been satisfied. The Borrower has delivered to the TIFIA Lender a fully executed, complete, and correct copy of each such Principal Project Contract and each Additional Project Contract required to be delivered to, or requested by, the TIFIA Lender pursuant to Section 15(b) (*Copies of Documents*) (including, in each case, all exhibits, schedules and other attachments) that is in effect, including any amendments or modifications thereto and any related credit support instruments or side letters. No event has occurred that gives the Borrower or, to the Borrower's knowledge, any Principal Project Party, the right to terminate any Principal Project Contract. The Borrower is not in breach of, or in default under, any Principal Project Contract, and, to the knowledge of the Borrower, no Principal Project Party is in breach of, or in default under, any material term of any Principal Project Contract.

(p) Information. The information furnished by the Borrower to the TIFIA Lender, when taken as a whole, does not contain any untrue statement of a material fact or omit to state any material fact necessary to make the statements contained therein not misleading as of the date made or furnished; provided that no representation or warranty is made with regard to projections or other forward-looking statements provided by or on behalf of the Borrower (including the Base Case Financial Model, any Revised Financial Model, and the assumptions therein) except that the assumptions in the Base Case Financial Model and any Revised Financial Model were reasonable in all material respects when made.

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[103] If the total aggregate principal amount of the Senior Obligations and the TIFIA Loan is less than $150,000,000, one rating agency opinion for each of the Senior Obligations and the TIFIA Loan shall be sufficient.

(q) OFAC; Anti-Corruption Laws.

(i) None of the Borrower[, any other Borrower Related Party,] nor, to the knowledge of the Borrower, any Principal Project Party is a Sanctioned Person.

(ii) None of the Borrower[, any other Borrower Related Party,] nor, to the knowledge of the Borrower, any Principal Project Party is in violation of or, since the date that is five (5) years prior to the Effective Date, has violated: (A) any applicable Anti-Money Laundering Laws; (B) any applicable Sanctions; (C) any applicable Anti-Corruption Laws; or (D) any applicable anti-drug trafficking or anti-terrorism laws, civil or criminal.

(iii) There are no pending or, to the knowledge of the Borrower, threatened claims or investigations by any Governmental Authority against, or any internal investigations conducted by, the Borrower or any Principal Project Party, with respect to any possible or alleged violations of any Sanctions, Anti-Money Laundering Laws, Anti-Corruption Laws, or any anti-drug trafficking or anti-terrorism laws.

(iv) No use of proceeds of the TIFIA Loan or other transaction contemplated by this Agreement or any other Related Document will violate any applicable Sanctions, Anti-Money Laundering Laws, or Anti-Corruption Laws, or any applicable anti-drug trafficking or anti-terrorism laws.

(r) Compliance with Law. [The Borrower] [Each of the Borrower and each other Borrower Related Party] is in compliance in all material respects with, and has conducted (or caused to be conducted) its business and government functions and the business and operations of the Project in compliance in all material respects with, all applicable laws (other than Environmental Laws, which are addressed in Section 13(s) (*Environmental Matters*)), including those set forth on **Exhibit E**, to the extent applicable. To the Borrower's knowledge, each Principal Project Party is, and has caused its respective contractors and subcontractors to be, in compliance in all material respects with all applicable laws, including those set forth on **Exhibit E**, to the extent applicable. No notices of violation of any applicable law have been issued, entered or received by the Borrower[, any other Borrower Related Party] or, to the Borrower's knowledge and solely in respect of the Project or any Principal Project Contract, any Principal Project Party, other than, in each case, notices of violations that are immaterial.

(s) Environmental Matters. Each of the Borrower[, each other Borrower Related Party] and, to the Borrower's knowledge, each Principal Project Party is in compliance with all laws applicable to the Project relating to (i) air emissions, (ii) discharges to surface water or ground water, (iii) noise emissions, (iv) solid or liquid waste disposal, (v) the use, generation, storage, transportation or disposal of toxic or hazardous substances or wastes, (vi) biological resources (such as threatened and endangered species), and (vii) other environmental, health or safety matters, including all laws applicable to the Project referenced in the notice "Federal Environmental Statutes, Regulations, and Executive Orders Applicable to the Development and Review of Transportation Infrastructure Projects," 79 Fed. Reg. 22756 (April 23, 2014) (or any successor Federal Register notice of similar import), which document is available at http://www.transportation.gov/policy/transportation-policy/environment/laws ("**Environmental**

Laws"). All Governmental Approvals for the Project relating to Environmental Laws have been, or, when required, will be, obtained and are (or, as applicable, will be) in full force and effect. [The Borrower has not][Neither the Borrower nor any other Borrower Related Party has] received any written communication or notice, whether from a Governmental Authority, employee, citizens group, or any other Person, that alleges that the Borrower [or such other Borrower Related Party] is not in full compliance with all Environmental Laws and Governmental Approvals relating thereto in connection with the Project and, to the Borrower's knowledge, there are no circumstances that may prevent or interfere with full compliance in the future by the Borrower [or any other Borrower Related Party] with any such Environmental Law or Governmental Approval. The Borrower has provided to the TIFIA Lender all material assessments, reports, results of investigations or audits, and other material information in the possession of or reasonably available to the Borrower [or any other Borrower Related Party] regarding the Borrower's or the Project's compliance with (A) Environmental Laws, and (B) Governmental Approvals relating to Environmental Laws that are required for the Project.

(t) Sufficient Rights and Utilities. The Borrower possesses either valid legal and beneficial title to, leasehold title in, or other valid legal rights with respect to the real property relating to the Project, in each case as is necessary and sufficient as of the date this representation is made for the construction, operation, maintenance and repair of the Project. As of any date on which this representation and warranty is made, the Principal Project Contracts then in effect and the Governmental Approvals that have been obtained and are then in full force and effect create rights in the Borrower sufficient to enable the Borrower to [own,] construct, operate, maintain and repair the Project and to perform its obligations under the Principal Project Contracts to which it is a party. All utility services, means of transportation, facilities and other materials necessary for the construction and operation of the Project (including, as necessary, gas, electrical, water and sewage services and facilities) are, or will be when needed, available to the Project and arrangements in respect thereof have been made on commercially reasonable terms.

(u) Insurance. The Borrower is in compliance with all insurance obligations required under each Principal Project Contract and the other Related Documents as of the date on which this representation and warranty is made. To the extent the Borrower self-insures, the Borrower's self-insurance program is actuarially sound and the Borrower has received an opinion from an accredited actuary within the last twelve (12) months, which opinion confirms that the Borrower's self-insurance program is actuarially sound.

(v) Title. The Borrower has valid legal and beneficial title to, or a valid leasehold interest in, the personal property and other assets and revenues thereof (including the Pledged Revenues and the Trust Estate) on which it purports to grant Liens pursuant to the Indenture Documents, in each case free and clear of any Lien of any kind, except for Permitted Liens.

(w) No Liens. Except for Permitted Liens, the Borrower has not created, and is not under any obligation to create, and has not entered into any transaction or agreement that would result in the imposition of, any Lien on the Trust Estate, the Project, the Pledged Revenues, or the properties or assets in relation to the Project.

(x) Intellectual Property. The Borrower owns, or has adequate licenses or other valid rights to use, all patents, trademarks, service marks, trade names, copyrights, franchises, formulas, licenses and other rights with respect thereto and has obtained assignment of all licenses and other rights of whatsoever nature, in each case necessary for the Project and the operation of its business. To the Borrower's knowledge, there exists no conflict with the rights or title of any third party with respect to the intellectual property described in the preceding sentence. Excluding the use of commercially available "off-the-shelf" software, to the Borrower's knowledge, no product, process, method, substance, part or other material produced or employed or presently contemplated to be produced by or employed by the Project infringes or will infringe any patent, trademark, service mark, trade name, copyright, franchise, formula, license or other intellectual property right of any third party.

(y) Investment Company Act. The Borrower is not, and after applying the proceeds of the TIFIA Loan will not be, required to register as an "investment company" within the meaning of the Investment Company Act of 1940, as amended, and is not "controlled" by a company required to register as an "investment company" under the Investment Company Act of 1940, as amended.

(z) Financial Statements. Each income statement, balance sheet, and statement of operations and cash flows (collectively, "**Financial Statements**") delivered to the TIFIA Lender pursuant to Section 21(c) (*Financial Statements*) has been prepared in accordance with GAAP and presents fairly, in all material respects, the financial condition of the Borrower as of the respective dates of the balance sheets included therein and the results of operations of the Borrower for the respective periods covered by the statements of income included therein. Except as reflected in such Financial Statements, there are no liabilities or obligations of the Borrower of any nature whatsoever for the period to which such Financial Statements relate that are required to be disclosed in accordance with GAAP.

(aa) [Taxes. The Borrower has (i) filed all tax returns required by applicable laws to be filed by it, and (ii) paid all income taxes payable by it that have become due pursuant to such tax returns and all other material taxes and assessments payable by it that have become due (other than those taxes that it is contesting in good faith and by appropriate proceedings, for which adequate reserves have been established to the extent required by GAAP).][The Borrower is not required to file tax returns with any Governmental Authority.][104]

(bb) ERISA. Neither the Borrower nor any ERISA Affiliate maintains or otherwise has any liability in respect of any plan or other arrangement that is subject to ERISA or Section 412 of the Tax Code.

(cc) Sufficient Funds. The aggregate of (i) all funds that are undrawn but fully and completely committed under the Indenture Documents, [*insert other funding documents as applicable*], and this Agreement, (ii) all delay payments and insurance proceeds in respect of any casualty loss (other than any proceeds of business interruption insurance, delay-in-start-up insurance and proceeds covering liability of the Borrower to third parties) received by the

[104] Text to be revised as appropriate.

Borrower or to which the Borrower is entitled in accordance with the applicable insurance policies and Principal Project Contracts, and (iii) all funds available under any other unused funding that is committed and available, will be sufficient to pay all Total Project Costs necessary to achieve Substantial Completion.

(dd) Sovereign Immunity. The Borrower [and, to the Borrower's knowledge, each other Borrower Related Party,] either has no immunity from the jurisdiction of any court of competent jurisdiction or from any legal process therein which could be asserted in any action to enforce the obligations of the Borrower [or such other Borrower Related Party] under any of the Related Documents to which it is a party or the transactions contemplated hereby or thereby, including the obligations of the Borrower hereunder and thereunder, or, to the extent that the Borrower [and, to the Borrower's knowledge, any other Borrower Related Party,] has such immunity, the Borrower [and, to the Borrower's knowledge, each such Borrower Related Party,] has waived such immunity pursuant to Section 15(r) (*Immunity*).[105][106]

(ee) Patriot Act. [The Borrower is not required to establish an anti-money laundering compliance program pursuant to the Patriot Act][Neither the Borrower nor any Borrower Related Party is required to establish an anti-money laundering compliance program pursuant to the Patriot Act][The Borrower [and each Borrower Related Party that is subject to compliance with the Patriot Act] has established an anti-money laundering compliance program as required by the Patriot Act and is in compliance with the Patriot Act in all material respects].[107]

Section 14. Representations and Warranties of TIFIA Lender. The TIFIA Lender represents and warrants that:

(a) Power and Authority. The TIFIA Lender has all requisite power and authority to make the TIFIA Loan and to perform all transactions contemplated by the Related Documents to which it is a party.

(b) Due Execution; Enforceability. The Related Documents to which it is a party have been duly authorized, executed and delivered by the TIFIA Lender, and are legally valid and binding agreements of the TIFIA Lender, enforceable in accordance with their terms.

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[105] To the extent the Borrower (and Borrower Related Parties, as applicable) is prohibited by law from waiving sovereign immunity, this representation can be deleted subject to confirmation and diligence of such legal prohibition by TIFIA.

[106] To be modified as appropriate to reflect any unique aspects of the State law, including by adding a waiver of sovereign immunity where the Borrower (and/or any Borrower Related Party, as applicable) has such immunity and is entitled to waive it as a matter of State law.

[107] To the extent the Borrower is exempt from the anti-money laundering provisions of the Patriot Act, the following language (modified as necessary) may be used as in lieu of the above language: "Pursuant to [31 CFR § 1010.205(a)], the Borrower [and each other Borrower Related Party] is exempt from the provisions of 31 U.S.C. Chapter 5318(h)(1) concerning the establishment of anti-money laundering programs."

(c) Officers' Authorization. The officers of the TIFIA Lender executing each of the Related Documents to which the TIFIA Lender is a party are duly and properly in office and fully authorized to execute the same on behalf of the TIFIA Lender.

Section 15. Affirmative Covenants. The Borrower covenants and agrees as follows until the date the TIFIA Bond and the obligations of the Borrower under this Agreement (other than contingent indemnity obligations) are irrevocably paid in full in cash and the TIFIA Lender no longer has any commitment to make disbursements to the Borrower, unless the TIFIA Lender waives compliance in writing:

(a) Securing Liens. The Borrower shall at any and all times, so far as it may be authorized by law, pass, make, do, execute, acknowledge and deliver, all and every such further resolutions, acts, deeds, conveyances, assignments, transfers and assurances as may be necessary or desirable in connection with assuring, conveying, granting, assigning, securing and confirming the Liens in and to the Trust Estate (whether now existing or hereafter arising) granted to the Trustee for the benefit of the TIFIA Lender pursuant to the Indenture Documents, or intended so to be granted pursuant to the Indenture Documents, or which the Borrower may become bound to grant, and the Borrower shall at all times maintain the Trust Estate free and clear of any pledge, Lien, charge or encumbrance thereon or with respect thereto that has priority over, or equal rank with, the Liens created by the Indenture Documents, other than as permitted by this Agreement, and all organizational, regulatory or other necessary action on the part of the Borrower to that end shall be duly and validly taken at all times. The Borrower shall at all times, to the extent permitted by law, defend, preserve and protect the Liens on the Trust Estate granted pursuant to the Indenture Documents and all the rights of the Trustee for the benefit of the TIFIA Lender under the Indenture Documents against all claims and demands of all Persons whomsoever, subject to the Liens granted pursuant to the Indenture Documents.

(b) Copies of Documents.

(i) The Borrower shall provide to the TIFIA Lender a copy of any draft Indenture Documents in connection with the incurrence of any Permitted Debt or indebtedness subject to approval by the TIFIA Lender pursuant to Section 16(a) (*Indebtedness*), in each case at least twenty (20) days prior to the incurrence of such indebtedness. The Borrower shall provide to the TIFIA Lender a fully executed or final version of each such Indenture Document (or other comparable transaction documentation) within ten (10) days following execution or completion thereof.

(ii) The Borrower shall provide to the TIFIA Lender, promptly after the sending or receipt thereof, copies of (A) final ratings presentations sent to, and any notices, reports or other written materials (other than those that are ministerial in nature) received from, any Rating Agency that has provided, or is being requested to provide, a rating with respect to the Project or any indebtedness of the Borrower that is or will be secured by or paid from the Trust Estate or any portion thereof, including the Pledged Revenues, (B) all notices and other written communications received by the Borrower from the Trustee or any Bondholder, (C) all reports, notices and other written materials required to be sent to the Trustee or any Bondholder under the Indenture Documents, and (D) all notices delivered by or to the Borrower relating to any of the Principal Project

Contracts; unless, in each case, the TIFIA Lender notifies the Borrower in writing that any such reports, notices and/or other written materials no longer need to be provided.[108]

(iii) Except as otherwise agreed by the TIFIA Lender in writing, the Borrower will provide to the TIFIA Lender (A) copies of any proposed amendments, modifications, replacements of, or supplements to any Related Document (other than proposed amendments, modifications, replacements or supplements that are ministerial in nature and do not change any substantive provision of such Related Document) at least thirty (30) days prior to the effective date thereof, and (B) complete, correct and fully executed copies of any amendment, modification or supplement to, or replacement of, any Related Document within five (5) Business Days after execution thereof.

(iv) If the Borrower enters into a Principal Project Contract after the Effective Date, the Borrower shall provide to the TIFIA Lender an executed version of such Principal Project Contract, together with any related performance security instruments, contracts, side letters or other understandings, promptly following the full execution thereof.[109]

(c) Use of Proceeds. The Borrower shall use the proceeds of the TIFIA Loan for purposes permitted by applicable law and as otherwise permitted under this Agreement and the other Related Documents.

(d) Prosecution of Work; Verification Requirements.

(i) The Borrower shall diligently prosecute the work relating to the Project and complete the Project in accordance with the Construction Schedule,[110] and in accordance with the highest standards of the Borrower's industry.

(ii) The Borrower shall ensure that each Construction Contractor complies with all applicable laws and legal or contractual requirements with respect to any performance security instrument delivered by such Construction Contractor to the Borrower or to any other Borrower Related Party and shall ensure that any letter of credit provided pursuant to any Construction Agreement meets the requirements therefor set forth in such Construction Agreement.

(iii) The Borrower shall comply with 2 CFR Part 180, including Subpart C, in particular §§ 180.300 and 180.320, and with 2 CFR § 1200.332.

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[108] To be refined and, if appropriate, limited on a case by case basis.

[109] In specific instances, the TIFIA Lender may reserve the right to provide comments to certain Fundamental Contracts to be entered into after the Effective Date, in which cases the Borrower shall be required to use best efforts to incorporate comments from the TIFIA Lender into the relevant Fundamental Contract.

[110] For projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project, if a Recovery Plan is required pursuant to § 23(b)(ii), changes to the Construction Schedule may be affected or limited by applicable provisions in the Recovery Plan.

(e) Operations and Maintenance. The Borrower shall (i) operate and maintain the Project (A) in a reasonable and prudent manner and (B) substantially in accordance with its regulations, standards and guidelines and those of [the applicable USDOT modal agency] [and the [insert any additional State agency or authority with oversight over the project's operation and maintenance]], and (ii) maintain the Project in good repair, working order and condition and in accordance with the requirements of all applicable laws and each applicable Related Document. The Borrower shall at all times do or cause to be done all things necessary to obtain, preserve, renew, extend, and keep in full force and effect all Governmental Approvals and other rights, licenses, franchises, and authorizations necessary for the operation and maintenance of the Project or material to the conduct of its business.

(f) Insurance.

(i) The Borrower shall at all times maintain or cause to be maintained insurance for the construction of the Project, with responsible insurers, as required by the Principal Project Contracts and as is customarily maintained in the United States of America with respect to works and properties of like character, against accident to, loss of or damage to such works or properties, which shall include liability coverage and pollution and other environmental liability and remediation related coverage. The Borrower shall cause each Principal Project Party to obtain and maintain casualty and liability insurance in accordance with the requirements of the applicable Principal Project Contract.

(ii) The Borrower shall at all times maintain with responsible insurers or through a program of self-insurance all such insurance on the Project as is customarily maintained with respect to works and properties of like character against accident to, loss of, or damage to such works or properties.

(iii) To the extent the Borrower elects to self-insure, the Borrower shall deliver to the TIFIA Lender annually a written opinion of an accredited actuary that confirms that the Borrower's self-insurance program is actuarially sound.

(iv) The Borrower shall prepay the TIFIA Loan in whole or in part, without penalty or premium, from any Net Loss Proceeds available for prepayment of the TIFIA Loan in accordance with Section 10(a) (*Mandatory Prepayments*).

(v) The Borrower shall (by self-insuring or maintaining with responsible insurers or by a combination thereof) provide for workers' compensation insurance for Borrower's workers and insurance against public liability and property damage to the Project to the extent reasonably necessary to protect the Borrower and the TIFIA Lender.

(vi) The Borrower shall cause all liability insurance policies that it maintains (and, during the Construction Period, that are maintained by any Construction Contractor), other than workers' compensation insurance, to reflect the TIFIA Lender as an additional insured to the extent of its insurable interest.

(vii) The Borrower shall deliver to the TIFIA Lender all (A) insurance brokers' letters, and (B) certificates of insurance, in each case promptly after Borrower's receipt thereof and in any event no later than when required to be delivered pursuant to the Indenture. Promptly upon request by the TIFIA Lender, the Borrower shall deliver to the TIFIA Lender copies of any underlying insurance policies obtained by or on behalf of the Borrower in respect of the Project. All such policies shall be available at all reasonable times for inspection by the TIFIA Lender, its agents and representatives.

(viii) The Borrower shall comply with the insurance requirements of the Indenture Documents and shall deliver to the TIFIA Lender within five (5) Business Days after receipt thereof any certifications or opinions provided to the Borrower pursuant to Section [__] of the Indenture with respect to the Borrower's program of insurance or self-insurance.

(g) Notice.

(i) The Borrower shall, within five (5) Business Days after the Borrower learns of the occurrence, give the TIFIA Lender notice of any of the following events or receipt of any of the following notices, as applicable, setting forth details of such event:

(A) Substantial Completion: the occurrence of Substantial Completion, such notice to be provided in the form set forth in **Exhibit L**;

(B) Ratings Changes: any change in the rating assigned to the Senior Obligations, the TIFIA Loan [or][,] any Pari Passu Obligations [or any Subordinated Obligations] by any Rating Agency that has provided a rating on such indebtedness, the Borrower, or the Pledged Revenues;

(C) Defaults; Events of Default: the occurrence of any Default or Event of Default;

(D) Litigation: (1) the filing of any litigation, suit or action, or the commencement of any proceeding, against the Borrower before any arbitrator, Governmental Authority, alternative dispute resolution body, or other neutral third-party, or the receipt by the Borrower in writing of any threat of litigation, suit, action, or proceeding, or of any written claim against the Borrower that, in each case, could reasonably be expected to have a Material Adverse Effect, and any material changes in the status of such litigation, suit, action or claim, [and] (2) any judgments against the Borrower with award amounts in excess of $[___], either individually or in the aggregate[, and (3) any material notices or filings in respect of any action, petition, suit or proceeding listed in Schedule 13(f)];

(E) Delayed Governmental Approvals: any failure to receive or delay in receiving any Governmental Approval or making any required filing, notice, recordation or other demonstration to or with a Governmental Authority, in each case to the extent such failure or delay

will or could reasonably be expected to result in a delay to any major milestone date (including the Projected Substantial Completion Date) set forth in the Construction Schedule, together with a written explanation of the reasons for such failure or delay and the Borrower's plans to remedy or mitigate the effects of such failure or delay;

(F) Environmental Notices: any notice of material violation under any Environmental Law related to the Project or any material changes to the NEPA Determination;

(G) Insurance Claim: any insurance claims made by the Borrower or a Construction Contractor in respect of the Project in excess of $[____] either individually or in the aggregate, to the extent related to the Project or to the extent the proceeds from such insurance claim would be deposited into a Project Account;

(H) Amendments: except as otherwise agreed by the TIFIA Lender in writing, copies of (1) any proposed amendments to any Principal Project Contract or other Related Document at least thirty (30) days prior to the effective date thereof and (2) fully executed amendments within ten (10) days following execution thereof;

(I) Principal Project Contract Defaults: any material breach or default or event of default on the part of the Borrower or any other party under any Principal Project Contract;

(J) Uncontrollable Force: the occurrence of any Uncontrollable Force that could reasonably be expected to result in a Material Adverse Effect;

(K) Project Changes: any (1) change to the Total Project Costs forecasts [in excess of [___] percent ([__]%) of forecasted Total Project Costs], (2) proposed change to the Projected Substantial Completion Date, together with an explanation of the reasons for such proposed adjustment, and (3) material change to the Construction Schedule; [111]

(L) 2 CFR Notices: (1) that any of the information set forth in the certificate provided pursuant to Section 12(a)(iv) (*Conditions Precedent to Effectiveness*) was incorrect at the time the certificate was delivered or there has been a change in status of the Borrower or any of its

[111] For projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project, this clause will be revised as follows: "any (1) change to Total Project Costs in excess of five percent (5%) of Eligible Project Costs, (2) any change to the construction schedule for the Project in excess of five percent (5%) of the total number of days reflected in the Construction Schedule attached as **Schedule II**, or (3) proposed change to the Projected Substantial Completion Date, together with an explanation of the reasons for such proposed adjustment."

principals with respect to the criteria set forth in 2 CFR § 180.335; (2) any other notification required pursuant to 2 CFR § 180.350; and (3) any violation of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting the TIFIA Loan as described in 2 CFR § 200.113, and the Borrower shall require its subcontractors to provide it notice of any such violation;

(M) Material Events: the filing of (together with a copy of) any notice to the Municipal Securities Rulemaking Board of any of the events described in clause (b)(5)(i)(C) of Rule 15c2-12 of the U.S. Securities and Exchange Commission (or any similar rule); and

(N) Other Adverse Events: the occurrence of any other event or condition, including any notice of breach from a contract counterparty, that could reasonably be expected to result in a Material Adverse Effect.

(ii) The Borrower shall provide the TIFIA Lender with any further information reasonably requested by the TIFIA Lender from time to time concerning the matters described in Section 15(g)(i) (*Notice*).

(h) Remedial Action. Within thirty (30) calendar days after the Borrower learns of the occurrence of an event specified in Section 15(g)(i) (*Notice*) (other than in Section 15(g)(i)(A) (*Substantial Completion*), Section 15(g)(i)(B) (*Ratings Changes*) (in the case of a ratings upgrade) or Section 15(g)(i)(H) (*Amendments*)), the Borrower's Authorized Representative shall provide a statement to the TIFIA Lender setting forth the actions the Borrower proposes to take with respect thereto.

(i) Maintain Legal Structure. The Borrower shall maintain its existence as [_____], a [_____] under the laws of the State.

(j) Annual Rating. The Borrower shall, [commencing in 20[__]], no later than the last Business Day of June of each year during the term of the TIFIA Bond, at no cost to the TIFIA Lender, provide to the TIFIA Lender a public rating on each of the Obligations issued pursuant to the Indenture (including the TIFIA Bond) by a Rating Agency, together with the rating report or letter delivered by such Rating Agency in connection with each such rating, in each case prepared no earlier than June 1 of such year.

(k) Project Accounts; Permitted Investments.

(i) The Borrower shall maintain the Debt Service Reserve Account in an amount equal to the Debt Service Reserve Required Balance and the TIFIA Debt Service Reserve Account in an amount equal to the TIFIA Debt Service Reserve Required Balance, in each case in accordance with the provisions of this Agreement and the applicable Indenture Documents. Amounts in the Debt Service Reserve Account shall be made available to ensure the timely payment of Debt Service on the Senior Obligations and amounts in the TIFIA Debt Service Reserve Account shall be made available to ensure the timely payment of TIFIA Debt Service on the TIFIA Loan.

(ii) To the extent not provided in Section 15(k)(i) (*Project Accounts; Permitted Investments*), the Borrower shall cause the other Reserve Accounts to be funded in such amounts and under such conditions as are required by this Agreement and the Indenture Documents.

(iii) Amounts on deposit in the Project Accounts shall be held uninvested or invested in Permitted Investments. Permitted Investments must mature or be redeemable at the election of the holder as follows: (A) with respect to Permitted Investments maintained in the TIFIA Debt Service Reserve Account, not later than the next Semi-Annual Payment Date, (B) with respect to Permitted Investments maintained in the TIFIA Debt Service Account or in any debt service account in respect of Senior Obligations corresponding to amounts needed for the payment of interest, not later than the next Semi-Annual Payment Date, (C) with respect to Permitted Investments maintained in the TIFIA Debt Service Account or in any debt service account for Senior Obligations corresponding to amounts needed for the repayment of principal, the next Payment Date for repayment of principal in respect of such debt, and (D) with respect to any other Project Accounts, on or prior to the date on which the funds invested in such Permitted Investments are reasonably expected to be needed for any payment from the applicable Project Account.[112]

(iv) The Borrower may replace all or a portion of the required balance of any Reserve Account, in accordance with the terms of the applicable Indenture Documents, with a Liquidity Facility provided by a financial institution with an Acceptable Credit Rating. If at any time an issuer of an Acceptable Letter of Credit securing a Reserve Account ceases to be a Qualified Issuer, the Borrower shall cause such letter of credit to be replaced by a new Acceptable Letter of Credit within [ten (10)] [thirty (30)][113] calendar days of the date on which the current issuer ceased to be a Qualified Issuer, or the Trustee shall be permitted to immediately draw the full amount of such letter of credit and deposit the proceeds of such drawing into the applicable Reserve Account. Any new Acceptable Letter of Credit shall have the same terms and conditions (including expiration date and face amount) as the letter of credit being replaced, or such other terms and conditions as may be satisfactory to the TIFIA Lender. If any letter of credit securing a Reserve Account is scheduled to expire prior to the Final Maturity Date, the Borrower shall replace such letter of credit with a new Acceptable Letter of Credit at least ten (10) Business Days prior to the stated expiry date of the existing letter of credit and such new Acceptable Letter of Credit shall be in an amount equal to at least the amount of expiring letter of credit. If the Borrower fails to provide such new Acceptable Letter of Credit by the date required above, the Trustee shall be permitted to immediately draw the full undrawn amount of the existing letter of credit and deposit the proceeds of such drawing into the applicable Reserve Account.

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[112] This provision may be revised (as necessary) (i) to the extent the Borrower is subject to more stringent statutory investment restrictions and (ii) to include such additional investments as shall conform with Rating Agency guidelines.

[113] See "Acceptable Credit Rating" definition and corresponding footnote thereto.

(l) Rate Coverage. The Borrower shall, subject to the remainder of this paragraph, fix, charge and collect rates and charges such that Net Cash Flow in each Calculation Period through the Final Maturity Date shall be projected to produce (i) a Debt Service Coverage Ratio at least equal to [____] in each such Calculation Period, (ii) a Total Debt Service Coverage Ratio at least equal to [___] in each such Calculation Period, and (iii) a TIFIA Loan Life Coverage Ratio at least equal to [_____] as of each Calculation Date through the Final Maturity Date (clauses (i), (ii), and (iii) collectively, the "**Rate Coverage Test**"). If the forecast furnished by the Borrower pursuant hereto (including in any Financial Plan or Semi-Annual Coverage Certificate) demonstrates that projected Net Cash Flow may be inadequate to satisfy the Rate Coverage Test for any Calculation Period until the Final Maturity Date, or if the Borrower fails to satisfy the Rate Coverage Test in respect of any Calculation Period then ended, the Borrower shall (x) within [thirty (30)] days after request by the TIFIA Lender, engage the [Traffic Consultant] to review and analyze the operations of the Project and recommend actions regarding revising the rates or changing the methods of operations, or any other actions to increase the Net Cash Flow so as to satisfy the Rate Coverage Test, (y) cause the [Traffic Consultant] to issue its report, including any such recommended actions, no later than [ninety (90)] days following such engagement, and (z) either (A) implement the [Traffic Consultant's] recommendation or (B) undertake an alternative course of action after demonstrating to the TIFIA Lender's satisfaction the manifest errors contained in the [Traffic Consultant's] recommended actions, or to the extent agreed upon by the TIFIA Lender, undertake an alternative course of action that will ensure the Borrower's ability to meet its payment obligations under this Agreement.[114]

(m) [Compliance with Law. The Borrower shall comply in all material respects with all applicable material federal and State laws, including (i) all items set forth in **Exhibit E**, to the extent applicable, and (ii) the terms and conditions of the FTA Master Grant Agreement, which has no expiration date and which continues to apply until modified or superseded as outlined therein.][115]

(n) Material Obligations; Liens. The Borrower shall pay its material obligations promptly and in accordance with their terms and pay and discharge promptly all taxes, assessments and governmental charges or levies imposed upon it or upon the Trust Estate or any portion thereof, including the Pledged Revenues, or the Borrower's other income or profits or in respect of its property, before the same shall become delinquent or in default, as well as all lawful and material claims for labor, materials and supplies or other claims which, if unpaid, might give rise to a Lien upon such properties or any part thereof or on the Trust Estate or any portion thereof, including the Pledged Revenues; provided, however, that such payment and discharge shall not be required with respect to any such tax, assessment, charge, levy, claim

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[114] In certain transactions, a broader sufficiency test showing ability to cover all revenue requirements may be utilized. In addition, in circumstances where the Borrower commissions or receives annual or periodic updates to traffic and revenue studies, the TIFIA Loan Agreement may include a covenant requiring the Borrower to deliver copies of such updates to the TIFIA Lender.

[115] Applicable if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

or Lien so long as the validity or amount thereof shall be contested by the Borrower in good faith by appropriate proceedings and so long as the Borrower shall have set aside adequate reserves with respect thereto in accordance with and to the extent required by GAAP, applied on a consistent basis.

(o) Hedging.[116]

(i) As a condition to the issuance of any Senior Obligations or Pari Passu Obligations that bear interest at a Variable Interest Rate, the Borrower shall enter into a Qualified Hedge with respect to such Senior Obligations and Pari Passu Obligations and shall maintain such Qualified Hedge in place until the earlier to occur of (i) the maturity date of any such Senior Obligations or Pari Passu Obligations and (ii) the Final Maturity Date. Each Qualified Hedge must have an aggregate stated notional amount of not less than (A) during the Construction Period, at least ninety percent (90%) and not more than one hundred ten percent (110%) of the aggregate principal amount of the Variable Interest Rate Obligations projected to be outstanding during such time period and (B) at all other times, at least ninety-eight percent (98%) and not more than one hundred two percent (102%) of the aggregate principal amount of the Variable Interest Rate Obligations projected to be outstanding until the maturity of such Variable Interest Rate Obligations. Any such Qualified Hedge shall have a payment profile that is reasonably consistent with the expected draw and repayment schedule of the applicable Variable Interest Rate Obligations subject to such Qualified Hedge. Such Qualified Hedge shall have a stated maturity or termination date not earlier than the earlier to occur of (x) the Final Maturity Date and (y) the final maturity date of the Variable Interest Rate Obligations subject to such Qualified Hedge.

(ii) Each Qualified Hedge shall provide for a fixed interest rate resulting in fixed payment amounts payable by the Borrower to the Qualified Hedge Provider. The Borrower's obligations to pay Hedging Obligations and Hedging Termination Obligations shall be from the sources and in the priority specified in the Indenture Documents. The Borrower shall ensure that, as of the day following the termination date of any Qualified Hedge that for any reason terminates before the final maturity date of the Variable Interest Rate Obligations subject to such Qualified Hedge, (A) a Subsequent Qualified Hedge (as defined below) is in full force and effect or (B) the Variable Interest Rate Obligations have been converted to a fixed rate, in each case in accordance with this Agreement and the Indenture Documents.

(iii) Any Hedging Transaction entered into subsequent to the Initial Qualified Hedge (a "**Subsequent Qualified Hedge**") shall (A) be a Qualified Hedge, (B) commence no later than the termination date of the Qualified Hedge that is terminating and (C) terminate no earlier than the earlier to occur of (1) the Final Maturity Date and (2) the final maturity date of the Variable Interest Rate Obligations subject to such Subsequent Qualified Hedge.

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[116] If variable rate debt is expressly prohibited throughout the term of the TIFIA Loan, all hedging-related provisions can be omitted.

(iv) The Borrower shall not commence seeking any bids from any Qualified Hedge Provider for a Subsequent Qualified Hedge unless, at least thirty (30) days prior thereto, the Borrower has delivered to the TIFIA Lender evidence satisfactory to the TIFIA Lender and certified by the Borrower's Authorized Representative that the process to be utilized by the Borrower for selecting such Subsequent Qualified Hedge is a competitive process designed to obtain a fair market price and to avoid conflicts of interest. At the time the Subsequent Qualified Hedge is priced, the Borrower shall provide to the TIFIA Lender a certificate from a qualified third party acceptable to the TIFIA Lender to the effect that either the underlying fixed rate or the price of acquiring such Subsequent Qualified Hedge is a fair price based on the interest rate market at the time such Qualified Hedge is priced.

(v) The Trustee shall be granted a security interest in each Qualified Hedge and payments due under each Qualified Hedge in order to secure the Borrower's obligations under the TIFIA Loan Documents. The Hedging Agreements shall provide that all payments due thereunder to the Borrower shall be made directly to the Trustee for deposit and disbursement in accordance with the Indenture Documents.

(vi) The Borrower shall neither terminate (other than Permitted Hedging Terminations), transfer, nor consent to any transfer (other than to a Qualified Hedge Provider) of any existing Qualified Hedge without the TIFIA Lender's prior written consent as long as the Borrower is required to maintain a Qualified Hedge pursuant to this Agreement.

(vii) If at any time a Hedging Bank no longer satisfies the requirements for a Qualified Hedge Provider, the Borrower shall, within thirty (30) days (or such lesser number of days required by the applicable Hedging Agreement, including any credit support annex thereto) of the date on which such Hedging Bank failed to qualify as a Qualified Hedge Provider, either (A) cash collateralize the mark-to-market value of the Hedging Termination Obligations (in accordance with the credit support annex or similar requirements of the applicable Hedging Agreement) or provide a guarantee for such amount from an entity with an Acceptable Credit Rating, or (B) cause such disqualified Hedging Bank to be replaced by a Qualified Hedge Provider, whether by means of a transfer of the disqualified Hedging Bank's Hedging Agreement to a Qualified Hedge Provider or by means of a termination of such disqualified Hedging Bank's Hedging Agreement and replacement thereof by a Hedging Agreement with a Qualified Hedge Provider on terms and conditions that satisfy the requirements of this Section 15(o) (*Hedging*); provided that if the disqualified Hedging Bank's highest credit rating from any Rating Agency is less than 'A-', 'A3' or the equivalent, clause (A) shall not apply and the Borrower shall be required to cause such disqualified Hedging Bank to be replaced by a Qualified Hedge Provider pursuant to clause (B).

(p) SAM Registration. The Borrower shall (i) maintain its active registration status with the federal System for Award Management (www.SAM.gov) (or any successor system or registry) and (ii) within sixty (60) days prior to each anniversary of the Effective Date, provide to the TIFIA Lender evidence of such active registration status with no active exclusions listed in such registration, in each case until the Final Maturity Date or to such earlier date as all

amounts due or to become due to the TIFIA Lender hereunder have been irrevocably paid in full in cash.

(q) Events of Loss; Loss Proceeds.

(i) If an Event of Loss shall occur with respect to the Project or any part thereof, the Borrower shall (A) diligently pursue all of its rights to compensation against all relevant insurers, reinsurers and Governmental Authorities, as applicable, in respect of such event and (B) pay or apply all Loss Proceeds stemming from such event in accordance with Section 15(q)(ii) (*Event of Loss; Loss Proceeds*) and, to the extent applicable, Section 10(a)(ii) (*Mandatory Prepayments*)[; provided, however, that Loss Proceeds must in any event be applied in accordance with all federal disposition rules, including those set forth in the FTA Master Grant Agreement and 2 CFR Part 200.][117]

(ii) The Borrower shall apply all Loss Proceeds as provided in Section [___] of the Indenture. The Borrower shall cause the relevant insurers, reinsurers and Governmental Authorities, as applicable, to pay all Loss Proceeds directly to the Trustee as loss payee and, if paid to the Borrower, shall be received in trust and for the benefit of the Trustee segregated from other funds of the Borrower, and shall be paid over to the Trustee in the same form as received (with any necessary endorsement).

(r) Immunity. Consistent with [insert relevant statutory provision], the Borrower agrees that it will not assert any immunity (and hereby waives any such immunity) it may have as a governmental entity from lawsuits, other actions and claims, and any judgments with respect to the enforcement of any of the obligations of the Borrower under this Agreement or any other TIFIA Loan Document.[118]

(s) Patriot Act. If the anti-money laundering compliance program provisions of the Patriot Act become applicable to the Borrower, then the Borrower will provide written notice to the TIFIA Lender of the same and will promptly establish an anti-money laundering compliance program that complies with all requirements of the Patriot Act.[119]

(t) Cargo Preference Act. Pursuant to 46 CFR Part 381, the Borrower hereby agrees as follows, and shall insert the following clauses in contracts entered into by the Borrower pursuant to which equipment, materials or commodities may be transported by ocean vessel in carrying out the Project:

(i) At least fifty percent (50%) of any equipment, materials or commodities procured, contracted for or otherwise obtained with TIFIA Loan proceeds,

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[117] To be inserted when the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

[118] To be included where, consistent with Section 13(bb), the Borrower has sovereign immunity and is entitled to waive it as a matter of State law.

[119] Subject to modification in accordance with the representation in 14(ee) (*Patriot Act*).

and which may be transported by ocean vessel, shall be transported on privately owned United States-flag commercial vessels, if available.

(ii) Within twenty (20) days following the date of loading for shipments originating within the United States of America or within thirty (30) Business Days following the date of loading for shipments originating outside the United States of America, a legible copy of a rated, 'on-board' commercial ocean bill-of-lading in English for each shipment of cargo described in paragraph (i) above shall be furnished to both the TIFIA Lender and to the Division of National Cargo, Office of Market Development, Maritime Administration, Washington, DC 20590.

(u) Lobbying. The Borrower shall comply with all applicable certification, declaration and/or disclosure requirements under 49 CFR Part 20.

(v) Reporting Subawards and Executive Compensation. To the extent applicable, the Borrower shall comply, and shall require each subrecipient to comply, with the reporting requirements set forth in **Exhibit Q** hereto.

(w) Buy America.

(i) The Borrower agrees that steel, iron, and manufactured products used in the Project are subject to [23 U.S.C. § 313][49 U.S.C. § 5323(j)], as implemented by [FHWA][FTA].[120] The Borrower acknowledges that this Agreement is neither a waiver of [23 U.S.C. § 313(a)][49 U.S.C. § 5323(j)(1)] nor a finding under [23 U.S.C. § 313(b)][49 U.S.C. § 5323(j)(2)].

(ii) The Borrower agrees that construction materials used in the Project are subject to the domestic preference requirement at § 70914 of the Build America, Buy America Act, Pub. L. No. 117-58, div. G, tit. IX, subtit. A, 135 Stat. 429, 1298 (2021), as implemented by the Office of Management and Budget, USDOT, and [*the applicable USDOT modal agency*]. The Borrower acknowledges that this Agreement is neither a waiver of § 70914(a) nor a finding under § 70914(b).

Section 16. Negative Covenants. The Borrower covenants and agrees as follows until the date the TIFIA Bond and the obligations of the Borrower under this Agreement (other than contingent indemnity obligations) are irrevocably paid in full in cash and the TIFIA Lender no longer has any commitment to make disbursements to the Borrower, unless the TIFIA Lender waives compliance in writing:

(a) Indebtedness.

[120] This clause to be modified as necessary for projects overseen by Modal Administrations other than FHWA and FTA.

(i) Except for Permitted Debt, the Borrower shall not, without the prior written consent of the TIFIA Lender, issue or incur indebtedness of any kind (including a Liquidity Facility) that is secured (in whole or in part) by the Trust Estate or that is otherwise payable (in whole or in part) from Pledged Revenues; provided that the Borrower shall not incur any indebtedness of any kind payable from, secured or supported by any portion of the Trust Estate or payable from Pledged Revenues, including Permitted Debt, without the prior written consent of the TIFIA Lender, following the occurrence, and during the continuation, of an Event of Default.

(ii) [The Borrower shall not issue Pari Passu Obligations or Subordinated Obligations that require (A) the payment of interest on such Pari Passu Obligations or Subordinated Obligations, as applicable, prior to the Debt Service Payment Commencement Date, or (B) the commencement of amortization of the principal amount of such Pari Passu Obligations or Subordinated Obligations, as applicable, prior to the commencement of amortization of the principal amount of the TIFIA Loan.][121]

(iii) Prior to the incurrence of Permitted Debt described in clauses (d), (f), (g), (i), or (k) of the definition thereof, the Borrower shall provide to the TIFIA Lender a certificate signed by the Borrower's Authorized Representative, demonstrating to the TIFIA Lender's satisfaction that such proposed indebtedness is authorized pursuant to this Section 16(a) (*Indebtedness*) and satisfies the applicable requirements under the definitions of "Permitted Debt" and "Additional Obligations," as applicable.

(iv) To the extent any Permitted Debt consists of Put Bonds, the Borrower must maintain a Liquidity Facility that will pay any amounts payable by the Borrower in respect of such Put Bonds.

(b) No Lien Extinguishment or Adverse Amendments. The Borrower shall not, and shall not permit any Person to, without the prior written consent of the TIFIA Lender, either (i) extinguish, impair, or transfer the Liens on the Trust Estate granted pursuant to the Indenture, (ii) terminate, assign, amend, modify, replace, or supplement any Related Document in a manner that could adversely affect the TIFIA Lender (in the TIFIA Lender's determination) in connection with the TIFIA Loan, (iii) waive or permit a waiver of any provision of any Related Document in a manner that could adversely affect the TIFIA Lender (in the TIFIA Lender's determination) in connection with the TIFIA Loan, or (iv) terminate, assign, amend or modify, or waive timely performance by any party of material covenants under any Principal Project Contract except for termination, assignment, amendment, modification or waiver that could not reasonably be expected to have a Material Adverse Effect (in the TIFIA Lender's determination). Except as otherwise agreed by the TIFIA Lender in writing, the Borrower will provide to the TIFIA Lender (x) copies of any proposed amendments, modifications, replacements of, or supplements to any Related Document at least thirty (30) days prior to the effective date thereof, and (y) complete, correct and fully executed copies of any amendment,

[121] To be included where the borrower's capital structure contemplates pari passu or subordinated obligations.

modification or supplement to any Related Document within five (5) Business Days after execution thereof.[122]

(c) No Prohibited Liens. Except for Permitted Liens, the Borrower shall not create, incur, assume or permit to exist any Lien on the Project, the Trust Estate, the Pledged Revenues, or the Borrower's respective rights therein. The Borrower shall not collaterally assign any of its rights under or pursuant to any Principal Project Contract and shall not permit a Lien to encumber the Borrower's rights or privileges under any Principal Project Contract, unless pursuant to the Indenture Documents in favor of the Trustee on behalf of the Secured Parties.

(d) Restricted Payments and Transfers. [*The TIFIA Loan Agreement may include a covenant that requires satisfaction of certain conditions before full release of funds from the bottom of the waterfall*].

(e) Additional Project Contracts. The Borrower shall not, without the prior written consent of the TIFIA Lender, enter into any Additional Project Contract (or series of related contracts) that commits the Borrower to spend, or is reasonably expected to involve expenditures by the Borrower of, amounts that either: (i) exceed $[_____] in any Borrower Fiscal Year, or (ii), alone or when aggregated with the other Total Project Costs or Operations and Maintenance Expenses, as applicable, in the same line item of the applicable budget set forth in the Financial Plan most recently submitted to the TIFIA Lender, would cause aggregate Total Project Costs or Operations and Maintenance Expenses, as applicable, for such line item in any Borrower Fiscal Year to exceed the amounts for such line item for any Borrower Fiscal Year reflected in the budget in the Financial Plan most recently submitted to the TIFIA Lender.

(f) No Prohibited Sale, Lease or Assignment. The Borrower shall not sell, lease, or assign its rights in and to the Project, a substantial portion of the assets included in the Project, or its rights and obligations under any Related Document, in each case unless such sale, lease or assignment (A) could not reasonably be expected to result in a Material Adverse Effect, and (B) is made by the Borrower in the ordinary course of business.

(g) Organizational Documents; Fiscal Year. The Borrower shall not at any time (i) amend or modify its Organizational Documents (other than any amendment or modification that is of a ministerial nature and that is not adverse to the interests of any Secured Party under the Indenture or in the Trust Estate) without the prior written consent of the TIFIA Lender, or (ii) adopt any fiscal year other than the Borrower Fiscal Year, except with thirty (30) days' prior written notice to the TIFIA Lender.

(h) Transactions with other Governmental Authorities. Except for the transactions expressly contemplated in the TIFIA Loan Documents, the Borrower shall not (i) sell or transfer any property or assets constituting part of the Project to, or purchase or acquire any property or assets of, any other Governmental Authority, or (ii) otherwise engage in any

[122] In specific instances, the TIFIA Lender may reserve the right to provide comments to certain Principal Project Contracts to be entered into after the Effective Date, in which cases the Borrower shall be required to use best efforts to incorporate comments from the TIFIA Lender into the relevant Principal Project Contract.

other transactions in connection with the Project with, any other Governmental Authority (including any other Governmental Authority of or in the State) the terms and provisions of which are materially adverse to the Borrower or the Project or that could reasonably be expected to result in a Material Adverse Effect.

(i) No Payment with Federal Funds. The Borrower shall not pay any portion of TIFIA Debt Service nor any other amount to the TIFIA Lender or the Federal Government pursuant to the TIFIA Loan Documents with funds received directly or indirectly from the Federal Government; provided, however, that the Borrower may prepay the TIFIA Loan in whole or in part with the proceeds of a validly issued federal credit instrument pursuant to, and in accordance with, Section 10 (*Prepayment*).

(j) Acquisitions; Change in Legal Structure; Sale of Assets; Transactions with Third Parties. The Borrower shall not, and shall not agree to:

(i) acquire by purchase or otherwise the business, property or fixed assets of, or equity interests or other evidence of beneficial ownership interests in, any Person, other than purchases or other acquisitions of inventory or materials or spare parts or Capital Expenditures, each in the ordinary course of business in compliance with the annual budget set forth in the Financial Plan most recently submitted to the TIFIA Lender; or

(ii) reorganize, consolidate with, or merge into another Person unless (A) such merger or consolidation is with or into another entity established and Controlled by [*State DOT*], and, in each case, including reorganization, would not reasonably be expected to adversely affect or impair to any extent or in any manner (1) the Trust Estate or any portion thereof, including the Pledged Revenues, or (2) the availability of the Pledged Revenues for the payment and security of the obligations of the Borrower under this Agreement and the other TIFIA Loan Documents; and (B) the Borrower provides to the TIFIA Lender, no later than sixty (60) days prior to the date of reorganization, consolidation or merger, prior written notice of such reorganization, consolidation or merger and the agreements and documents authorizing the reorganization, consolidation or merger, satisfactory in form and substance to the TIFIA Lender. The documents authorizing any reorganization, consolidation or merger shall contain a provision, satisfactory in form and substance to the TIFIA Lender, that, following such reorganization, consolidation or merger, the successor will assume, by operation of law or otherwise, the due and punctual performance and observance of all of the representations, warranties, covenants, agreements and conditions of this Agreement and the other Related Documents to which the Borrower is a party. In addition, the Borrower shall provide all information concerning such reorganization, consolidation or merger as shall have been reasonably requested by the TIFIA Lender.[123]

[123] Modification may be required for projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

(iii) sell, lease, or assign its rights in and to the Project or in and to a material portion of the assets constituting the Project [(prior to the Substantial Completion Date)][124] , to the extent such sale, lease or assignment could reasonably be expected to have a Material Adverse Effect[125]; or

(iv) otherwise engage in a transaction with any other Person (including any other Governmental Authority of or in the State) to the extent such transaction could reasonably be expected to have a Material Adverse Effect.

(k) No Defeasance of TIFIA Bond. The Borrower shall not defease the TIFIA Bond pursuant to the Indenture without the prior written consent of the TIFIA Lender.

(l) OFAC Compliance.

(i) The Borrower shall not:

(A) violate (1) any applicable Anti-Money Laundering Laws, (2) any applicable Sanctions, (3) any applicable Anti-Corruption Laws or (4) any applicable anti-drug trafficking or anti-terrorism laws, civil or criminal;

(B) use the proceeds of the TIFIA Loan for purposes other than those permitted by applicable law and as otherwise permitted under this Agreement, the other Related Documents and the Principal Project Contract; or

(C) make a payment, directly or indirectly, to any Principle Project Party that (1) to the Borrower's knowledge, has violated any of the laws referenced in Section 16(l)(i) (*OFAC Compliance*) or (2) is a Sanctioned Person.

(ii) The Borrower shall procure that each of its directors, officers, employees, and agents, shall not, directly or indirectly, use the proceeds of the TIFIA Loan or lend to, make any payment to, contribute or otherwise make available any funds to any affiliate, joint venture partner or other Person (A) in furtherance of an offer, payment, promise to pay, or authorization of the payment or giving of money, or anything else of value, to any Person in violation of any applicable Anti-Corruption Laws, (B) in any manner that would result in the violation of any applicable Anti-Money Laundering Laws, (C) for the purpose of funding, financing or facilitating any activities, business or transaction of or with any Sanctioned Person, or in any Sanctioned Country, or (D) in any other manner that would result in the violation of any Sanctions by any

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[124] Inclusion or exclusion of bracketed text to be considered on a case by case basis.

[125] Modification may be required for projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

Person (including the Executive Director, the TIFIA Lender or any Principal Project Party).

(m) Hedging. Other than interest rate hedging transactions expressly permitted hereunder, the Borrower shall not enter into any swap or hedging transaction, including inflation indexed swap transactions, "cap" or "collar" transactions, futures, or any other hedging transaction without the prior written consent of the TIFIA Lender.

Section 17. Indemnification. The Borrower shall indemnify the TIFIA Lender and any official, employee, agent, advisor, or representative of the TIFIA Lender (each such Person being herein referred to as an "**Indemnitee**") against, and hold each Indemnitee harmless from, any and all losses, claims, damages, liabilities, fines, penalties, costs and expenses (including the fees, charges and disbursements of any counsel for any Indemnitee and the costs of environmental remediation), whether known, unknown, contingent or otherwise, incurred by or asserted against any Indemnitee arising out of, in connection with, or as a result of (a) the execution, delivery and performance of this Agreement or any of the other Related Documents, (b) the TIFIA Loan or the use of the proceeds thereof, or (c) the violation of any law, rule, regulation, order, decree, judgment or administrative decision relating to the environment, the preservation or reclamation of natural resources, the management, release or threatened release of any hazardous material or to health and safety matters; in each case arising out of or in direct relation to the Project; provided that such indemnity shall not, as to any Indemnitee, be available to the extent that such losses, claims, damages, liabilities, fines, penalties, costs or related expenses are determined by a court of competent jurisdiction by final and nonappealable judgment to have resulted from the gross negligence or willful misconduct of such Indemnitee. In case any action or proceeding is brought against an Indemnitee by reason of any claim with respect to which such Indemnitee is entitled to indemnification hereunder, the Borrower shall be entitled, at its expense, to participate in the defense thereof; provided that such Indemnitee has the right to retain its own counsel, at the Borrower's expense, and such participation by the Borrower in the defense thereof shall not release the Borrower of any liability that it may have to such Indemnitee. Any Indemnitee against whom any indemnity claim contemplated in this Section 17 (*Indemnification*) is made shall be entitled, after consultation with the Borrower and upon consultation with legal counsel wherein such Indemnitee is advised that such indemnity claim is meritorious, to compromise or settle any such indemnity claim. Any such compromise or settlement shall be binding upon the Borrower for purposes of this Section 17 (*Indemnification*). Nothing herein shall be construed as a waiver of any legal immunity that may be available to any Indemnitee. To the extent permitted by applicable law, neither the Borrower nor the TIFIA Lender shall assert, and each of the Borrower and the TIFIA Lender hereby waives, any claim against any Indemnitee or the Borrower, respectively, on any theory of liability, for special, indirect, consequential or punitive damages (as opposed to direct or actual damages) arising out of, in connection with, or as a result of, this Agreement, any of the other Related Documents, the other transactions contemplated hereby and thereby, the TIFIA Loan or the use of the proceeds thereof, provided that nothing in this sentence shall limit the Borrower's indemnity obligations to the extent such damages are included in any third party claim in connection with which an Indemnitee is entitled to indemnification hereunder. All amounts due to any Indemnitee under this Section 17 (*Indemnification*) shall be payable promptly upon

demand therefor. The obligations of the Borrower under this Section 17 (*Indemnification*) shall survive the payment or prepayment in full or transfer of the TIFIA Bond, the enforcement of any provision of this Agreement or the other Related Documents, any amendments, waivers (other than amendments or waivers in writing with respect to this Section 17 (*Indemnification*)) or consents in respect hereof or thereof, any Event of Default, and any workout, restructuring or similar arrangement of the obligations of the Borrower hereunder or thereunder.

Section 18. Sale of TIFIA Loan. The TIFIA Lender shall not sell the TIFIA Loan at any time prior to the Substantial Completion Date. At any time after Substantial Completion, the TIFIA Lender may sell the TIFIA Loan to another entity or reoffer the TIFIA Loan into the capital markets only in accordance with the provisions of this Section 18 (*Sale of TIFIA Loan*). Any such sale or reoffering shall be on such terms as the TIFIA Lender shall deem acceptable in its sole discretion. However, in making such sale or reoffering the TIFIA Lender shall not change the terms and conditions of the TIFIA Loan without the prior written consent of the Borrower in accordance with Section 29 (*Amendments and Waivers*). The TIFIA Lender shall provide, at least thirty (30) days prior to any sale or reoffering of the TIFIA Loan, written notice to the Borrower of the TIFIA Lender's intention to consummate such a sale or reoffering; provided, however, that no such notice shall be required during the continuation of any Event of Default. The provision of any notice pursuant to this Section 18 (*Sale of TIFIA Loan*) shall not (x) obligate the TIFIA Lender to sell nor (y) provide the Borrower with any rights or remedies in the event the TIFIA Lender, for any reason, does not sell the TIFIA Loan.

Section 19. Events of Default and Remedies.

(a) An "**Event of Default**" shall exist under this Agreement if any of the following occurs:

(i) Payment Default. The Borrower shall fail to pay any of the principal amount of or interest on the TIFIA Loan (including TIFIA Debt Service required to have been paid pursuant to the provisions of Section 9 (*Payment of Principal and Interest*), and any mandatory prepayment required pursuant to the provisions of Section 10(a) (*Mandatory Prepayments*)), when and as the payment thereof shall be required under this Agreement or the TIFIA Bond or on the Final Maturity Date (each such failure, a "**Payment Default**").

(ii) Covenant Default. The Borrower shall fail to observe or perform any covenant, agreement or obligation of the Borrower under this Agreement (including any payment of fees or other amounts (other than principal and interest) payable hereunder), the TIFIA Bond, or any other TIFIA Loan Document (other than in the case of any Payment Default or any Development Default), and such failure shall not be cured within thirty (30) days after the earlier to occur of (A) receipt by the Borrower from the TIFIA Lender of written notice thereof, (B) the Borrower's knowledge of such failure, or (C) with respect to any non-payment of fees or amounts described above in this clause (ii), the date on which any such fees or amounts became due and payable; provided, however, that if such failure is capable of cure but cannot reasonably be cured within such thirty (30) day cure period, then no Event of Default shall be deemed to have occurred or be continuing under this Section 19(a)(ii) (*Covenant Default*), and such thirty

(30) day cure period shall be extended by up to one hundred fifty (150) additional days, if and so long as (x) within such thirty (30) day cure period the Borrower shall commence actions reasonably designed to cure such failure and shall diligently pursue such actions until such failure is cured, and (y) such failure is cured within one hundred eighty (180) days of the date specified in either (A) or (B) above, as applicable; provided, further, that no extension of the thirty (30) day cure period shall be permitted for any failure to pay any fee or other amount (excluding principal and interest) payable hereunder.

(iii) Development Default. A Development Default shall occur.

(iv) Misrepresentation Default. Any of the representations, warranties or certifications of the Borrower made in or delivered pursuant to the TIFIA Loan Documents (or in any certificates delivered by the Borrower in connection with the TIFIA Loan Documents) shall prove to have been false or misleading in any material respect when made or deemed made (or any representation and warranty that is subject to a materiality qualifier shall prove to have been false or misleading in any respect); provided that no Event of Default shall be deemed to have occurred under this Section 19(a)(iv) (*Misrepresentation Default*) if and so long as:

(A) such misrepresentation is not intentional;

(B) such misrepresentation is not a misrepresentation in respect of Section 13(h) (*No Debarment*), Section 13(j) (*Compliance with Federal Requirements*), Section 13(k) (*Transportation Improvement Program*), Section 13(q) (*OFAC; Anti-Corruption Laws*), Section 13(ee) (*Patriot Act*), or Section [*include additional representations and warranties, as applicable*];

(C) in the reasonable determination of the TIFIA Lender, such misrepresentation has not had, and would not reasonably be expected to result in, a Material Adverse Effect;

(D) in the reasonable determination of the TIFIA Lender, the underlying issue giving rise to the misrepresentation is capable of being cured;

(E) the underlying issue giving rise to the misrepresentation is cured by the Borrower within thirty (30) days from the date on which the Borrower first became aware (or reasonably should have become aware) of such misrepresentation; and

(F) the Borrower diligently pursues such cure during such thirty (30) day period.

(v) Acceleration of Senior Obligations or Pari Passu Obligations. Any acceleration shall occur of the maturity of any Senior Obligations, Pari Passu Obligations, or Subordinated Obligations or any Senior Obligation, Pari Passu Obligation, or Subordinated Obligations shall not be paid in full upon the final maturity thereof.

(vi) Cross Default to Financing Documents. Any of the representations, warranties or certifications of the Borrower made in or delivered pursuant to any Indenture Document[, or made in or delivered pursuant to the documents (the "**Other Loan Documents**") under which any other indebtedness of the Borrower in an aggregate amount equal to or greater than $[___] ("**Other Material Indebtedness**") is created or incurred,][126] shall prove to be false or misleading in any material respect (each a "**Cross Misrepresentation Default**"), or any default shall occur in respect of the performance of any covenant, agreement or obligation of the Borrower under any Indenture Document [or Other Loan Document], and[, in either case,] such default shall be continuing after the giving of any applicable notice and the expiration of any applicable grace period specified in any such Indenture Document [or Other Loan Document (as the case may be)] with respect to such default (each a "**Cross Covenant Default**"), if the effect of such Cross Misrepresentation Default or Cross Covenant Default shall be to permit the immediate acceleration of the maturity of any or all of the Senior Obligations [or the] Pari Passu Obligations[, or Other Material Indebtedness] (as the case may be), and, in the case of any such Cross Misrepresentation Default or Cross Covenant Default, the Borrower shall have failed to cure such Cross Misrepresentation Default or Cross Covenant Default or to obtain an effective written waiver thereof in accordance with the terms of the Indenture Documents [or Other Loan Documents].

(vii) Cross Default to Principal Project Contracts. (A) The Borrower or any Principal Project Party shall default in the timely performance of any covenant, agreement or obligation under any Principal Project Contract (unless in any case such default could not reasonably be expected to have a Material Adverse Effect) or any Principal Project Contract shall be terminated prior to its scheduled expiration, and the Borrower or such Principal Project Party shall have failed to cure such default or to obtain an effective written waiver thereof prior to the expiration of the applicable grace period specified in any such Principal Project Contract, or to obtain an effective revocation of such termination (as the case may be) or (B) any Principal Project Contract ceases to be in full force and effect for any reason (other than as a result of the termination thereof in accordance with its terms) or becomes void, voidable, illegal or unenforceable, or the Borrower or any Principal Project Party shall contest in any manner the validity or enforceability of any Principal Project Contract or any material provision thereof, or denies it has any further liability under any Principal Project Contract, or purports to revoke, terminate or rescind any Principal Project Contract or any material provision thereof; provided, however, that no Event of Default shall be deemed to have occurred or be continuing under this Section 19(a)(vii) (*Cross Default to Principal Project Contracts*) if, in the case any Principal Project Contract is terminated or otherwise ceases to be in full force and effect prior to its scheduled expiration, (x) the Borrower replaces such Principal Project Contract with a replacement agreement (1)

[126] Include Other Material Indebtedness in the event the Borrower has debt outside of the Indenture or is permitted under this Loan Agreement to issue debt outside of the Indenture that is secured by TIFIA's collateral, or the other debt is cross-collateralized to TIFIA's collateral. Separate and distinct trust estates should not be included for purposes of this provision; i.e., this provision would not cross-default to a sales tax indenture if the TIFIA loan was secured by toll revenues..

entered into with another counterparty that (I) is of similar or greater creditworthiness (including credit support), technical capability, and relevant experience as the counterparty being replaced was at the time the applicable Principal Project Contract was originally executed (or otherwise reasonably acceptable to the TIFIA Lender), (II) is not, at the time of such replacement, suspended or debarred or subject to a proceeding to suspend or debar from bidding, proposing or contracting with any federal or state department or agency, and (III) is not, at the time of such replacement, in violation of any applicable laws referenced in Section 13(q) (*OFAC; Anti-Corruption Laws*), and is in compliance with all applicable laws referenced in Section 13(r) (*Compliance with Law*) and Section 13(s) (*Environmental Matters*), (2) on substantially the same terms and conditions as the Principal Project Contract being replaced (or otherwise reasonably acceptable to the TIFIA Lender), (3) effective as of the date of termination of the Principal Project Contract being replaced, and (4) each performance security instrument required under the replacement agreement is in full force and effect at the time of such replacement and is on substantially the same terms and conditions as the comparable performance security instrument required under the Principal Project Contract being replaced (or otherwise reasonably acceptable to the TIFIA Lender).

(viii) Judgments. One or more judgments (A) for the payment of money in an aggregate amount in excess of $[_____] (inflated annually by CPI) that are payable from the Trust Estate or any portion thereof, including the Pledged Revenues and are not otherwise fully covered by insurance (for which the insurer has acknowledged and not disputed coverage) or (B) that would reasonably be expected to result in a Material Adverse Effect shall, in either case, be rendered against the Borrower, and the same shall remain undischarged for a period of thirty (30) consecutive days during which time period execution shall not be effectively stayed, or any action shall be legally taken by a judgment creditor to attach or levy upon any assets of the Borrower to enforce any such judgment.

(ix) Failure to Maintain Existence. The Borrower shall fail to maintain its existence as a [_____], unless at or prior to the time the Borrower ceases to exist in such form a successor public agency or governing body has been created by the State pursuant to a valid and unchallenged State law and has succeeded to the assets of the Borrower and has assumed all of the obligations of the Borrower under the TIFIA Loan Documents and the Indenture Documents, including the payment of all Secured Obligations.

(x) Occurrence of a Bankruptcy Related Event. (A) A Bankruptcy Related Event shall occur with respect to the Borrower or (B) a Bankruptcy Related Event shall occur with respect to [any Borrower Related Party (other than the Borrower) or] any Principal Project Party[127].

[127] It should be noted that the "springing lien" is only triggered upon a default covered by clause (A) (a Bankruptcy Related Event with respect to the Borrower). Defaults under clause (B) are standard events of default that do not trigger the "springing lien."

(xi) Project Abandonment. The Borrower shall abandon the Project.

(xii) Invalidity of TIFIA Loan Documents. (A) Any TIFIA Loan Document ceases to be in full force and effect (other than as a result of the termination thereof in accordance with its terms) or becomes void, voidable, illegal or unenforceable, or any Borrower Related Party contests in any manner the validity or enforceability of any TIFIA Loan Document to which it is a party or denies it has any further liability under any TIFIA Loan Document to which it is a party, or purports to revoke, terminate or rescind any TIFIA Loan Document to which it is a party; or (B) any Indenture Document ceases (other than as expressly permitted thereunder) to be effective to grant a valid and binding security interest on any material portion of the Trust Estate, including the Pledged Revenues, other than as a result of actions or a failure to act by, and within the control of, the Trustee or any Secured Party, and with the priority purported to be created thereby.

(xiii) Cessation of Operations. Operation of the Project shall cease for a continuous period of not less than one hundred eighty (180) days unless such cessation of operations shall occur by reason of an Uncontrollable Force that is not due to the fault of the Borrower (and which the Borrower could not reasonably have avoided or mitigated) and the Borrower shall either be self-insured in an amount sufficient to cover, or shall have in force an insurance policy or policies under which the Borrower is entitled to recover amounts sufficient to pay (and may use such amounts to pay) all Debt Service, TIFIA Debt Service and costs and expenses of the Borrower during such cessation of operations.

(xiv) Authorizing Legislation. The Authorizing Legislation shall be repealed or shall be amended or modified in such a manner that could reasonably be expected to result in a Material Adverse Effect.

(b) Upon the occurrence of an Event of Default described in Section 19(a)(iii) (*Development Default*), the TIFIA Lender may (i) suspend the disbursement of TIFIA Loan proceeds hereunder, (ii) terminate all of its obligations hereunder with respect to the disbursement of any undisbursed amounts of the TIFIA Loan, and (iii) demand that the Borrower immediately repay any unexpended TIFIA Loan proceeds previously disbursed to the Borrower, in which event the Borrower shall immediately repay any such unexpended TIFIA Loan proceeds to the TIFIA Lender.

(c) Upon the occurrence of any Bankruptcy Related Event with respect to the Borrower, all obligations of the TIFIA Lender hereunder with respect to the disbursement of any undisbursed amounts of the TIFIA Loan shall automatically be deemed terminated, and the Outstanding TIFIA Loan Balance, together with all interest accrued thereon and all fees, costs, expenses, indemnities and other amounts payable under this Agreement, the TIFIA Bond or the other TIFIA Loan Documents with respect to the TIFIA Loan, shall automatically become immediately due and payable, without presentment, demand, notice, declaration, protest or other requirements of any kind, all of which are hereby expressly waived.

(d) Upon the occurrence of any other Event of Default, the TIFIA Lender, by written notice to the Borrower, may (i) suspend or terminate all of its obligations hereunder with respect to the disbursement of any undisbursed amounts of the TIFIA Loan, (ii) demand that the Borrower repay any unexpended TIFIA Loan proceeds disbursed to the Borrower, and (iii) declare the unpaid principal amount of the TIFIA Bond to be, and the same shall thereupon forthwith become, immediately due and payable, together with the interest accrued thereon and all fees, costs, expenses, indemnities and other amounts payable under this Agreement, the TIFIA Bond, or the other TIFIA Loan Documents with respect to the TIFIA Loan, all without presentment, demand, notice, protest, or other requirements of any kind, all of which are hereby expressly waived.

(e) Whenever any Event of Default hereunder shall have occurred and be continuing, the TIFIA Lender shall be entitled and empowered to institute any actions or proceedings at law or in equity for the collection of any sums due and unpaid hereunder, under the TIFIA Bond or under the other TIFIA Loan Documents with respect to the TIFIA Loan, and may prosecute any such judgment or final decree against the Borrower and collect in the manner provided by law out of the property of the Borrower the moneys adjudged or decreed to be payable, and the TIFIA Lender shall have all of the rights and remedies of a creditor, including all rights and remedies of a secured creditor under the Uniform Commercial Code, and may take such other actions at law or in equity as may appear necessary or desirable to collect all amounts due and unpaid hereunder or under the TIFIA Bond, or under the other TIFIA Loan Documents with respect to the TIFIA Loan, or to enforce performance and observance of any obligation, agreement or covenant of the Borrower under this Agreement, the TIFIA Bond or the other TIFIA Loan Documents.

(f) Whenever any Event of Default hereunder shall have occurred and be continuing, the TIFIA Lender may suspend or debar the Borrower from further participation in any Federal Government program administered by the TIFIA Lender and to notify other departments and agencies of such default.

(g) No action taken pursuant to this Section 19 (*Events of Default and Remedies*) shall relieve Borrower from its obligations pursuant to this Agreement, the TIFIA Bond or the other TIFIA Loan Documents, all of which shall survive any such action.

Section 20. Accounting and Audit Procedures; Inspections; Reports and Records.

(a) Accounting and Audit Procedures. The Borrower shall establish fiscal controls and accounting procedures sufficient to assure proper accounting for all Project-related transactions (including collection of Pledged Revenues, and any other revenues attributable to the Project, and TIFIA Loan requisitions received and disbursements made with regard to the Project), so that audits may be performed to ensure compliance with and enforcement of this Agreement. The Borrower shall use accounting, audit and fiscal procedures conforming to GAAP, including, with respect to the TIFIA Loan, accounting of principal and interest payments, disbursements, prepayments and calculation of interest and principal amounts outstanding.

(b) Inspections. So long as the TIFIA Loan or any portion thereof shall remain outstanding and until five (5) years after the TIFIA Loan shall have been paid in full, the TIFIA

Lender shall have the right, upon reasonable prior notice, to visit and inspect any of the locations or properties of the Borrower, to examine its books of account and records, to make copies and extracts therefrom at the Borrower's expense, and to discuss the Borrower's affairs, finances and accounts with, and to be advised as to the same by, its officers and employees and its independent public accountants (and by this provision the Borrower irrevocably authorizes its independent public accountants to discuss with the TIFIA Lender the affairs, finances and accounts of the Borrower, whether or not any representative of the Borrower is present, it being understood that nothing contained in this Section 20(b) is intended to confer any right to exclude any such representative from such discussions), all at such reasonable times and intervals as the TIFIA Lender may desire. The Borrower agrees to pay all out-of-pocket expenses incurred by the TIFIA Lender in connection with the TIFIA Lender's exercise of its rights under this Section 20(b) at any time when an Event of Default shall have occurred and be continuing.

(c) Reports and Records. The Borrower shall maintain and retain all files relating to the Project, the Pledged Revenues and the TIFIA Loan until three (3) years after the later of the date on which (i) all rights and duties hereunder and under the TIFIA Bond (including payments) have been fulfilled and any required audits have been performed and (ii) any litigation relating to the Project, the Pledged Revenues, the TIFIA Loan or this Agreement is finally resolved or, if the TIFIA Lender has reasonable cause to extend such date, a date to be mutually agreed upon by the TIFIA Lender and the Borrower. The Borrower shall provide to the TIFIA Lender in a timely manner all records and documentation relating to the Project or the Pledged Revenues that the TIFIA Lender may reasonably request from time to time.

(d) Required Audit. The Borrower shall have a single or program-specific audit conducted in accordance with 2 CFR Part 200 Subpart F and 31 U.S.C. § 7502 in [*insert current year*] and annually thereafter, except to the extent biennial audits are permitted for the Borrower pursuant to 2 CFR § 200.504 and 31 U.S.C. § 7502(b). Upon reasonable notice, the Borrower shall cooperate fully in the conduct of any periodic or compliance audits conducted by the TIFIA Lender, the USDOT, or designees thereof, pursuant to 49 CFR § 80.19, 31 U.S.C. § 7503(b), or 31 U.S.C. § 6503(h) and shall provide full access to any books, documents, papers or other records that are pertinent to the Project or the TIFIA Loan, to the Secretary, or the designee thereof, for any such project or programmatic audit.[128]

Section 21. Financial Plan; Semi-Annual Coverage Certificates; Financial Statements.

(a) Financial Plan. The Borrower shall provide a Financial Plan to the TIFIA Lender [and the [*insert applicable USDOT modal agency field office, if applicable]*] within sixty (60) days after the Effective Date and annually thereafter until the TIFIA Loan has been repaid in full, in each case not later than ninety (90) days after the beginning of each Borrower Fiscal Year. The Financial Plan submitted within sixty (60) days after the Effective Date should be

[128] The requirements of 2 CFR § 200.501 may be different for borrowers that are for-profit corporations. In such instances, the above audit language will be revised accordingly.

consistent in all respects with the projections, assumptions and other information contained or reflected in the Base Case Financial Model.[129]

(i) Each Financial Plan shall be prepared in accordance with GAAP [and shall meet FHWA's Major Project Financial Plan requirements, as amended from time to time].[130]

(ii) Together with each Financial Plan, the Borrower shall deliver: (A) a certificate signed by the Borrower's Authorized Representative to the effect that the Financial Plan, including the assumptions and supporting documentation, is accurate and reasonable to the best of the Borrower's knowledge and belief and (B) an electronic copy of a Revised Financial Model for the period from the Effective Date through the Final Maturity Date, based upon assumptions and projections with respect to the Pledged Revenues, expenses and other financial aspects of the Project and the Trust Estate that shall reflect the prior experience and current status of the Project and the Pledged Revenues, and the expectations of the Borrower with respect to the Project and the Pledged Revenues, as of the most recent practicable date prior to the delivery of such Revised Financial Model, together with a change log describing such changes.

(iii) Each Financial Plan shall[131]:

(A) provide an updated cash flow statement showing, for the Borrower Fiscal Year most recently ended, (1) actual annual cash inflows (Pledged Revenues and other income), (2) actual annual outflows (including all Debt Service, operating expenses, Capital Expenditures, replenishment of reserves, and other uses), (3) Senior Debt Service Coverage Ratios, Total Debt Service Coverage Ratios, and Loan Life Coverage Ratios (in each case measured as of the last day of the applicable Borrower Fiscal Year), and (4) coverages of the payments and deposits required pursuant to clauses [__] through [__] of Section [___] of the Indenture[132];

(B) provide an updated cash flow statement showing projected annual amounts for each of the items described in clause (A) above, in each case through the Final Maturity Date;

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129 Borrowers should be aware that for Title 23 projects with costs in excess of $500M, a separate financial plan may be required, which plan would be submitted to FHWA's Office of Program Administration and separately reviewed and subject to approval by the Major Projects Team within the Office of Program Administration.

130 For projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project, this clause shall provide that the Financial Plan shall meet FTA Project Management Oversight Regulations, as amended from time to time.

131 Inclusion of Capital Expenditures, operations and maintenance expenses and major maintenance costs in this Section 21(a)(iii) may be evaluated depending on the nature of the transaction.

132 Include appropriate levels from the Indenture's cash flow waterwall.

(C) report on variances during the prior Borrower Fiscal Year between the actual [describe cost items that are senior to Senior Debt Service] and the budgeted [describe cost items that are senior to Senior Debt Service], as shown in the Financial Plan for such prior Borrower Fiscal Year;

(D) provide a schedule of then current [describe rates or similar information for each category of revenue] applicable to any Pledged Revenues and any planned increases thereto;

(E) to the extent that any Hedging Transactions are then in effect, report on the notional amounts and mark to market values (provided by the Qualified Hedge Provider) under such Hedging Transactions, in each case as of the last day of the most recently ended Borrower Fiscal Year; and

(F) provide a written narrative that (1) explains any variances greater than 10% in comparison to the Base Case Financial Model and the most recent Financial Plan with respect to (i) Pledged Revenues and the amounts deposited into each of the accounts and subaccounts established under the Indenture Documents; (ii) cost items that are senior to TIFIA Debt Service; (2) to the extent that any Hedging Transactions are then in effect, report on changes, if any, to the creditworthiness of the counterparties to such Hedging Transactions; (3) includes a description of any material matters that may affect the future performance by the Borrower of its obligations under this Agreement and the causes thereof, including a summary of reports prepared by or on behalf of the Borrower relating to the Pledged Revenues, operational contracts, and third-party transactions; and (4) discusses contingency measures that will or may be taken to address any of the matters reported pursuant to this sub-clause (F).[133]

(iv) In addition to the above, prior to the Substantial Completion Date, the Financial Plan shall:

(A) provide the current estimate of Total Project Costs and the remaining cost to complete the Project, identify any significant cost changes since the previous Financial Plan, discuss the reasons for and implications of the cost changes, and include a summary table showing the history of Total Project Costs

[133] The TIFIA Lender may add, on a case-by-case basis, a requirement that the Trustee provide to the TIFIA Lender copies of monthly (or other periodic) account statements for accounts established under the Indenture. In considering this requirement, the TIFIA Lender will take into account whether bondholders currently have the right to receive such statements. Alternatively, the TIFIA Lender may add a covenant requiring the Borrower to direct the Trustee to deliver account statements to the TIFIA Lender if requested by the TIFIA Lender.

by major activity or category in comparison to the Base Case Financial Model and the most recent Financial Plan;

(B) provide updates to the Construction Schedule, including major milestones for each phase of the Project (including an updated Projected Substantial Completion Date), and compare current milestone dates with the milestone dates in the Construction Schedule and in the most recent Financial Plan, and discuss the reasons for any changes to the expected completion of these Project milestones;

(C) provide current estimates of sources and uses of funds for the Project, identify any significant funding changes since the preceding Financial Plan, discuss the reasons for and implications of such funding changes, and include a summary table showing the history of Project funding in comparison to the Base Case Financial Model and the preceding Financial Plan;

(D) provide the total value of approved changes in Total Project Costs, and provide a listing of each individual change valued in excess of [___] percent ([__]%) of total forecasted Total Project Costs reflected in the Project Budget, setting forth the rationale or need for such changes and describing the impact of such changes on the Project; and

(E) contain a written narrative executive summary of the topics described in clauses (A) through (D) above since the Effective Date and since the date of the information included in the most recent Financial Plan, describing in reasonable detail all material matters that may affect the future performance of the Borrower's obligations under this Agreement.

(b) Semi-Annual Coverage Certificates. Within fifteen (15) days after each Calculation Date, the Borrower shall deliver to the TIFIA Lender, a certificate in the form of Exhibit P (*Form of Semi-Annual Coverage Certificate*) and signed by the Borrower's Authorized Representative (each, a "*Semi-Annual Coverage Certificate*") that (i) certifies that annual projected Pledged Revenues shall be sufficient to meet the Loan Amortization Schedule and to meet the Borrower's Debt Service obligations with respect to any other Obligations that are currently outstanding, in each case as of each applicable payment date through the fifth (5th) anniversary of the most recent Semi-Annual Payment Date, (ii) sets forth the historical Senior Debt Service Coverage Ratio [and][,] Total Debt Service Coverage Ratio [and Loan Life Coverage Ratio] for each of the two (2) consecutive Calculation Periods ended as of the immediately preceding Calculation Date and as of the second immediately preceding Calculation Date, respectively, and (iii) sets forth the projected Senior Debt Service Coverage Ratio [and][,] Total Debt Service Coverage Ratio [and Loan Life Coverage Ratio] as of each Calculation Date through the fifth (5th) anniversary of the immediately preceding Calculation Date.

(c) Financial Statements; Traffic and Operating Report. The Borrower shall furnish to the TIFIA Lender:

(i) (A) as soon as available, but no later than sixty (60) days after the end of the first, second and third quarterly period of each Borrower Fiscal Year, (1) an unaudited income statement and balance sheet of the Borrower as of the end of such period and the related unaudited statements of operations and of cash flow of the Borrower for such period and for the portion of the fiscal year through the end of such period, setting forth in each case in comparative form the figures for (i) the previous period, and (ii) the same period in the previous Borrower Fiscal Year, in each case certified by the chief executive officer or chief financial officer of the Borrower or any Borrower's Authorized Representative fairly stating in all material respects the financial condition of the Borrower as at the end of such period and the results of its operations and its cash flows for such period (subject to normal year-end audit adjustments), together with (2) for each such quarterly period after the Substantial Completion Date, a Quarterly Traffic and Operating Report; and

(B) as soon as available, but no later than (i) one hundred twenty (120) days after the end of each Borrower Fiscal Year, a copy of the audited income statement and balance sheet of the Borrower as of the end of such fiscal year and the related audited statements of operations and of cash flow of the Borrower for such fiscal year, setting forth in each case in comparative form the figures for the previous fiscal year, certified without a "going concern" or like qualification or exception, or qualification as to the scope of the audit, by an independent public accounting firm selected by the Borrower and which is reasonably acceptable to the TIFIA Lender, (ii) after the Substantial Completion Date, sixty (60) days after the end of each Borrower Fiscal Year, a Quarterly Traffic and Operating Report.

(ii) All such financial statements shall be complete and correct in all material respects and shall be prepared in reasonable detail and in accordance with GAAP applied consistently throughout the periods reflected therein (except for changes approved or required by the independent public accountants certifying such statements and disclosed therein).

(iii) The Borrower shall furnish to the TIFIA Lender, together with each delivery of annual audited or interim unaudited financial statements of the Borrower pursuant to this Section 21(c), a certificate signed by the chief executive officer or chief financial officer of the Borrower or any Borrower's Authorized Representative, stating whether or not, to the Borrower's knowledge, during the quarterly or annual period (as the case may be) covered by such financial statements, there occurred any Event of Default or event that, with the giving of notice or the passage of time or both, would become an Event of Default, and, if any such Event of Default or other event shall have occurred during such period, the nature of such Event of Default or other event and the actions that the Borrower has taken or intends to take in respect thereof.

Section 22. Project Oversight and Monitoring.

(a) Project Development, Design and Construction. The TIFIA Lender shall have the right in its sole discretion to monitor (or direct its agents to monitor) the development, including environmental compliance, design, right-of-way acquisition, and construction of the Project. [The Borrower][*Other applicable state agency*] shall be responsible for administering construction oversight of the Project in accordance with the FHWA Oversight Agreement. [[The Borrower's][*other applicable state agency's*] oversight of Project development, environmental compliance, design, right-of-way acquisition, and construction monitoring shall be conducted pursuant to the FHWA Oversight Agreement, which may be amended from time to time upon mutual agreement of [the Borrower][other *applicable state agency*] and the [FHWA Division Office][*insert other USDOT modal agency field office, if applicable*], or when so required by federal statute or otherwise required by the Congress.][134] The Borrower agrees to cooperate in good faith with the TIFIA Lender [and [*insert other USDOT modal agency field office, if applicable*]] in the conduct of such monitoring by promptly providing the TIFIA Lender [and [*insert other USDOT modal agency field office, if applicable*]] with such reports, documentation or other information as shall be requested by the TIFIA Lender [and [*insert other USDOT modal agency field office, if applicable*]], or its agents, including any consulting engineer reports, documentation or information.

(b) Quarterly Construction Progress Report. On or before the thirtieth (30th) day following the end of each calendar quarter during the Construction Period, the Borrower shall deliver to the TIFIA Lender a report (which may consist in whole or in part of reports received by Borrower from one or more of its contractors) that:

(i) specifies the amount of Total Project Costs expended since the Effective Date as well as during the preceding calendar quarter and the amount of Total Project Costs estimated to be required to complete the Project;

(ii) provides a revised Project Budget updated through the end of the preceding calendar quarter;

(iii) demonstrates that the Borrower has sufficient funds (including funds on hand and funds obtainable without undue delay or conditions that cannot reasonably be satisfied by the Borrower as and when such funds are needed) to complete the Project, taking into account any changes to the amount of Total Project Costs that are reflected in such quarterly construction progress report (or prior quarterly construction progress reports);

(iv) to the extent there has been any change (increase or decrease) to the Total Project Costs needed to achieve Substantial Completion since the most recent quarterly construction progress report, provides a narrative description of such changes (specifying the amounts of such changes) and, in the case of any increase to the Total Project Costs, a narrative description of (A) which line items of the Project Budget have been affected by such cost increases (and the extent of any overruns with respect to such

[134] Subject to modification in TIFIA Loan Agreements for projects that are TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

line items), (B) any material change orders granted or pending under the Principal Project Contracts with respect to such cost increases, and (C) how the Borrower will pay for such increased Total Project Costs;

(v) provides (A) an assessment of the overall construction progress of the Project since the date of the last report and since the Effective Date, together with an assessment of how such progress compares to the Construction Schedule; and (B) to the extent there have been any events or occurrences e.g., delayed equipment deliveries, permit delays, material change orders, etc.), that have had, or are anticipated to have, an adverse impact on the Construction Schedule and the meeting of critical dates thereunder , a detailed narrative description of steps being taken (or proposed to be taken) to address such adverse impacts on the Construction Schedule;

(vi) specifies the most recent projections for the Substantial Completion Date as compared to the Projected Substantial Completion Date specified in the Financial Plan most recently submitted to the TIFIA Lender; and

(vii) provides a discussion or analysis of such other matters related to the Project as the TIFIA Lender may reasonably request.

(c) [Recovery Plan. If the quarterly construction progress report described in Section 22(b)(i) (*Quarterly Construction Progress Report*) or the monthly report issued pursuant to the FTA Project Management Oversight Regulations indicates either a failure to maintain the Construction Schedule, including a failure to achieve Substantial Completion by the Projected Substantial Completion Date or the anticipated Substantial Completion Date set forth in the previous monthly construction progress report provided pursuant to Section 22(b)(i) (*Quarterly Construction Progress Report*), or actual or projected Eligible Project Cost overruns in excess of five percent (5%) of the Eligible Project Costs reflected in the Project Budget, or both, then the Borrower shall notify the TIFIA Lender and the FTA Regional Office of such failure and shall, upon request by the TIFIA Lender or the FTA Regional Office, provide the TIFIA Lender and the FTA Regional Office within forty-five (45) days of receipt of such request (or such later date as may be specified in the request from the TIFIA Lender or the FTA Regional Office, as applicable), a Recovery Plan for review and acceptance by the TIFIA Lender and the FTA Regional Office.][135]

(d) [Reserved]

(e) Requested Information. The Borrower shall, at any time while the TIFIA Loan remains outstanding, promptly deliver to the TIFIA Lender such additional information regarding the business, financial, legal or organizational affairs of the Borrower or regarding the Project or the Pledged Revenues as the TIFIA Lender may from time to time reasonably request, including copies of agreements, documentation and other information related thereto requested by the TIFIA Lender. The Borrower shall respond, and use commercially reasonable efforts to

[135] Applicable if the Project is TIFIA-eligible based on 49 U.S.C. Chapter 53 and FTA has construction oversight responsibility for the Project.

cause the Principal Project Parties to respond, to the TIFIA Lender's inquiries regarding the construction of the Project. The TIFIA Lender has the right, in its sole discretion, to retain a financial oversight advisor, under a contract with the TIFIA Lender and at the Borrower's cost (as provided in Section 28 (*Fees and Expenses*)), to carry out the provisions of this Section 22(c).

(f) Consulting Engineer.

(i) If requested in writing by the TIFIA Lender (in circumstances where the Borrower does not already have a designated Consulting Engineer), the Borrower shall hire and retain a Consulting Engineer for so long as required by the TIFIA Lender.

(ii) The Borrower may designate or replace the Consulting Engineer; provided, that the TIFIA Lender shall have the right to object to any such Consulting Engineer (and the Borrower shall not retain any proposed Consulting Engineer if the TIFIA Lender has objected in writing to such proposed Consulting Engineer). The Borrower shall provide the TIFIA Lender with thirty (30) Business Days' advance written notice of any proposed initial or replacement Consulting Engineer, together with supporting information concerning the qualifications of the proposed Consulting Engineer. The Borrower may designate the proposed Consulting Engineer unless the TIFIA Lender objects in writing within fifteen (15) Business Days following receipt of the Borrower's notice above. Any such objection by the TIFIA Lender shall include a reasonable description of its reasons for objecting to the proposed Consulting Engineer. The Borrower shall pay for all services performed by the Consulting Engineer.[136]

Section 23. No Personal Recourse. No official, employee or agent of the TIFIA Lender or the Borrower or any Person executing this Agreement or any of the other TIFIA Loan Documents shall be personally liable on this Agreement or such other TIFIA Loan Documents by reason of the issuance, delivery or execution hereof or thereof.

Section 24. No Third Party Rights. The parties hereby agree that this Agreement creates no third party rights against the Borrower, the Federal Government, or the TIFIA Lender, solely by virtue of the TIFIA Loan, and the Borrower agrees to indemnify and hold the TIFIA Lender, the Servicer (if any), the Executive Director, and the Federal Government harmless, to the extent permitted by law and in accordance with Section 17 (*Indemnification*), from any lawsuit or claim arising in law or equity solely by reason of the TIFIA Loan, and that no third party creditor or creditors of the Borrower shall have any right against the TIFIA Lender with respect to the TIFIA Loan made pursuant to this Agreement.

Section 25. Borrower's Authorized Representative. The Borrower shall at all times have appointed a Borrower's Authorized Representative by designating such Person or Persons

[136] The requirement to retain a Consulting Engineer will be made by the TIFIA Lender on a case-by-case basis depending on a variety of factors, such as the nature of the construction work entailed, the nature of the Pledged Revenues, and any other relevant factors. In addition, the TIFIA Lender may require additional independent experts, such as traffic consultants or insurance advisors, as determined by the TIFIA Lender on a case-by-case basis.

from time to time to act on the Borrower's behalf pursuant to a written certificate furnished to the TIFIA Lender and the Servicer, if any, containing the specimen signature or signatures of such Person or Persons and signed by the Borrower.

Section 26. TIFIA Lender's Authorized Representative.

(a) The TIFIA Lender shall at all times have appointed the TIFIA Lender's Authorized Representative by designating such Person or Persons from time to time to act on the TIFIA Lender's behalf pursuant to a written certificate furnished to the Borrower and the Servicer, if any, containing the specimen signature or signatures of such Person or Persons and signed by the TIFIA Lender.

(b) Pursuant to the delegation of authority, dated July 20, 2016, from the Secretary to the Under Secretary of Transportation for Policy, the further delegation of authority, dated July 20, 2016, from the Under Secretary of Transportation for Policy to the Executive Director of the Build America Bureau, the further delegation of authority, dated August 31, 2016[, and the redelegation of authority, dated December 16, 2016][137] (the "Delegation") by the Executive Director of the Build America Bureau to the Director of the Credit Office of the Build America Bureau, the Director of the Credit Office of the Build America Bureau has been delegated the authority to enter into [agreements implementing credit assistance, and to enter into][138] contracts and sign all contractual and funding documents [(with the exception of the term sheets and credit agreements)][139] necessary to implement the Act, including entering into technical amendments to, and restatements of, term sheets and credit agreements that do not materially impair the credit quality of the revenues pledged to repay the TIFIA Lender. Pursuant to the Delegation, the Director of the Credit Office of the Build America Bureau may act and serve as the TIFIA Lender's Authorized Representative under this Agreement, in addition to the Executive Director of the Build America Bureau for the purposes set forth herein.

Section 27. Servicer. [The TIFIA Lender has designated [_____], as the initial Servicer hereunder and under the TIFIA Bond.][140] The TIFIA Lender may from time to time designate another entity or entities to perform, or assist the TIFIA Lender in performing, the duties of the Servicer or specified duties of the TIFIA Lender under this Agreement and the TIFIA Bond. The TIFIA Lender shall give the Borrower written notice of the appointment of any successor or additional Servicer and shall enumerate the duties or any change in duties to be performed by any Servicer. Any references in this Agreement to the TIFIA Lender shall be deemed to be a reference to the Servicer with respect to any duties which the TIFIA Lender shall

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[137] Include this bracketed language in the event the Director of the Credit Office will be signing the TIFIA Loan Agreement and Term Sheet.

[138] Include this bracketed language in the event the Director of the Credit Office will be signing the TIFIA Loan Agreement and Term Sheet.

[139] Include this bracketed language in the event the Executive Director will be signing the TIFIA Loan Agreement and Term Sheet (i.e., do not include this language where the Director of the Credit Office will be signing the TIFIA Loan Agreement and Term Sheet].

[140] To be deleted if no Servicer is appointed as of the Effective Date.

have delegated to such Servicer. The TIFIA Lender may at any time assume the duties of any Servicer under this Agreement and the TIFIA Bond. The Borrower shall cooperate and respond to any reasonable request of the Servicer for information, documentation or other items reasonably necessary for the performance by the Servicer of its duties hereunder.

Section 28. Fees and Expenses.

(a) Commencing in Federal Fiscal Year ("**FFY**") [____] and continuing thereafter each year throughout the term of this Agreement, the Borrower shall pay to the TIFIA Lender a loan servicing fee on or before the fifteenth (15th) of November. The TIFIA Lender shall establish the amount of this annual fee, and the TIFIA Lender or the Servicer, if any, shall notify the Borrower of the amount, at least thirty (30) days before payment is due.

(b) In establishing the amount of the fee, the TIFIA Lender will adjust the previous year's base amount in proportion to the percentage change in CPI. For the FFY [____] calculation, the TIFIA Lender will use the FFY [____] base amount of $[_____], which applies to other TIFIA borrowers, as the previous year's base amount. The TIFIA Lender will calculate the percentage change in the CPI, before seasonal adjustment, from August of the previous year to August of the current year and will then adjust the previous year's base amount in proportion to the CPI percentage change. To calculate the amount of the fee, the TIFIA Lender shall round the current year's base amount using increments of $500. Results with the ending integers between 250-499 or between 750-999 shall be rounded upward, and results with the ending integers between 001-249 or between 501-749 shall be rounded downward. The CPI adjustments in the following years shall begin with the base amount, not the rounded fee.

(c) The Borrower agrees, whether or not the transactions hereby contemplated shall be consummated, to reimburse the TIFIA Lender on demand from time to time, within thirty (30) days after receipt of any invoice from the TIFIA Lender, for any and all fees, costs, charges, and expenses incurred by it (including the reasonable fees, costs, and expenses of its legal counsel, financial advisors, auditors, and any technical or other consultants and advisors, such reasonableness determined in accordance with Part 31 of the Federal Acquisition Regulation) in connection with the negotiation, preparation, execution, delivery, administration, and performance of this Agreement and the other TIFIA Loan Documents and the transactions hereby and thereby contemplated, including reasonable attorneys', and engineers' fees and professional costs, including all such fees, costs, and expenses incurred as a result of or in connection with:

(i) the enforcement of or attempt to enforce any provision of this Agreement or any of the other TIFIA Loan Documents;

(ii) any amendment, modification, or requested amendment or modification of, waiver, consent, or requested waiver or consent under or with respect to, or the protection or preservation of any right or claim under or with respect to, this Agreement, any other Related Document, or the Trust Estate, or advice in connection with the administration, preservation in full force and effect, and enforcement of this Agreement or any other Related Document or the rights of the TIFIA Lender thereunder;

(iii) any ongoing oversight and monitoring of the TIFIA Loan, the Borrower or the Project by the TIFIA Lender as provided for herein; and

(iv) any work-out, restructuring, or similar arrangement of the obligations of the Borrower under this Agreement or the other TIFIA Loan Documents, including during the pendency of one or more Events of Default.

The obligations of the Borrower under this Section 28 (*Fees and Expenses*) shall survive the payment or prepayment in full or transfer of the TIFIA Bond, the enforcement of any provision of this Agreement or the other TIFIA Loan Documents, any such amendments, waivers or consents, any Event of Default, and any such workout, restructuring, or similar arrangement.

Section 29. Amendments and Waivers. No amendment, modification, termination, or waiver of any provision of this Agreement shall in any event be effective without the written consent of each of the parties hereto.

Section 30. Governing Law. This Agreement shall be governed by the federal laws of the United States of America if and to the extent such federal laws are applicable and the internal laws of the State, if and to the extent such federal laws are not applicable.

Section 31. Severability. In case any provision in or obligation under this Agreement shall be invalid, illegal, or unenforceable in any jurisdiction, the validity, legality and enforceability of the remaining provisions or obligations, or of such provision or obligation in any other jurisdiction, shall not in any way be affected or impaired thereby.

Section 32. Successors and Assigns. This Agreement shall be binding upon the parties hereto and their respective permitted successors and assigns and shall inure to the benefit of the parties hereto and their permitted successors and assigns. Neither the Borrower's rights or obligations hereunder nor any interest therein may be assigned, delegated, or transferred by the Borrower without the prior written consent of the TIFIA Lender.

Section 33. Remedies Not Exclusive. No remedy conferred herein or reserved to the TIFIA Lender is intended to be exclusive of any other available remedy or remedies, but each and every such remedy shall be cumulative and shall be in addition to every other remedy given hereunder or now or hereafter existing at law or in equity or by statute.

Section 34. Delay or Omission Not Waiver. No delay or omission of the TIFIA Lender to exercise any right or remedy provided hereunder upon a default of the Borrower (except a delay or omission pursuant to a written waiver) shall impair any such right or remedy or constitute a waiver of any such default or acquiescence therein. Every right and remedy given by this Agreement or by law to the TIFIA Lender may be exercised from time to time, and as often as may be deemed expedient by the TIFIA Lender.

Section 35. Counterparts; Electronic Signatures. This Agreement and any amendments, waivers, consents or supplements hereto or in connection herewith may be executed in any number of counterparts and by the different parties hereto in separate counterparts, each of which when so executed and delivered shall be deemed an original, but all such counterparts together shall constitute one and the same instrument; signature pages may be

detached from multiple separate counterparts and attached to a single counterpart so that all signature pages are physically attached to the same document. Electronic delivery of an executed counterpart of a signature page of this Agreement or of any document or instrument delivered in connection herewith in accordance with Section 36 (*Notices; Payment Instructions*) shall be effective as delivery of an original executed counterpart of this Agreement or such other document or instrument, as applicable. Each party acknowledges and agrees that it may execute this Agreement, and any amendment, modification, or waiver hereto, using Electronic Signatures. Such Electronic Signatures are intended to authenticate this writing and to have the same force and effect as handwritten signatures.

Section 36. Notices; Payment Instructions. Notices hereunder shall be (a) in writing, (b) effective as provided below and (c) given by (i) nationally recognized courier service, (ii) hand delivery, or (iii) email, in each case to:

If to TIFIA Lender:	Build America Bureau United States Department of Transportation Room W12-464 1200 New Jersey Avenue, SE Washington, D.C. 20590 Attention: Director, Office of Credit Programs Email: BureauOversight@dot.gov
with copies to:	[*Appropriate USDOT Modal Office*] [Address] Attention: Servicer (at address provided below)
If to Borrower:	[Name] [Address] Attention: [_____] Email: [_____]
If to Servicer:	[Name] [Address] Attention: [_____] Email: [_____]
With copies to:	[Insert relevant parties]

Unless otherwise instructed by the TIFIA Lender's Authorized Representative, all notices to the TIFIA Lender should be made by email to the email address noted above for the TIFIA Lender. Notices required to be provided herein shall be provided to such different addresses or to such further parties as may be designated from time to time by a Borrower's Authorized Representative, with respect to notices to the Borrower, or by the TIFIA Lender's Authorized Representative, with respect to notices to the TIFIA Lender or the Servicer. The Borrower shall make any payments hereunder or under the TIFIA Bond in accordance with Section 9(f) (*Manner of Payment*) and the payment instructions hereafter provided by the TIFIA Lender's

Authorized Representative, as modified from time to time by the TIFIA Lender. Each such notice, request or communication shall be effective (x) if delivered by hand or by nationally recognized courier service, when delivered at the address specified in this Section 36 (*Notices; Payment Instructions*) (or in accordance with the latest unrevoked written direction from the receiving party) and (y) if given by email, when such email is delivered to the address specified in this Section 36 (*Notices; Payment Instructions*) (or in accordance with the latest unrevoked written direction from the receiving party); provided that notices received on a day that is not a Business Day or after 5:00 p.m. Eastern Time on a Business Day will be deemed to be effective on the next Business Day.

Section 37. Effectiveness. This Agreement shall be effective on the Effective Date.

Section 38. Termination. This Agreement shall terminate upon the irrevocable payment in full in cash by the Borrower of the Outstanding TIFIA Loan Balance, together with all accrued interest and fees with respect thereto; provided, however, that the indemnification requirements of Section 17 (*Indemnification*), the reporting and record keeping requirements of Section 20(b) (*Inspections*) and Section 20(c) (*Reports and Records*), and the payment requirements of Section 28 (*Fees and Expenses*) shall survive the termination of this Agreement as provided in such sections.

Section 39. Integration. This Agreement constitutes the entire contract between the parties relating to the subject matter hereof and supersedes any and all previous agreements and understandings, oral or written, relating to the subject matter hereof.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed and delivered by their respective officers thereunto duly authorized as of the date first written above.

[**BORROWER**]

By: _____
Name:_____
Title:_____

UNITED STATES DEPARTMENT OF TRANSPORTATION, acting by and through the Executive Director of the Build America Bureau

By: _____
Name:_____
Title:_____

SCHEDULE I

PROJECT BUDGET

[To be provided by Borrower]

SCHEDULE II

CONSTRUCTION SCHEDULE

[To be provided by Borrower]

SCHEDULE III

EXISTING INDEBTEDNESS

[To be provided by Borrower]

SCHEDULE 13(f)

LITIGATION

EXHIBIT A

FORM OF TIFIA BOND

[BORROWER NAME]

[_____]PROJECT

(TIFIA Project Number)
TIFIA BOND

Maximum Principal Amount: $ [Maximum Amount of TIFIA Loan]
(excluding capitalized interest)

Effective Date: _____ Due: _____

[**BORROWER**], a [_____] under the laws of the State of [_____] (the "**Borrower**"), for value received, hereby promises to pay to the order of the **UNITED STATES DEPARTMENT OF TRANSPORTATION**, acting by and through the Executive Director of the Build America Bureau, or its assigns (the "**TIFIA Lender**"), the lesser of (x) the Maximum Principal Amount set forth above and (y) the aggregate unpaid principal amount of all disbursements (the "**Disbursements**") made by the TIFIA Lender (such lesser amount, together with any interest that is capitalized and added to principal in accordance with the provisions of the TIFIA Loan Agreement (as defined below), being hereinafter referred to as the "**Outstanding Principal Sum**"), together with accrued and unpaid interest (including, if applicable, interest at the Default Rate, as defined in the TIFIA Loan Agreement) on the Outstanding Principal Sum and all fees, costs and other amounts payable in connection therewith, all as more fully described in the TIFIA Loan Agreement. The principal hereof shall be payable in the manner and at the place provided in the TIFIA Loan Agreement in accordance with **Exhibit G** to the TIFIA Loan Agreement, as revised from time to time in accordance with the TIFIA Loan Agreement, until paid in full. The TIFIA Lender is hereby authorized to modify the Loan Amortization Schedule included in **Exhibit G** to the TIFIA Loan Agreement from time to time in accordance with the terms of the TIFIA Loan Agreement to reflect the amount of each disbursement made thereunder and the date and amount of principal or interest paid by the Borrower thereunder. Absent manifest error, the TIFIA Lender's determination of such matters as set forth on **Exhibit G** to the TIFIA Loan Agreement shall be conclusive evidence thereof; provided, however, that neither the failure to make any such recordation nor any error in such recordation shall affect in any manner the Borrower's obligations hereunder or under any other TIFIA Loan Document.

Payments hereon are to be made in accordance with Section 9(f) (*Manner of Payment*) and Section 36 (*Notices; Payment Instructions*) of the TIFIA Loan Agreement as the same become due. Principal of and interest on this TIFIA Bond shall be paid in funds available on or before the due date and in any lawful coin or currency of the United States of America that at the date of payment is legal tender for the payment of public and private debts. [If an amendment to

the Final Maturity Date is submitted to the TIFIA Lender pursuant to the TIFIA Loan Agreement, the due date of this TIFIA Bond shall be deemed to be amended to change the due date to such revised Final Maturity Date without any further action required on the part of the Borrower or the TIFIA Lender and such amendment shall in no way amend, modify or affect the other provisions of this TIFIA Bond without the prior written agreement of the TIFIA Lender.][141]

This TIFIA Bond has been executed under and pursuant to that certain TIFIA Loan Agreement, dated as of the date hereof, between the TIFIA Lender and the Borrower (the "**TIFIA Loan Agreement**") and is issued to evidence the obligation of the Borrower under the TIFIA Loan Agreement to repay the loan made by the TIFIA Lender and any other payments of any kind required to be paid by the Borrower under the TIFIA Loan Agreement or the other TIFIA Loan Documents referred to therein. Reference is made to the TIFIA Loan Agreement for all details relating to the Borrower's obligations hereunder. All capitalized terms used in this TIFIA Bond and not defined herein shall have the meanings set forth in the TIFIA Loan Agreement.

This TIFIA Bond shall be subject to mandatory prepayment in accordance with the TIFIA Loan Agreement.

This TIFIA Bond may be prepaid at the option of the Borrower in whole or in part (and, if in part, the principal installments and amounts thereof to be prepaid are to be determined in accordance with the TIFIA Loan Agreement; provided, however, such prepayments shall be in principal amounts of at least $1,000,000)[142], at any time or from time to time, without penalty or premium, by paying to the TIFIA Lender all or part of the principal amount of the TIFIA Bond in accordance with the TIFIA Loan Agreement.

Payment of the obligations of the Borrower under this TIFIA Bond is secured pursuant to the Indenture referred to in the TIFIA Loan Agreement.

[The obligations of the Borrower under this TIFIA Bond, the TIFIA Loan Agreement and the other TIFIA Loan Documents referred to therein are subordinated in right of security to certain senior indebtedness of the Borrower in the manner and to the extent provided in the Indenture referred to in the TIFIA Loan Agreement.]

Any delay on the part of the TIFIA Lender in exercising any right hereunder shall not operate as a waiver of any such right, and any waiver granted with respect to one default shall not operate as a waiver in the event of any subsequent default.

All acts, conditions and things required by the Constitution and laws of the State to happen, exist, and be performed precedent to and in the issuance of this TIFIA Bond have

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[141] To be included only when the TIFIA Lender has agreed to a Final Maturity Date that is a defined anniversary of the Substantial Completion Date. Pursuant to the Act, the Final Maturity Date cannot be later than the 35th anniversary of the Substantial Completion Date. The actual number of years will be determined as part of the TIFIA Lender's underwriting process.

[142] To be modified to the extent Section 10 of the TIFIA Loan Agreement sets a lower threshold for prepayments.

happened, exist and have been performed as so required. This TIFIA Bond is issued with the intent that the federal laws of the United States of America shall govern its construction to the extent such federal laws are applicable and the internal laws of the State shall govern its construction to the extent such federal laws are not applicable.

IN WITNESS WHEREOF, [BORROWER] has caused this TIFIA Bond to be executed in its name and its seal to be affixed hereto and attested by its duly authorized officer, all as of the Effective Date set forth above.

[BORROWER]

(SEAL)

By _____
Name:_____
Title:_____

ATTEST:

_____
Secretary

CERTIFICATE OF AUTHENTICATION

This TIFIA Bond is the TIFIA Bond described in the within-mentioned Indenture.

[NAME OF TRUSTEE]

By: _____
(Authorized Signer)

(FORM OF ASSIGNMENT)

FOR VALUE RECEIVED, the Undersigned hereby unconditionally sells, assigns and transfers unto

(*Please Insert Social Security or other identifying number of Assignee(s)*):

the within note and all rights thereunder.

Dated: _____

NOTICE: The signature to this assignment must correspond with the name as it appears upon the face of the within note in every particular, without alteration or enlargement or any change whatever.

EXHIBIT B

ANTICIPATED TIFIA LOAN DISBURSEMENT SCHEDULE

Borrower Fiscal Year	Amount
	$

EXHIBIT C

CERTIFICATION REGARDING DEBARMENT, SUSPENSION, AND OTHER RESPONSIBILITY MATTERS— PRIMARY COVERED TRANSACTIONS

The undersigned, on behalf of [INSERT NAME OF BORROWER], hereby certifies that [INSERT NAME OF BORROWER] has fully complied with its verification obligations under 2 CFR § 180.320 and hereby further confirms, in accordance with 2 CFR § 180.335, that, to its knowledge, the Borrower and its principals (as defined in 2 CFR § 180.995):

(a) Are not presently excluded (as defined in 2 CFR § 180.940) or disqualified (as defined in 2 CFR § 180.935);

(b) Have not within a three (3) year period preceding the Effective Date been convicted of any of the offenses listed in 2 CFR §180.800(a) or had a civil judgment rendered against them for one of those offenses within that time period;

(c) Are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (federal, state or local) with commission of any of the offenses listed in 2 CFR §180.800(a); and

(d) Have not within a three (3) year period preceding the Effective Date had one or more public transactions (federal, state or local) terminated for cause or default.

(e) Capitalized terms used in this certificate and not defined shall have the respective meanings ascribed to such terms in that certain TIFIA Loan Agreement, dated as of [Dated Date], between the TIFIA Lender and the Borrower, as the same may be amended from time to time.

Dated: _____

[BORROWER][143]

By: _____
Name:
Title:

[143] To be executed by Borrower's Authorized Representative.

EXHIBIT D

REQUISITION PROCEDURES

This **Exhibit D** sets out the procedures which the Borrower agrees to follow in submitting Requisitions for the disbursement of TIFIA Loan proceeds in respect of the Eligible Project Costs incurred in connection with the Project. Section 1 sets out the manner in which Requisitions are to be submitted and reviewed. Sections 2 through Section 4 set out the circumstances in which the TIFIA Lender may reject or correct Requisitions submitted by the Borrower or withhold a disbursement. The Borrower expressly agrees to the terms hereof, and further agrees that (i) the rights of the TIFIA Lender contained herein are in addition to (and not in lieu of) any other rights or remedies available to the TIFIA Lender under the TIFIA Loan Agreement, and (ii) nothing contained herein shall be construed to limit the rights of the TIFIA Lender to take actions including administrative enforcement action and actions for breach of contract against the Borrower if it fails to carry out its obligations under the TIFIA Loan Agreement during the term thereof.

Section 1. General Requirements. All requests by the Borrower for the disbursement of TIFIA Loan proceeds shall be made by electronic mail or overnight delivery service by submission to the TIFIA Lender, in accordance with Section 36 (*Notices; Payment Instructions*) of the TIFIA Loan Agreement, of a Requisition, in form and substance satisfactory to the TIFIA Lender and completed and executed by the Borrower's Authorized Representative. The form of Requisition is attached as Appendix One to this **Exhibit D**. Supporting documentation should be submitted with the requisition.

All disbursement requests must be received by the TIFIA Lender at or before 5:00 P.M. (EST) on the first (1st) Business Day of a calendar month in order to obtain disbursement by the fifteenth (15th) day of such calendar month or, if such day is not a Business Day, the next succeeding Business Day.

Section 2. Rejection. A Requisition may be rejected in whole or in part by the TIFIA Lender if it is:

(a) submitted without signature;

(b) submitted under signature of a Person other than a Borrower's Authorized Representative;

(c) submitted after prior disbursement of all proceeds of the TIFIA Loan; or

(d) submitted without adequate documentation of Eligible Project Costs incurred or paid. Such documentation shall include invoices for costs incurred or paid, if a Consulting Engineer is retained as of such date by the Borrower, pursuant to Section 22(c) or otherwise, such documentation shall include the most recent certificate of or report prepared by the Consulting Engineer relating to the construction of the Project (to the extent not previously delivered to the TIFIA Lender).

The TIFIA Lender shall promptly send to the Borrower, in accordance with Section 36 (*Notices; Payment Instructions*) of the TIFIA Loan Agreement, a notice of any Requisition so rejected, and the reasons therefor, substantially in the form attached hereto as Appendix Two to this **Exhibit D**. Any Requisition rejected for the reasons specified in (a), (b) or (d) above must be resubmitted in proper form in order to be considered for approval. If a Requisition exceeds the balance of the TIFIA Loan proceeds remaining to be disbursed, the request will be treated as if submitted in the amount of the balance so remaining, and the TIFIA Lender will so notify the Borrower.

Section 3. Correction. A Requisition containing an apparent mathematical error will be corrected by the TIFIA Lender, after telephonic or email notification to the Borrower, and will thereafter be treated as if submitted in the corrected amount.

Section 4. Withholding. The TIFIA Lender shall be entitled to withhold approval (in whole or in part) of any pending or subsequent requests for the disbursement of TIFIA Loan proceeds if:

(a) an Event of Default or event that, with the giving of notice or the passage of time or both, would constitute an Event of Default under the TIFIA Loan Agreement shall have occurred and be continuing; or

(b) the Borrower:

(i) knowingly takes any action, or omits to take any action, amounting to fraud or violation of any applicable federal or local criminal law, in connection with the transactions contemplated hereby; or

(ii) fails to construct the Project in a manner consistent with the Governmental Approvals with respect to the Project, or in accordance with the highest standards of the Borrower's industry, where such failure prevents or materially impairs the Project from fulfilling its intended purpose, or prevents or materially impairs the ability of the TIFIA Lender to monitor compliance by the Borrower with applicable federal or local law pertaining to the Project or with the terms and conditions of the TIFIA Loan Agreement; or

(iii) fails to observe or comply with any applicable federal or local law, or any term or condition of the TIFIA Loan Agreement; or

(iv) fails to satisfy any condition set forth in Section 4 (*Disbursement Conditions*) or Section 12(b) (*Conditions Precedent to All Disbursements*) of the TIFIA Loan Agreement; or

(v) fails to deliver documentation satisfactory to the TIFIA Lender evidencing Eligible Project Costs claimed for disbursement at the times and in the manner specified by the TIFIA Loan Agreement; provided, that in such case the TIFIA Lender may, in its sole discretion, partially approve a disbursement request in respect of any amounts for which adequate documentation evidencing Eligible

Project Costs has been provided and may, in its sole discretion, disburse in respect of such properly documented amounts.

Section 5. Federal Government Shutdown. Notwithstanding anything to the contrary set forth in this **Exhibit D**, the TIFIA Lender (a) shall be entitled to withhold approval of any pending or subsequent requests for the disbursement of TIFIA Loan proceeds and (b) shall have no obligation to make any disbursement of proceeds of the TIFIA Loan to the Borrower (even if such disbursement has been submitted to the TIFIA Lender), in each case if the TIFIA Lender's ability to make the relevant disbursement is impaired as a result of a partial or total shutdown of the operations of any federal department or agency (including the USDOT or any of its agencies), or any contractor of any such department or agency, due to a lapse in appropriations by Congress.

APPENDIX ONE TO EXHIBIT D

FORM OF REQUISITION

Build America Bureau

United States Department of Transportation
c/o Director, Office of Credit Programs

Room W12-464
1200 New Jersey Avenue, SE,
Washington, D.C. 20590

[Federal Highway Administration
[State] Division Office
[Address]
Attention: Division Administrator]

[Loan Servicer]
[Address]
[Attention]

Re: [ ] PROJECT (TIFIA # [ ])

Ladies and Gentlemen:

Pursuant to Section 4 (*Disbursement Conditions*) of the TIFIA Loan Agreement, dated as of [Dated Date] (the "**TIFIA Loan Agreement**"), by and between [BORROWER] (the "**Borrower**") and the UNITED STATES DEPARTMENT OF TRANSPORTATION, acting by and through the Executive Director of the Build America Bureau (the "**TIFIA Lender**"), we hereby request disbursement in the amount of $[_____] in respect of Eligible Project Costs paid or incurred by or on behalf of the Borrower. Capitalized terms used but not defined herein have the meaning set forth in the TIFIA Loan Agreement. In connection with this Requisition the undersigned does hereby represent and certify the following:

1. This Requisition is Requisition number [_____].

2. The requested date of disbursement is [_____] 15, 20[__] (the "**Disbursement Date**")[, which is the first Business Day following [_____] 15, 20[____]].

3. The amounts previously disbursed under the TIFIA Loan Agreement equal, in the aggregate, $[_____]. The amounts previously disbursed and to be disbursed under the Indenture in respect of [Senior Obligations] as of the date of the requested disbursement equal, in the aggregate, $[_____]. The amounts previously disbursed and to be disbursed under the [*applicable funding document*] as of the date of the requested disbursement equal, in the aggregate, $[_____]. [Prior to or simultaneously herewith the undersigned has requisitioned a pro rata amount of proceeds

from [Senior Obligations] [*other funding sources*] (in the amount of $[_____]) under [the Indenture].][144]

4. The amounts hereby requisitioned have been paid or incurred by or on behalf of the Borrower for Eligible Project Costs and have not been paid for or reimbursed by any previous disbursement from TIFIA Loan proceeds.

5. The amount of this Requisition, together with all prior Requisitions, does not exceed the amount of the TIFIA Loan.

6. All documentation evidencing the Eligible Project Costs to be reimbursed by the above-requested disbursement has been delivered by the Borrower at the times and in the manner specified by the TIFIA Loan Agreement.

7. The Borrower has all Governmental Approvals necessary as of the date hereof and as of the Disbursement Date (immediately after giving effect to the above-requested disbursement of TIFIA Loan proceeds), for the development, construction, operation and maintenance of the Project and each such Governmental Approval is in full force and effect (and is not subject to any notice of violation, breach or revocation).

8. Each of the insurance policies obtained by the Borrower in satisfaction of the condition in Section 12(a)(xviii) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement is in full force and effect, and no notice of termination thereof has been issued by the applicable insurance provider.

9. The Project has been, and is being, constructed in a manner consistent with all plans, specifications, engineering reports and facilities plans previously submitted to the TIFIA Lender [and [the FHWA Division Office][*insert other USDOT modal agency office, if applicable*]] and in accordance with the highest standards of the Borrower's industry.

10. The representations and warranties of the Borrower set forth in the TIFIA Loan Agreement and in each other Related Document are true and correct as of the date hereof and as of the Disbursement Date, except to the extent such representations and warranties expressly relate to an earlier date (in which case, such representations and warranties shall be true and correct as of such earlier date).

11. As of the date hereof and on the Disbursement Date (immediately after giving effect to the above-requested disbursement of TIFIA Loan proceeds), (i) no Event of Default or event of default under any other Related Document and (ii) no event that, with the giving of notice or the passage of time or both, would constitute an Event of Default or event of default under any Related Document, in each case, has occurred and is continuing.

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[144] To be included where the commercial agreement includes a proportional disbursement requirement. (Also see Section 4(d).)

12. No Material Adverse Effect, or any event or condition that could reasonably be expected to have a Material Adverse Effect, has occurred since [_____, 20__] and is continuing.[145]

13. [A copy of the most recent certificate or report of the Consulting Engineer delivered pursuant to Section [____] of the Indenture has been delivered to each of the above named addressees.][146]

14. A copy of the quarterly construction progress report pursuant to Section 22(b) (*Quarterly Construction Progress Report*) of the TIFIA Loan Agreement for the quarter that ended most recently prior to the date of the applicable Requisition has been delivered to each of the above named addresses.

15. The undersigned acknowledges that if the Borrower makes a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government in connection with the Project, the Federal Government reserves the right to impose on the Borrower the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5323(l)(1), to the extent the Federal Government deems appropriate.

16. A copy of this requisition has been delivered to each of the above named addressees.

17. The undersigned is duly authorized to execute and deliver this requisition on behalf of the Borrower.

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[145] Insert the date on which the Borrower submitted the Application to the TIFIA Lender.

[146] Include when applicable.

[Add wire instructions for Trustee.]

Date: _____

[BORROWER][147]

By: _____
Name:
Title:_____

[147] To be executed by the Borrower's Authorized Representative.

APPENDIX TWO TO EXHIBIT D

DISAPPROVAL OF THE TIFIA LENDER
(To be delivered to the Borrower)

Requisition Number [●] is [approved in part in the amount of $[●]] [not approved][148] by the TIFIA Lender (as defined herein) pursuant to Section 4 (*Disbursement Conditions*) of the TIFIA Loan Agreement, dated as of [_____], 20[__], by and between [_____] (the "**Borrower**") and the United States Department of Transportation, acting by and through the Executive Director of the Build America Bureau (the "**TIFIA Lender**").

Any determination, action or failure to act by the TIFIA Lender with respect to the Requisition set forth above, including any withholding of a disbursement, shall be at the TIFIA Lender's sole discretion, and in no event shall the TIFIA Lender be responsible for or liable to the Borrower for any and/or all consequence(s) which are the result thereof.

UNITED STATES DEPARTMENT OF TRANSPORTATION, acting by and through the Executive Director of the Build America Bureau

By: _____
TIFIA Lender's Authorized Representative
Name:
Title:
Dated:

[148] Attached hereto as Exhibit A are reasons for any partial or full denial of approval.

EXHIBIT A TO APPENDIX TWO TO EXHIBIT D

[Insert reasons for any partial or full denial of approval.]

EXHIBIT E

COMPLIANCE WITH LAWS

The Borrower shall, and shall require its contractors and subcontractors at all tiers for the Project to, comply in all material respects with any and all applicable federal and state laws. The following list of federal laws is illustrative of the type of requirements generally applicable to transportation projects. It is not intended to be exhaustive.

(i) The Americans With Disabilities Act of 1990 and implementing regulations (42 U.S.C. § 12101 *et seq*.; 28 CFR Part 35; 29 CFR Part 1630);

(ii) Title VI of the Civil Rights Act of 1964, as amended (42 U.S.C. § 2000d *et seq*.), and USDOT implementing regulations (49 CFR Part 21);

(iii) The Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970, as amended (42 U.S.C. § 4601 *et seq*.), with the understanding that the requirements of said Act are not applicable with respect to utility relocations except with respect to acquisitions by the Borrower of easements or other real property rights for the relocated facilities;

(iv) Equal employment opportunity requirements under Executive Order 11246 dated September 24, 1965 (30 FR 12319), any Executive Order amending such order, and implementing regulations (29 CFR §§ 1625-27, 1630; 28 CFR Part 35; 41 CFR Part 60; and 49 CFR Part 27);

(v) Restrictions governing the use of federal appropriated funds for lobbying (31 U.S.C. § 1352; 49 CFR Part 20);

(vi) The Clean Air Act, as amended (42 U.S.C. § 7401 *et seq*.);

(vii) The National Environmental Policy Act of 1969 (42 U.S.C. § 4321 *et seq*.), including the environmental mitigation requirements and commitments made by the Borrower that result in [*INSERT APPLICABLE MODE*]'s approval of the [NEPA Determination];

(viii) The Federal Water Pollution Control Act, as amended (33 U.S.C. § 1251 *et seq*.);

(ix) The Endangered Species Act, 16 U.S.C. § 1531, *et seq*.;

(x) 23 U.S.C. § 138 and 49 U.S.C. § 303, as applicable;

(xi) The health and safety requirements set forth in 40 U.S.C. §§ 3701-3702 and implementing regulations (29 CFR Part 1926 and 23 CFR § 635.108, as applicable);

(xii) The prevailing wage requirements set forth in 40 U.S.C. § 3141 *et seq*., and implementing regulations (29 CFR Part 5), and, as applicable, 23 U.S.C. § 113 and implementing regulations (23 CFR §§ 635.117(f) and 635.118), and FHWA Form 1273 §§ IV and V for those contracts that involve construction of highway improvements;

(xiii) The Buy America requirements set forth in [23 U.S.C. § 313 and implementing regulations (23 CFR § 635.410)][49 U.S.C. § 5323(j) and implementing regulations (49 CFR Part 661)] [insert applicable Buy America(n) requirement for non-highway or transit projects];

(xiv) The Build America, Buy America Act (Pub. L. No. 117-58, §§ 70901-52);

(xv) The requirements of [23 U.S.C. § 101 *et seq*. and 23 CFR][49 U.S.C. Chapter 53 and 49 CFR Part 600];

(xvi) The Cargo Preference Act of 1954, as amended (46 U.S.C. §55305), and implementing regulations (46 CFR Part 381);

(xvii) The applicable requirements of 49 CFR Part 26 relating to the Disadvantaged Business Enterprise program; and

(xviii) The requirements of Section 889 of the *John S. McCain National Defense Authorization Act for Fiscal Year 2019* (Pub. L. 115–232) and implementing regulations (2 CFR § 200.216).

EXHIBIT F

FHWA OVERSIGHT AGREEMENT

EXHIBIT G

TIFIA DEBT SERVICE

EXHIBIT H-1

OPINIONS REQUIRED OF COUNSEL TO BORROWER [AND EACH OTHER BORROWER RELATED PARTY][149]

An opinion of the counsel of the Borrower, dated as of the Effective Date, to the effect that: (a) the Borrower [and each other Borrower Related Party] is duly formed, validly existing, and in good standing under the laws of the jurisdiction of its organization; (b) the Borrower [and each other Borrower Related Party] has all requisite power and authority to conduct its business and to execute and deliver, and to perform its obligations under the Related Documents to which it is a party; (c) the execution and delivery by the Borrower [and each other Borrower Related Party] of, and the performance of its respective obligations under, the Related Documents to which it is a party, have been duly authorized by all necessary organizational or regulatory action; (d) the Borrower [and each other Borrower Related Party] has duly executed and delivered each Related Document to which it is a party and each such Related Document constitutes the legal, valid and binding obligation of such party; enforceable against such party in accordance with their respective terms; (e) no authorization, consent, or other approval of, or registration, declaration or other filing with any governmental authority of the United States of America or of the State is required on the part of the Borrower [or any other Borrower Related Party] for the execution and delivery by such party of, and the performance of such party under, any Related Document to which it is a party other than authorizations, consents, approvals, registrations, declarations and filings that have already been timely obtained or made by the Borrower [and each applicable Borrower Related Party]; (f) the execution and delivery by the Borrower [and each other Borrower Related Party] of, and compliance with the provisions of, the Related Documents to which it is a party in each case do not (i) violate the Organizational Documents of the Borrower [or of any other Borrower Related Party], (ii) violate the law of the United States of America or of the State or (iii) conflict with or constitute a breach of or default under any material agreement or other instrument known to such counsel to which the Borrower [or any other Borrower Related Party] is a party, or to the best of such counsel's knowledge, after reasonable review, any court order, consent decree, statute, rule, regulation or any other law to which the Borrower [or any other Borrower Related Party] is subject; (g) [the Borrower is not] [none of the Borrower or any Borrower Related Party is] an investment company required to register under the Investment Company Act of 1940, as amended; and (h) to our knowledge after due inquiry, there are no actions, suits, proceedings or investigations against the Borrower [or any other Borrower Related Party] by or before any court, arbitrator or any other Governmental Authority in connection with the Related Documents or the Project that are pending.[150]

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[149] Certain of the opinions described in this exhibit (e.g., enforceability of the TIFIA Bond, no conflicts with laws) may be addressed in the bond counsel opinion in addition to or in lieu of the opinion of counsel to the Borrower.

[150] Other opinions to be added as appropriate for the specific project or transaction.

[Do not delete - this paragraph generates the automatic page number]

EXHIBIT H-2

OPINIONS REQUIRED FROM BOND COUNSEL

An opinion of bond counsel, dated as of the Effective Date, to the effect that: (a) each of the TIFIA Bond, the Indenture, and the TIFIA Supplemental Indenture has been duly authorized, executed, and delivered by the Borrower in accordance with the Organizational Documents of the Borrower and in compliance with all applicable laws;[151] (b) each of the TIFIA Bond, the Indenture, and the TIFIA Supplemental Indenture is in full force and effect and constitutes the legal, valid, and binding obligation of the Borrower, enforceable in accordance with its respective terms and conditions; (c) the TIFIA Bond is secured by the Trust Estate and is a Bond entitled to the benefits of a Bond under the Indenture, enforceable under the laws of the State without any further action by the Borrower or any other Person;[152] (d) the Indenture creates the valid and binding assignment and pledge of the Trust Estate to secure the payment of the principal of, interest on, and other amounts payable in respect of, the TIFIA Bond, irrespective of whether any party has notice of the pledge and without the need for any physical delivery, recordation, filing or further act; (e) all actions by the Borrower that are required for the use of Pledged Revenues as required under the Indenture and under the TIFIA Loan Agreement have been duly and lawfully made; (f) the Borrower has complied with the requirements of State law to lawfully pledge the Trust Estate and use the Pledged Revenues as required by the terms of the Indenture and the TIFIA Loan Agreement; (g) [the Borrower is not eligible to be a debtor in either a voluntary or involuntary case under the United States Bankruptcy Code];[153] and (h) [the Borrower is not entitled to claim governmental immunity in any breach of contract action under the TIFIA Loan Agreement or the TIFIA Bond or by the Trustee under the Indenture Documents].

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[151] Subject to modification if the Indenture is already in place at the time the TIFIA Loan is executed.

[152] The opinions described in clause (c) or (d) may further describe the TIFIA Bond's priority in relation to other Bonds issued under the Indenture.

[153] Subject to modification based on State bankruptcy law and the legal status of the Borrower as an entity.

EXHIBIT I

FORECAST OF NET CASH FLOW

EXHIBIT J

FORM OF CERTIFICATE OF TRUSTEE

[BORROWER NAME]

TIFIA Bond,
[_____] Project
(TIFIA Project Number)

The undersigned, [_____] (the "***Trustee***"), by its duly appointed, qualified and acting [_____], certifies with respect to the above referenced bond (the "***TIFIA Bond***") dated as of [_____], 20[__], as follows (capitalized terms used in this Certificate which are not otherwise defined shall have the meanings given to such terms in the Indenture (as defined below)):

1. That the Trustee is a national association duly organized and validly existing under the laws of the United States of America and is duly licensed and in good standing under the laws of [_____].

2. All approvals, consents and orders of any governmental authority or agency having jurisdiction in the matter which would constitute a condition precedent to the performance by the Trustee of its duties and obligations under the documents pertaining to the issuance of the TIFIA Bond have been obtained and are in full force and effect.

3. That the documents pertaining to the issuance of the TIFIA Bond to which the Trustee is a party were executed and the TIFIA Bond was authenticated on behalf of the Trustee by one or more of the persons whose names and offices appear on Annex One attached hereto and made part hereof, that each person was at the time of the execution of such documents and the authentication of the TIFIA Bond and now is duly appointed, qualified and acting incumbent of his or her respective office, that each such person was authorized to execute such documents and to authenticate the TIFIA Bond, and that the signature appearing after the name of each such person is a true and correct specimen of that person's genuine signature.

4. That the undersigned is authorized to act as Trustee and accept the trusts conveyed to it under the Indenture ("***Trusts***"), has accepted the Trusts so conveyed and in so accepting the Trusts and so acting is in violation of no provision of its articles of association or bylaws, any law, regulation or court or administrative order or any agreement or other instrument to which it is a party or by which it may be bound.

5. That attached to this Certificate as Annex Two is a full, true and correct copy of excerpts from resolutions of the board of directors of the Trustee and other applicable documents that evidence the Trustee's trust powers and the authority of the officers referred to above to act on behalf of the Trustee; and that these excerpts and other applicable documents were in effect on the date or dates such officers acted and remain in full force and effect today, and such excerpts and documents have not been amended since the date of the last amendment thereto shown on any such copy, as applicable.

6. That receipt is acknowledged of all instruments, certifications and other documents or confirmations required to be received by the Trustee pursuant to Section [____] of that certain Indenture (the "***Indenture***"), dated as of [_____], 20[__], between [_____] (the "***Borrower***") and the Trustee.

7. That receipt is also acknowledged of that certain TIFIA Loan Agreement, dated as of [_____], 20[__] (the "***TIFIA Loan Agreement***"), between the Borrower and the United States Department of Transportation, acting by and through the Executive Director of the Build America Bureau (the "***TIFIA Bondholder***").

8. That the Trustee also accepts its appointment and agrees to perform the duties and responsibilities of Trustee [and of Bond Registrar and Paying Agent] for and in respect of the TIFIA Bond as set forth in the Indenture and the TIFIA Loan Agreement, including from time to time redeeming all or a portion of the TIFIA Bond as provided in Section [____] of the Indenture. In accepting such duties and responsibilities, the Trustee shall be entitled to all of the privileges, immunities, rights and protections set forth in Section [____] of the Indenture.

9. That all funds and accounts for the payment of the TIFIA Bond pursuant to the Indenture (including, but not limited to, [*insert name of account designated for TIFIA Debt Service*]) have been established as provided in the Indenture.

[SIGNATURE PAGE FOLLOWS]

Dated: [_____], 20[__]

[TRUSTEE]

By: _____
Its:

ANNEX ONE TO EXHIBIT J

OFFICERS OF TRUSTEE

ANNEX TWO TO EXHIBIT J

RESOLUTIONS OF BOARD OF DIRECTORS OF TRUSTEE

EXHIBIT K

FORM OF BORROWER'S OFFICER'S CERTIFICATE

Reference is made to that certain TIFIA Loan Agreement, dated as of [_____], 20[__] (the "TIFIA Loan Agreement"), by and among [____] (the "Borrower") and the United States Department of Transportation, acting by and through the Executive Director of the Build America Bureau (the "TIFIA Lender"). Capitalized terms used in this certificate and not defined shall have the respective meanings ascribed to such terms in the TIFIA Loan Agreement.

The undersigned, [___], as Borrower's Authorized Representative, does hereby certify on behalf of the Borrower and not in his/her personal capacity, as of the date hereof:

(a) pursuant to Section 12(a)(ii) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit A are complete and fully executed copies of each Indenture Document[, together with any amendments, waivers or modifications thereto, in each case that has been entered into on or prior to the Effective Date,] and each such agreement is in full force and effect, and all conditions contained in such documents to the closing of the transactions contemplated thereby have been fulfilled or effectively waived by the TIFIA Lender in its sole discretion;

(b) pursuant to Section 12(a)(vii) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit B is an incumbency certificate that lists all persons, together with their positions and specimen signatures, who are duly authorized by the Borrower to execute the Related Documents to which the Borrower is or will be a party, and who have been appointed a Borrower's Authorized Representative in accordance with Section 25 (*Borrower's Authorized Representative*) of the TIFIA Loan Agreement;

(c) [pursuant to Section 12(a)(ix) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit C is a true, correct and complete copy of the Borrower's Traffic and Revenue Study, accompanied by a letter from the preparer of such study, certifying that the assumptions and projections contained in the Traffic and Revenue Study are reasonable and may be relied upon by the TIFIA Lender;]

(d) pursuant to Section 12(a)(x) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit D are true, correct and complete copies of each Principal Project Contract that has been executed on or prior to the Effective Date (as listed below), and each such Principal Project Contract is in full force and effect and has not been amended, amended and restated, modified or supplemented except as listed below and attached hereto as part of Exhibit D:

1. [Construction Agreement]; and

2. [Others];

(e) the Borrower has obtained all Governmental Approvals necessary to commence construction of the Project and each such Governmental Approval is final and non-appealable and in full force and effect (and is not subject to any notice of violation, breach or revocation);

(f) pursuant to Section 12(a)(xii) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit E is the Base Case Financial Model, which Base Case Financial Model (i) demonstrates that projected Project Revenues are sufficient to meet the Loan Amortization Schedule, (ii) demonstrates a Total Debt Service Coverage Ratio for each Calculation Period through the Final Maturity Date that is not less than [____], (iii) demonstrates a TIFIA Loan Life Coverage Ratio for each Calculation Date through the Final Maturity Date that is not less than [____], [(iv) [*other coverage ratios as applicable*], ([i]v) does not reflect (1) the commencement of amortization of the principal amount of any Senior Obligations before the Debt Service Payment Commencement Date, (2) the payment of any interest on any Pari Passu Obligations or Subordinated Obligations before the Debt Service Payment Commencement Date, or (3) the commencement of amortization of the principal amount of any Pari Passu Obligations or Subordinated Obligations before the commencement of amortization of the principal amount of the TIFIA Loan;

(g) pursuant to Section 12(a)(xv) (Conditions Precedent to Effectiveness) of the TIFIA Loan Agreement, the Borrower hereby certifies that it has (i) complied with all applicable requirements of the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 (42 U.S.C. § 4601 et seq.) and Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.) and, if previously requested request by the TIFIA Lender, has provided sufficient evidence of such compliance and (ii) complied with the requirements of 2 CFR Part 180, including Subpart C, in particular §§ 180.300 and 180.330, and with 2 CFR § 1200.332 and, if previously requested request by the TIFIA Lender, has provided sufficient evidence of such compliance;

(h) pursuant to Section 12(a)(xv) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit F is a true, correct and complete copy of the final NEPA Determination, which document has not been revoked or amended on or prior to the date hereof;

(i) pursuant to Section 12(a)(xvii) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, (i) the Borrower's Federal Employer Identification Number is [_____] and attached hereto as Exhibit G-1 is evidence thereof, (ii) the Borrower's Unique Entity Identifier number is [_____], and (iii) the Borrower has registered with, and obtained confirmation of active registration status with no active exclusions listed in such registration from, the federal System for Award Management (www.SAM.gov), and attached hereto as Exhibit G-2 is evidence of each of (ii) and (iii);

(j) [pursuant to Section 12(a)(xviii) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit H are true, correct and complete copies of

certificates of insurance that demonstrate satisfaction of the insurance requirements of Section 12(a)(xviii) of the TIFIA Loan Agreement;][154]

(k) pursuant to Section 12(a)(xix) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as (i) Exhibit I-1 is a copy of [the Borrower's] [each Borrower Related Party's] Organizational Documents and the Authorizing Legislation each as in effect on the Effective Date (and certified by the Secretary of State of the State, to the extent applicable), which Organizational Documents and Authorizing Legislation are each in full force and effect and have not been amended since the date of the last amendment thereto shown on the [certificate], (ii) Exhibit I-2 is a copy of all resolutions authorizing [the Borrower] [each Borrower Related Party] to execute and deliver, and to perform its respective obligations under, the TIFIA Loan Documents to which it is a party, and such resolutions have not been subsequently modified, rescinded or amended, are in full force and effect in the form adopted, and are the only resolutions adopted by the Borrower Related Parties relating to the matters described therein, and (iii) as Exhibit I-3 is a copy of such further instruments and documents as are necessary, appropriate or advisable to effectuate the foregoing resolutions and to consummate and implement the transactions contemplated by such resolutions and the TIFIA Loan Documents;

(l) pursuant to Section 12(a)(xxi) (*Conditions Precedent to Effectiveness*) of the TIFIA Loan Agreement, attached hereto as Exhibit J are complete and fully executed copies of each performance security instrument delivered to or by the Borrower pursuant to any Principal Project Contract as of the Effective Date, each of which performance security instruments is in compliance with the requirements for such performance security instrument pursuant to the applicable Principal Project Contract and is in full force and effect;

(m) the representations and warranties of the Borrower set forth in the TIFIA Loan Agreement and in each other Related Document to which the Borrower is a party are true and correct on and as of the date hereof, except to the extent that such representations and warranties expressly relate to an earlier date, in which case such representations and warranties were true and correct as of such earlier date;

(n) (i) the maximum principal amount of the TIFIA Loan (excluding any interest that is capitalized in accordance with the terms hereof), together with the amount of any other credit assistance provided under the Act to the Borrower, does not exceed thirty-three percent (33%) of reasonably anticipated Eligible Project Costs and (ii) as required pursuant to § 603(b)(9) of the Act, the total federal assistance provided to the Project, including the maximum principal amount of the TIFIA Loan (excluding any interest that is capitalized in accordance with the terms hereof), does not exceed eighty percent (80%) of Total Project Costs; and

(o) [*other attachments and provisions, as may apply to the specific TIFIA Loan Agreement*].

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[154] Subject to modification to the extent that the Borrower utilizes a self-insurance program.

IN WITNESS WHEREOF, the undersigned has executed this certificate as of the date first mentioned above.

[_____]

By: _____
Name:
Title: Authorized Person

EXHIBIT B TO EXHIBIT K

INCUMBENCY CERTIFICATE

The undersigned certifies that he/she is the [Secretary] of [_____], a [_____], (the "Borrower"), and as such he/she is authorized to execute this certificate and further certifies that the following persons have been elected or appointed, are qualified, and are now acting as officers or authorized persons of the Borrower in the capacity or capacities indicated below, and that the signatures set forth opposite their respective names are their true and genuine signatures. He/She further certifies that any of the officers listed below is authorized to sign agreements and give written instructions with regard to any matters pertaining to the [TIFIA Loan Documents] and/or the [Indenture Documents] as the Borrower's Authorized Representative (each as defined in that certain TIFIA Loan Agreement, dated as of the date hereof, between the Borrower and the United States Department of Transportation, acting by and through the Executive Director of the Build America Bureau):

Name	Title	Signature
[_____]	[_____]	_____
[_____]	[_____]	_____
[_____]	[_____]	_____
[_____]	[_____]	_____
[_____]	[_____]	_____

IN WITNESS WHEREOF, the undersigned has executed this certificate as of this _____ day of [___], 20[__].

[_____]

By: _____
Name:
Title:

EXHIBIT L
FORM OF CERTIFICATE OF SUBSTANTIAL COMPLETION

[*Letterhead of Borrower*]

[*Date*]

Build America Bureau

United States Department of Transportation

Room W12-464
1200 New Jersey Avenue, SE
Washington, D.C. 20590
Attention: Director, Office of Credit Programs

Project: [*Project Name***]** [*TIFIA Project Reference Number*]

Dear Director:

This Notice is provided pursuant to Section 15(g)(i)(A) (*Substantial Completion*) of that certain TIFIA Loan Agreement (the "TIFIA Loan Agreement"), dated as of [Dated Date], by and between [Borrower] (the "**Borrower**") and the United States Department of Transportation, acting by and through the Executive Director of the Build America Bureau (the "**TIFIA Lender**").

Unless otherwise defined herein, all capitalized terms in this Notice have the meanings assigned to those terms in the TIFIA Loan Agreement.

I, the undersigned, in my capacity as the Borrower's Authorized Representative and not in my individual capacity, do hereby certify to the TIFIA Lender that:

(a) on [i*nsert date Substantial Completion requirements were satisfied*], the Project satisfied each of the requirements for Substantial Completion set forth in the [*Insert reference to the concession agreement, design-build or similar agreement for the Project*];

(b) Substantial Completion has been declared under each of the above-referenced agreements and copies of the notices of Substantial Completion under such agreements are attached to this certification; and

(c) Substantial Completion, as defined in the TIFIA Loan Agreement, has been achieved.

_____
[Borrower's Authorized Representative]

_____
Name:
Title:

EXHIBIT M

FORM OF FTA PROGRAMMATIC REQUIREMENTS CERTIFICATE

The undersigned, on behalf of [INSERT NAME OF BORROWER][155] (the "**Borrower**"), hereby certifies, acknowledges and agrees, as required by 49 U.S.C. § 5323(o) and in accordance with by that certain TIFIA Loan Agreement, dated as of [DATE] (the "**TIFIA Loan Agreement**"), by and between the Borrower and the UNITED STATES DEPARTMENT OF TRANSPORTATION, acting by and through the Executive Director of the Build America Bureau (the "**TIFIA Lender**"), that federal transit laws, specifically 49 U.S.C. §§ 5307, 5309, and 5337, apply to the Project. The undersigned, on behalf of the Borrower, further certifies and agrees as to each of the following:

1. The Borrower shall comply with 49 U.S.C. § 5307, including 49 U.S.C. § 5307(d)(1), and further that:
    a. the Borrower has or will have the legal, financial, and technical capacity to carry out the Project, including the safety and security aspects of the Project (as defined in the TIFIA Loan Agreement);
    b. the Borrower has or will have satisfactory continuing control over the use of Project equipment and facilities;
    c. the Borrower will maintain the Project equipment and facilities;
    d. the Borrower will ensure that when, during non-peak hours for transportation using or involving the Project, or a facility or equipment constituting a part thereof, a fare that is not more than fifty percent (50%) of the peak hour fare will be charged to the following individuals:
        i. a senior,
        ii. an individual who, because of illness, injury, age, congenital malfunction, or other incapacity or temporary or permanent disability (including an individual who is a wheelchair user or has semi-ambulatory capability), cannot use a public transportation service or a public transportation facility effectively without special facilities, planning, or design,
        iii. any individual presenting a Medicare card issued to that individual under title II of the Social Security Act (42 U.S.C. § 401 *et seq*.), and
        iv. any individual presenting a Medicare card issued to that individual under title XVIII of the Social Security Act (42 U.S.C. § 1395 *et seq*.);
    e. when carrying out any procurement in connection with the Project, the Borrower will comply with 49 U.S.C. §§ 5323 and 5325;

[155] To the extent the Borrower is a pass-through conduit entity, the recipient of the federal funds will also be required to provide this certificate and make the related representations in the TIFIA Loan Agreement.

f. the Borrower has complied with or will comply with 49 U.S.C. § 5307(b) because it:

i. has made or will make available to the public information on amounts of its TIFIA funding request(s),

ii. has developed or will develop, in consultation with interested parties, including private transportation providers, a proposed program of projects[156] for activities to be funded,

iii. has published or will publish a program of projects in a way that affected individuals, private transportation providers, and local elected officials will have an opportunity to examine and submit comments on the proposed program of projects and the Borrower's performance,

iv. has provided or will provide an opportunity for a public hearing to obtain the views of individuals on the proposed program of projects,

v. has ensured or will ensure that the proposed program of projects provides for coordination of the Project with public transportation services funded by FTA under 49 U.S.C. § 5336 and with transportation services supported by other Federal Government sources,

vi. has considered or will consider the comments and views received, especially those of private transportation providers, in preparing its final program of projects, and

vii. has made or will make the final program of projects available to the public;

g. the Borrower will comply with the metropolitan transportation planning requirements of 49 U.S.C. § 5303 and the statewide nonmetropolitan planning requirements of 49 U.S.C. § 5304;

h. the Borrower has a locally developed process to solicit and consider public comment before (i) raising a fare or (ii) implementing a major reduction of public transportation; and

i. the Borrower will comply with the final federal regulations, when issued, that implement the safety plan requirements of 49 U.S.C. § 5329(d).

2. To comply with the interest and financing costs restrictions of 49 U.S.C. Chapter 53, including without limitation § 5307(e)(3), the Borrower agrees that it will not seek reimbursement for interest and any other financing costs incurred in connection with the Project unless (a) such costs eligible under 49 U.S.C. § 5307(3)(B) and 23 U.S.C. § 601, and (b) the Borrower has certified to FTA's satisfaction that the Borrower has used reasonable diligence in seeking the most favorable financing terms underlying such costs.

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[156] A "program of projects" is a list of projects proposed by the Borrower (or the applicable designated recipient (as defined in 49 U.S.C. Chapter 5302(4) if other than the Borrower) to be funded from the urbanized area's 49 U.S.C. Chapter 5307 apportionment. The program of projects includes a brief description of the projects, including any suballocation among public transportation providers in an urbanized area, total project costs, and federal share (including grants and loans) for each project.

3. The Borrower shall comply with Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d *et seq*.).

4. The Borrower shall comply with the National Environmental Policy Act of 1969 ("NEPA"), 42 U.S.C. § 5321 *et seq*., and will receive an environmental categorical exclusion, a finding of no significant impact, or a record of decision under NEPA for the Project prior to obligation of funds.

5. The Borrower shall promptly adopt a transit asset management plan that complies with regulations implementing 49 U.S.C. § 5326(d), when required.

6. The Borrower shall comply with the "Generally Applicable Provisions" found at Section 1 through Section 48 of the FTA Master Grant Agreement (MA [___][157]) (the "Master Agreement"), to the extent these sections are applicable to the Project. The Borrower acknowledges and agrees that it has reviewed these provisions of the Master Agreement and shall comply as required thereby. The Borrower further acknowledges that the Master Agreement has no expiration date, that it continues to apply until modified or superseded as outlined in the Master Agreement itself. Section 1 through Section 48 are attached hereto and incorporated into this certificate as if fully stated herein.

IN WITNESS WHEREOF, the undersigned has executed this certificate.

[Date_____]

By: _____
Name: _____
Title: _____
Borrower's Authorized Representative

[157] Each version of the Master Agreement has a particular date (usually October 1, xxxx) and a number and is referred to as (MA followed by the number). The MA will need to be checked annually because the provisions could be modified including the numbering.

[EXHIBIT N]

[TIFIA LOAN REAMORTIZATION METHODOLOGY]

[To be used if TIFIA Debt Service is not in the form of level payments on all Semi-Annual Payment Dates]

Semi-Annual Payment Date	Principal Amount %[158] (maximum 2 decimal places)

Note: This table is provided by way of an example of a possible form for this Exhibit N. This Exhibit should be modified as necessary to reflect any unique aspects of the particular amortization schedule, including to clarify how debt service should be reamortized in the event the repayment period differs in number of Semi-Annual Payment Dates from the original Loan Amortization Schedule (e.g., in the event Substantial Completion occurs earlier or later than anticipated and the Debt Service Payment Commencement Date shifts).

[158] Specify if % is calculated on (a) Outstanding TIFIA Loan Balance or (b) Outstanding TIFIA Loan Balance as of Debt Service Payment Commencement Date.

EXHIBIT O

CERTIFICATION REGARDING THE PROHIBITION ON THE USE OF APPROPRIATED FUNDS FOR LOBBYING

Reference is made to that certain TIFIA Loan Agreement, dated as of [_____], 20[__] (the "TIFIA Loan Agreement"), by and among [INSERT NAME OF BORROWER], (the "Borrower") and the United States Department of Transportation, acting by and through the Executive Director of the Build America Bureau (the "TIFIA Lender"). Capitalized terms used in this certificate and not defined shall have the respective meanings ascribed to such terms in the TIFIA Loan Agreement. The undersigned, on behalf of [INSERT NAME OF BORROWER], hereby certifies, to the best of his or her knowledge and belief, that:

(a) No Federal appropriated funds have been paid or will be paid, by or on behalf of the Borrower, to any person for influencing or attempting to influence an officer or employee of an agency, a member of Congress, an officer or employee of Congress, or an employee of a member of Congress in connection with the making of the TIFIA Loan.

(b) If any funds other than proceeds of the TIFIA Loan have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a member of Congress, an officer or employee of Congress, or an employee of a member of Congress in connection with the TIFIA Loan, the Borrower shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(c) The Borrower shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when the TIFIA Lender entered into the TIFIA Loan Agreement. Submission of this certification is a prerequisite to the effectiveness of the TIFIA Loan Agreement imposed by Section 1352 of title 31, United States Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than $10,000 and not more than $100,000 for each such failure.

Dated: _____

[BORROWER][159]

By: _____
Name:
Title:

[159] To be executed by Borrower's Authorized Representative.

EXHIBIT P
FORM OF SEMI-ANNUAL COVERAGE CERTIFICATE

Reference is made to that certain TIFIA Loan Agreement, dated as of [_____], 20[__] (the "TIFIA Loan Agreement"), by and among [____] (the "Borrower") and the United States Department of Transportation, acting by and through the Executive Director of the Build America Bureau (the "TIFIA Lender"). Capitalized terms used in this certificate and not defined shall have the respective meanings ascribed to such terms in the TIFIA Loan Agreement.

The undersigned, [___], as Borrower's Authorized Representative, does hereby certify on behalf of the Borrower and not in his/her personal capacity, as of the date hereof:

1. The undersigned has reviewed the terms of the TIFIA Loan Agreement, including Section 21(b) (*Semi-Annual Coverage Certificates*) thereof and the related defined terms.

2. The undersigned hereby certifies that annual projected Pledged Revenues shall be sufficient to meet the Loan Amortization Schedule and to meet the Borrower's debt service obligations with respect to any other Obligations that are currently outstanding, including all debt service obligations pursuant to the Indenture, in each case as of each applicable payment date through the fifth (5th) anniversary of the most recent Semi-Annual Payment Date.

3. The undersigned hereby certifies that Annex One hereto sets forth:

(a) the historical Senior Debt Service Coverage Ratio [and][,] Total Debt Service Coverage Ratio [and Loan Life Coverage Ratio] for the two (2) consecutive Calculation Periods ended as of the immediately preceding Calculation Date and as of the second immediately preceding Calculation Date, respectively, and

(b) the projected Senior Debt Service Coverage Ratio [and][,] Total Debt Service Coverage Ratio [and Loan Life Coverage Ratio] as of each Calculation Date through the fifth (5th) anniversary of the most recent Calculation Date

The foregoing certifications, together with the computations set forth in the Annex A hereto, are made and delivered [mm/dd/yy][160] pursuant to Section 21(b) (*Semi-Annual Coverage Certificates*) of the TIFIA Loan Agreement.

[BORROWER]

By: _____
Name:
Title:

[160] Each Semi-Annual Coverage Certificate must be delivered within fifteen (15) days after the most recent Calculation Date.

ANNEX ONE

TO SEMI-ANNUAL COVERAGE CERTIFICATE

Exhibit Q

2 CFR Part 170

I. REPORTING SUBAWARDS AND EXECUTIVE COMPENSATION

a. *Reporting of first-tier subawards.*

1. *Applicability.* Unless you are exempt as provided in paragraph (d) below, you must report each action that equals or exceeds $30,000 in Federal funds for a subaward to a non-Federal entity or Federal agency (see definitions in paragraph (e) below).

2. *Where and when to report.*

i. The non-Federal entity or Federal agency must report each obligating action described in paragraph (a)(1) above to *http://www.fsrs.gov.*

ii. For subaward information, report no later than the end of the month following the month in which the obligation was made. (For example, if the obligation was made on November 7, 2010, the obligation must be reported by no later than December 31, 2010.)

3. *What to report.* You must report the information about each obligating action that the submission instructions posted at *http://www.fsrs.gov specify.*

b. *Reporting total compensation of recipient executives for non-Federal entities.*

1. *Applicability and what to report.* You must report total compensation for each of your five most highly compensated executives for the preceding completed fiscal year, if—

i. The total Federal funding authorized to date under this TIFIA Loan equals or exceeds $30,000 as defined in 2 CFR § 170.320;

ii. In the preceding fiscal year, you received—

(A) eighty percent (80%) or more of your annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR § 170.320 (and subawards), and

(B) $25,000,000 or more in annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR § 170.320 (and subawards); and,

iii. The public does not have access to information about the compensation of the executives through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. §§ 78m(a), 78o(d)) or section 6104 of the Internal Revenue Code of 1986. (To determine if the public has access to the compensation information, see the U.S. Security and Exchange Commission total compensation filings at *http://www.sec.gov/answers/execomp.htm.*)

2. *Where and when to report.* You must report executive total compensation described in paragraph (b)(1) above:

i. As part of your registration profile at *https://www.sam.gov.*

ii. By the end of the month following the month of the Effective Date, and annually thereafter.

c. *Reporting of Total Compensation of Subrecipient Executives.*

1. *Applicability and what to report.* Unless you are exempt as provided in paragraph (d) below, for each first-tier non-Federal entity subrecipient under this TIFIA Loan, you shall report the names and total compensation of each of the subrecipient's five most highly compensated executives for the subrecipient's preceding completed fiscal year, if—

i. In the subrecipient's preceding fiscal year, the subrecipient received—

(A) eighty percent (80%) or more of its annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR § 170.320 (and subawards) and,

(B) $25,000,000 or more in annual gross revenues from Federal procurement contracts (and subcontracts), and Federal financial assistance subject to the Transparency Act (and subawards); and

ii. The public does not have access to information about the compensation of the executives through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. §§ 78m(a), 78o(d)) or section 6104 of the Internal Revenue Code of 1986. (To determine if the public has access to the compensation information, see the U.S. Security and Exchange Commission total compensation filings at *http://www.sec.gov/answers/execomp.htm.*)

2. *Where and when to report.* You must report subrecipient executive total compensation described in paragraph (c)(1) above:

i. To the recipient.

ii. By the end of the month following the month during which you make the subaward. For example, if a subaward is obligated on any date during the month of October of a given year (*i.e.,* between October 1 and 31), you must report any required compensation information of the subrecipient by November 30 of that year.

d. *Exemptions.* If, in the previous tax year, you had gross income, from all sources, under $300,000, you are exempt from the requirements to report:

1. Subawards, and

2. The total compensation of the five most highly compensated executives of any subrecipient.

e. *Definitions.* For purposes of this **Exhibit Q**:

1. *Federal Agency* means a Federal agency as defined at 5 U.S.C. § 551(1) and further clarified by 5 U.S.C. § 552(f).

2. *Non-Federal entity* means all of the following, as defined in 2 CFR Part 25:

i. A Governmental organization, which is a State, local government, or Indian tribe;

ii. A foreign public entity;

iii. A domestic or foreign nonprofit organization; and,

iv. A domestic or foreign for-profit organization

3. *Executive* means officers, managing partners, or any other employees in management positions.

4. *Subaward:*

i. This term means a legal instrument to provide support for the performance of any portion of the Project and that you as the Borrower award to an eligible subrecipient.

ii. The term does not include your procurement of property and services needed to carry out the Project (for further explanation, see 2 CFR § 200.331).

iii. A subaward may be provided through any legal agreement, including an agreement that you or a subrecipient considers a contract.

5. *Subrecipient* means a non-Federal entity or Federal agency that:

i. Receives a subaward from you (the recipient) under this TIFIA Loan; and

ii. Is accountable to you for the use of the Federal funds provided by the subaward.

6. *Total compensation* means the cash and noncash dollar value earned by the executive during the recipient's or subrecipient's preceding fiscal year and includes the following (for more information see 17 CFR § 229.402(c)(2)).